

Contemporary Intellectual Property: Law and Policy (6th edn)
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p. 541 **14. Trade marks 2: definition of a registrable trade mark, absolute grounds for refusal and invalidation, and revocation**

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Abstract

This chapter examines the definition of a registrable trade mark, absolute grounds for refusal or invalidation of a registered trade mark, the extent to which objections can be overcome through proof of distinctiveness acquired through use and the rules on revocation of a registered trade mark, both at national level for UK trade mark registrations and at EU level for the EU trade mark. It examines these issues looking at many different kinds of trade mark, from traditional word marks and logos to so-called 'non-conventional' trade marks such as three-dimensional product shapes, sounds, smells, colours, and position marks.

Keywords: definition of a registrable trade mark, absolute objections, distinctiveness, descriptiveness, customary marks, acquired distinctiveness, public policy and morality, bad faith, revocation, non-use

Introduction

Scope and overview of chapter

14.1 As a result of the harmonisation of EU registered trade mark law, the types of signs that can be registered as trade marks has considerably expanded. Historically, trade mark registration in some member states had been limited to words, logos, and similar signs, but such has been the modernising impact of the EU regime that all manner of two- and three-dimensional marks and other visual and non-visual indicia are now potentially registrable. Over the years, many questions about registrability have been considered by the European Court of Justice (ECJ), and the reasoning of the ECJ has been particularly influenced by purposive

and public interest considerations. The UK courts have tended to be cautious about the risks of over-expansion of registrable trade mark subject matter, and it seems likely that this cautiousness will continue to play a part in shaping UK trade mark law post-Brexit.

14.2 The purpose of this chapter is to examine the definition of a registrable trade mark, the rules governing the drafting of the specification of goods and services which forms part of every trade mark registration, the absolute grounds for refusal and invalidation, and the law dealing with revocation of a registered mark. A number of important changes were brought about by the EU's 2015 trade mark reform package, which was fully implemented into the Trade Marks Act (TMA) 1994 before Brexit. Using the TMA 1994 as our primary statutory reference point, this chapter will also note relevant provisions of the EU Trade Mark Regulation 2017/1001 (EUTMR 2017) for EU trade marks (EUTMs), and provide cross-references to the Trade Marks Directive 2015/2436 (TMD 2015). Older versions of the Regulation and Directive will be noted where appropriate. Care should be taken to note that there are changes of Article numbering in the EUTMR 2017 and TMD 2015 compared to older versions of the Regulation and Directive.

14.3 The definition of a registrable trade mark is to be found at section 1 TMA 1994 for UK registered trade marks and Article 4 EUTMR 2017 for EUTMs. The grounds on which an application for registration of a trade mark can be refused are set out in sections 3 and 5 TMA 1994 and Articles 7 and 8 EUTMR 2017 respectively. The grounds for refusal of an application divide into *absolute* and *relative* grounds. *Absolute* grounds for refusal are essentially concerned with the characteristics and qualities of the mark applied for itself; *relative* grounds look to whether there are conflicts with earlier rights. Our focus in this chapter is on *absolute* grounds for refusal. In registered trade mark law, the *relative* grounds for refusal of an application mirror the grounds for infringement of a registered mark; we will look at relative grounds alongside infringement in Chapter 15.

p. 542 ↩ **14.4** Absolute grounds for refusal apply to applications when they are filed and examined. However, a trade mark registration may also be *invalidated* after grant. Once granted, a trade mark registration benefits from a presumption of validity,¹ but that validity can always be challenged. The grounds for invalidation of a registered mark are essentially a mirror of the absolute and relative grounds for refusal—revisiting, in essence, the question of whether the mark should have been registered in the first place. The consequence of a mark being found invalid is that the registration is deemed never to have been made.² The grounds for invalidation are set out at section 47 TMA 1994 for UK registered trade marks and Articles 59–60 EUTMR 2017 for EUTMs. As far as *absolute* grounds are concerned, section 47(1) TMA 1994 says:³

The registration of a trade mark may be declared invalid on the ground that the trade mark was registered in breach of section 3 or any of the provisions referred to in that section (absolute grounds for refusal).

With this in mind, subject to some relatively minor points of difference which we will highlight as required, as we work our way through the absolute grounds of refusal discussed in this chapter it is important to remember that the same principles will apply to invalidation of an already-registered mark. In contrast to invalidation, the rules on *revocation* of a trade mark registration are concerned with changes which have arisen since the registration was granted—for example, whether the registered mark has been put to

‘genuine use’ or whether it has become misleading or generic. Revocation of a registered trade mark is governed by section 46 TMA 1994 for UK trade marks and Articles 18 and 58 EUTMR 2017 for EUTMs. The effect of revocation is that the rights of the trade mark owner are deemed to cease as from the date of the application for revocation or, if the grounds existed at an earlier date, that date.⁴ We will consider revocation at the end of this chapter.

14.5 Learning objectives

By the end of this chapter you should be able to describe and explain:

- the definition of a registrable trade mark;
- the rules which have developed around the drafting of the trade mark specification;
- the absolute grounds for refusing or invalidating a trade mark registration and when a mark may overcome these by proof that it has become distinctive through use; and
- the rules governing revocation of registered trade marks.

14.6 The rest of this chapter looks like this:

- The definition of a registrable trade mark (14.7–14.22)
- The specification of goods and services (14.23–14.30)
- Non-distinctive, descriptive, and customary marks (14.31–14.62)
- Distinctiveness through use (acquired distinctiveness) (14.63–14.76)
- Exclusion from registration of certain shapes and signs consisting of ‘other characteristics’ (14.77–14.94)
- Public policy and morality (14.95–14.101)
- Deceptive marks (14.102–14.103)
- ↺ Marks prohibited by law, protected emblems, and geographical indications (14.104–14.105)
- Bad faith (14.106–14.113)
- Revocation (14.114–14.128)

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The definition of a registrable trade mark

Section 1(1) TMA 1994

14.7 Section 1(1) TMA 1994 defines a registrable trade mark as follows:⁵

- (1) In this Act ‘trade mark’ means any sign which is capable—
- (a) of being represented in the register in a manner which enables the registrar and other competent authorities and the public to determine the clear and precise subject matter of the protection afforded to the proprietor, and
 - (b) of distinguishing goods or services of one undertaking from those of other undertakings.

A trade mark may, in particular, consist of words (including personal names), designs, letters, numerals, colours, sounds or the shape of goods or their packaging.

According to section 3(1)(a) TMA 1994, a sign which does not satisfy the requirements of section 1(1) shall not be registered. Articles 4 and 7(1)(a) EUTMR 2017 set out the equivalent provisions for EUTMs.

When trade mark law was first harmonised within the EU, for some jurisdictions the then newly-harmonised definition represented a significant expansion of what might be registrable as a trade mark. This definition was widened significantly further as part of the 2015 reforms. In the 2015 reform package, the most significant change was in relation to representation of the mark on the trade mark register. Previously, the definition of a registrable mark had required the sign applied for to be ‘capable of being represented graphically’. In the early years of the harmonised trade mark regime, this generated a stream of ECJ cases elaborating on this requirement for graphic representation. Indirectly, this became a testing ground on how far the then new regime was prepared to protect so-called ‘non-conventional’ trade marks. The changes adopted in 2015 reflect a push for even greater flexibility and openness in what may be registered as a trade mark, alongside a recognition that (particularly since trade mark registers are now consulted online) a range of different formats can be used accurately to represent a mark over and beyond simple graphic representation.

14.8 On the face of the definition at section 1(1) TMA 1994, there are three criteria which must be met for a mark to be potentially registrable:

- the mark must be a ‘sign’;
- it must be capable of being represented on the register ‘in a manner which enables the registrar and other competent authorities and the public to determine the clear and precise subject matter of the protection afforded to the proprietor’; and
- it must be capable of distinguishing goods or services of one undertaking from those of other undertakings.

However, in effect the third criterion (that the mark be ‘capable of distinguishing’) is subsumed into the absolute grounds for refusal discussed further below. In early case law there was debate as to whether this imposed a separate and independent bar to registration: in other words, whether there was a category of marks which were deemed as a matter of law to be incapable *per se* of distinguishing goods and services such that they should always be refused, irrespective of whether or not the absolute grounds for refusal discussed

p. 544 ↪ below applied or, even, that the mark might have in fact acquired distinctiveness through use. This was put to the ECJ in *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd.*⁶ The Court held that there was no such bar to registration, saying:⁷

there is no class of marks having a distinctive character by their nature or by the use made of them which is not capable of distinguishing goods or services within the meaning of Article 2 of the Directive.

In *West (t/a Eastenders) v Fuller Smith & Turner* the Court of Appeal said that the effect of the judgment in *Philips v Remington* was that:⁸

the second half of the definition of ‘trade mark’ in s.1(1) of the Act ... must be viewed as imposing no distinctiveness requirement separate from that imposed by Articles 3(1)(b), (c) and (d) and 3(3). Thus, there is no requirement that the mark be both ‘capable of distinguishing’ and ‘not devoid of any distinctive character’.

14.9 There are therefore only two issues for us to concentrate on in this section of the chapter, in terms of the definition of a potentially registrable trade mark: what constitutes a ‘sign’; and what is required in terms of representation on the register. For conventional trade marks (such as words and logos), these two requirements will easily be met. These requirements are most relevant to non-conventional marks and are, in their way, each concerned with requiring specificity from the trade mark applicant, avoiding uncertainty as to what has been registered and curbing potential over-reach in the scope of trade mark rights. Although two separate legal requirements, as the UK cases discussed below show, there is a degree of overlap between them: questionable subject matter may be objectionable both for not constituting a ‘sign’ and for inadequate representation.

What is a ‘sign’?

14.10 Neither the TMA 1994 nor the EUTMR 2017 (or TMD 2015) define what is meant by a ‘sign’. The list of examples in section 1(1) TMA 1994 is not exhaustive. Many different types of sign are accepted for registration as trade marks, including:

- word marks (such as ‘MICROSOFT’ or ‘TESCO’), phrases (such as ‘A Mars a day helps you work, rest and play’),⁹ and words registered in combination with or as part of a logo such as that shown in Figure 14.1,¹⁰



Figure 14.1 Rolls-Royce logo registration

p. 545 • ↩ the shape of the packaging of goods, as in Figure 14.2;¹¹



Figure 14.2 Coca-Cola bottle registration

- the shape of goods themselves, such as the Mini, as shown in Figure 14.3;¹² and
- sounds, such as the McDonald's jingle shown in Figure 14.4.¹³



Figure 14.3 BMW Mini registration



Figure 14.4 McDonald's jingle registration

14.11 Early ECJ case law confirmed that ‘pure colour marks’ (that is, marks consisting purely of a colour *per se*, without any spatial delimitation) may be capable of constituting a ‘sign’ when used in relation to goods or services: this is to be assessed in each case in context.¹⁴ The same also applies to colour combinations.¹⁵ More recently, in *Apple Inc v Deutsches Patent- und Markenamt* the ECJ also confirmed that the design of the layout of a retail store can constitute a ‘sign’, Apple having applied for the mark shown in Figure 14.5.¹⁶



Figure 14.5 Apple store layout

p. 546 ↺ **14.12** However, the requirement for a ‘sign’ does have some limiting effect. Its purpose has been identified by the ECJ as being to prevent the abuse of trade mark law to obtain an unfair competitive advantage.¹⁷ The judgment of the ECJ in *Dyson Ltd v Registrar of Trade Marks*¹⁸ demonstrates that not everything applied for will constitute a ‘sign’. In this case, Dyson sought to register a UK trade mark relating

to its bagless cyclonic vacuum cleaners. The focus was on the transparent collecting bin which formed part of those vacuum cleaners. The application contained representations showing two versions of the cleaner, one upright and one cylinder model. The two representations are shown at Figure 14.6.



Figure 14.6 Dyson trade mark representations

The representations were accompanied by the text: ‘The mark consists of a transparent bin or collection chamber forming part of the external surface of a vacuum cleaner as shown in the representation.’

The application was turned down on various absolute grounds and, on appeal to the English High Court, questions on acquired distinctiveness were referred to the ECJ. However, the ECJ found it necessary to answer the prior question (raised of its own motion) of whether the mark applied for even constituted a ‘sign’ within the meaning of the TMD. It was common ground that the subject matter of the application was not a particular type of transparent collecting bin, but rather ‘in a general and abstract manner, all the conceivable shapes of such a collecting bin’.¹⁹ The representations which Dyson had filed were intended as only examples. The ECJ highlighted that what had been applied for was, as a result, capable of ‘a multitude of different appearances’. The subject matter of the application was therefore not specific or something which was capable of being perceived visually.²⁰ The ECJ highlighted concerns over the anti-competitive impacts of letting such subject matter be registered.²¹

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↪ Given the exclusivity inherent in trade mark right, the holder of a trade mark relating to such a non-specific subject matter would obtain an unfair competitive advantage ... since it would be entitled to prevent its competitors from marketing vacuum cleaners having any kind of transparent collecting bin on their external surface, irrespective of its shape.

The subject matter of the application was a ‘mere property of the product’ and did not constitute a ‘sign’ within the meaning of what was then Article 2 of the Directive and is now Article 4 TMD 2015.²²

14.13 Thus there will be some subject matter that is unregistrable because it does not constitute a ‘sign’. Further cases illustrate that the requirement for a ‘sign’ may have significant bite where there is imprecision in the filing of the application or attempted over-reach in what is claimed. As the ECJ put it in *Heidelberger Bauchemie*, a sign ‘must always be perceived unambiguously and uniformly, so that the function of a mark as an indication of origin is guaranteed’.²³ A key consideration is whether the claimed ‘sign’ is so broad that it is capable of multiple embodiments. For example, in *Société des Produits Nestlé SA v Cadbury UK Ltd*, the English Court of Appeal rejected as not constituting a ‘sign’ a trade mark application by Cadbury.²⁴ The mark applied for was described in the application as: ‘The colour purple (Pantone 2685C), as shown on the form of application, applied to the whole visible surface, or being the predominant colour applied to the whole visible surface, of the packaging of the goods’. The reference to this colour as the ‘predominant’ colour of the packaging was problematic. As noted by Sir John Mummery, the use of this word ‘opens the door to a multitude of different visual forms’.²⁵ As he put it:²⁶

If the colour purple is less than total, as would be the case if the colour is only ‘predominant’, the application would cover other matter in combination with the colour, but not graphically represented or verbally described in the specific, certain, self-contained and precise manner required. The result would not be an application to register ‘a sign’, in the accepted sense of a single sign conveying a message, but to register multiple signs with different permutations, presentations and appearances, which are neither graphically represented nor described with any certainty or precision, or at all.

In a more recent ruling by the UK IPO which was partially upheld and partially overruled on appeal, Cadbury has had varying degrees of success with differently-worded descriptions of the ‘Cadbury purple’ mark.²⁷ In another case before the English Court of Appeal in *JW Spear & Sons Ltd, Mattel Inc and Mattel UK Ltd v Zynga Inc*,²⁸ the court upheld the invalidation of a trade mark registration intended to represent a blank Scrabble tile. The representations of the mark are shown at Figure 14.7 and were accompanied by this description: ‘The mark consists of a three-dimensional ivory-coloured tile on the top surface of which is shown a letter of the Roman alphabet and a numeral in the range 1 to 10.’ It was held that this did not constitute a ‘sign’ because of the numerous different ‘permutations, presentations and combinations’ of these features which were possible.²⁹

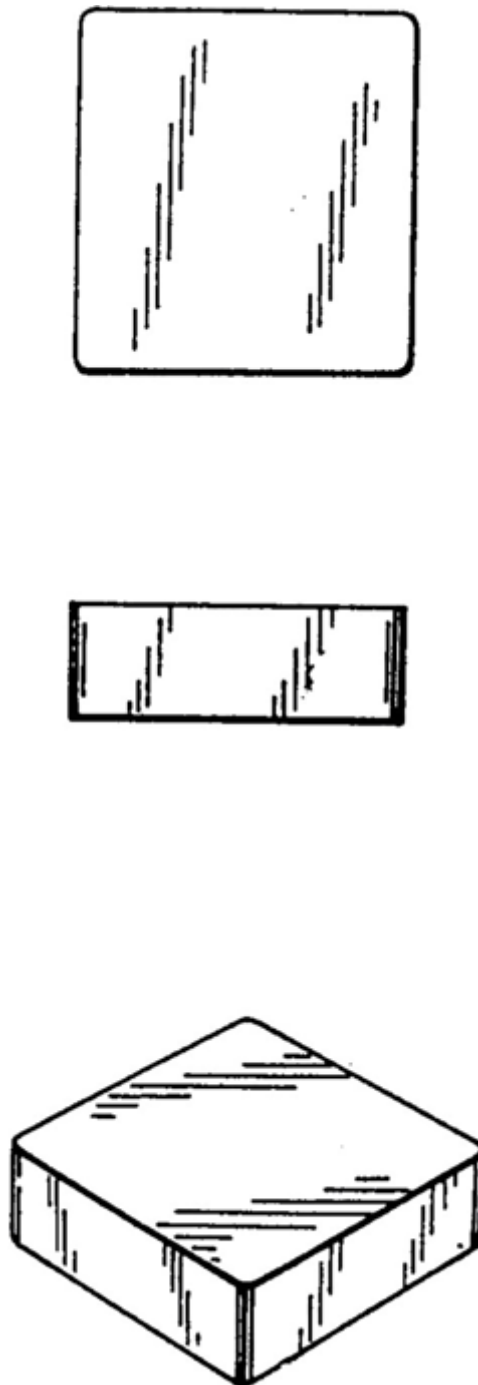


Figure 14.7 JW Spear & Sons Scrabble tile representations

p. 548 **Representation on the register**

14.14 As noted above, there is no longer a requirement at section 1(1) TMA 1994 that a mark must be capable of being represented ‘graphically’. However, for the reasons explained further below, a good understanding of the case law on graphic representation is still needed to assist in interpreting the new law.

14.15 The first case before the ECJ to consider the requirement of graphic representation was *Sieckmann v Deutsches Patent- und Markenamt*.³⁰ This concerned an application to register an odour (sometimes called an 'olfactory' mark). The applicant had submitted an odour sample in a container, which he described as 'balsamically fruity with a slight hint of cinnamon' and a written description giving the chemical formula of the relevant substance ($C_6H_5-CH=CHCOOCH_3$).

Question

When you read the description 'balsamically fruity with a slight hint of cinnamon', does a particular smell come to mind? Can you be sure exactly how the applicant's odour actually smelled?

p. 549 ↩ Unlike in the current version of section 1(1) TMA 1994, at the time of this case the definition of a registrable trade mark only explicitly mentioned examples of different sorts of visually perceptible marks. The first question before the ECJ was whether the then requirement of 'graphic' representation meant that only signs which were capable of being perceived visually could be registered. If not, the next question was how (if at all) the applicant's smell mark could be graphically represented. The ECJ held that a registrable trade mark could consist of a sign which in itself may not be capable of being perceived visually, provided that it could be represented graphically. That graphic representation had to enable the sign to be represented visually, for example through images, lines, or characters, so that it could be precisely identified. The representation had to be:³¹

- clear;
- precise;
- self-contained;
- easily accessible;
- intelligible;
- durable; and
- objective.

These criteria became known as the '*Sieckmann* seven'. The ECJ emphasised the role of the requirement of graphic representation in the sound administration of the trade mark registration system.³² This requirement was intended to define the mark so that it was possible to determine the precise subject of trade mark protection. This was essential both for the relevant authorities and the public, particularly other economic operators: the authorities so that they could carry out examination of applications and maintain a 'precise' register of trade marks; other economic operators so that they could check and know what competitors claimed as their rights.³³

14.16 With the removal of the requirement of ‘graphic’ representation, in section 1(1) TMA 1994 the requirement is now that the sign must be capable of being ‘represented in the register in a manner which enables the registrar and other competent authorities and the public to determine the clear and precise subject matter of the protection afforded to the proprietor’. Clarity and precision are the key criteria. The recitals to the TMD 2015 add important further detail.³⁴

In order to fulfil the objectives of the registration system for trade marks, namely to ensure legal certainty and sound administration, it is also essential to require that the sign is capable of being represented in a manner which is clear, precise, self-contained, easily accessible, intelligible, durable, and objective. A sign should therefore be permitted to be represented in any appropriate form using generally available technology, and thus not necessarily by graphic means, as long as the representation offers satisfactory guarantees to that effect.

As we can see, this opens up the possibility of using any form of ‘generally available technology’ to represent a mark. The UK IPO and EUIPO will now accept a wide range of filing formats: details can be found for UK applications in the ‘Manual of trade marks practice’,³⁵ and for EUTM applications in the European Union Trade Mark Implementing Regulation 2018/626/EU (EUTMIR). As the recitals to the TMD 2015 and EUTMR 2017 also make clear, however, the ‘*Sieckmann* seven’ will also remain relevant going forward.

p. 550 **14.17** Where does this leave non-conventional trade marks? As far as smells are concerned, in *Sieckmann*, the ECJ held that it was not possible to graphically represent an odour by means of the chemical formula of the relevant substance: this was not sufficiently intelligible, clear, or precise, nor did it actually represent the odour itself. Neither would the requirement for graphic representation be satisfied by a written description (not clear, precise, or objective) or by the provision of an odour sample (not durable or, in any event, a form of graphic representation). Attempts to register ‘taste marks’ faced similar difficulties.³⁶ Even with the requirement for ‘graphic’ representation removed, it is still hard to see how smells or tastes could be represented using ‘generally available technology’ in a way which would be sufficiently clear or precise for the current requirements of section 1(1) TMA 1994.

Question

Think back to the discussion in Chapter 13 about the ‘essential function’ of trade marks as indicators of the origin of goods and services. With this in mind, what is your view on whether smells and tastes operate as trade marks? Can you think of any examples of smells or tastes which are relied upon by consumers as an indication of origin?

14.18 Under the old rules, other forms of non-conventional mark were more easily represented graphically in accordance with the *Sieckmann* criteria. In the early case of *Shield Mark BV v Joost Kist*,³⁷ the ECJ considered various sound marks relating to the opening of Beethoven’s *Für Elise* and (separately) the sound of a cockcrow. These were represented in different ways, including (for the *Für Elise* marks) using a musical stave

and the written sequence of notes 'E, D#, E, D#, E, B, D, C, A' and (for the cockcrow marks) the onomatopoeia 'Kukelekuuuuu' (the Dutch equivalent to the English 'cock-a-doodle-do') and the written description 'a cockcrow'. The Court ruled that the *Sieckmann* criteria were not met by textual written description, onomatopoeia, or by merely stating the sequence of musical notes. However, the *Sieckmann* criteria were satisfied if a sound mark was represented in full musical notation (by a stave divided into bars with a clef, musical notes, rests, and so on), as this would give a 'faithful representation' of the sequence of sounds forming the melody for which registration was sought.³⁸ While this gave applicants a way to represent sound marks, this was poorly suited for sounds which could not be reduced to musical notation. In 2005, the EUIPO started to accept sound files as part of applications to register sound marks.³⁹ Now, at both the UK IPO and EUIPO applicants now have a choice between using an audio file or, where appropriate, an accurate representation of the sound in musical notation.⁴⁰

14.19 Under the old rules, it was also possible to represent graphically a pure colour mark in accordance with the *Sieckmann* criteria. In *Libertel Groep BV v Benelux-Merkenbureau*,⁴¹ Libertel applied to register the colour orange as a trade mark for telecommunications goods and services. The application contained an orange-coloured rectangle together with the word 'orange'. The ECJ held that the *Sieckmann* criteria could not be satisfied by reproducing on paper a sample of the colour in question: this did not satisfy the requirement of durability. A verbal description might also not be adequate. However, a colour sample together with a designation of the colour using an internationally recognised identification code (such as the Pantone system) would be sufficient. This remains the approach to be used under the current rules for both UK and EUTM applications.⁴²

p. 551 **14.20** It was, however, harder to register abstract combinations of colours and is likely to remain so, even under the new rules. In *Heidelberger Bauchemie GmbH*,⁴³ the applicant sought to register a two-colour combination of blue and yellow for a range of building products. The applicant submitted a rectangular colour sample, the upper half of which was blue and the lower half of which was yellow. It also included a written description with colour codes and the explanation: 'The trade mark applied for consists of the applicant's corporate colours which are used in every conceivable form, in particular on packaging and labels.' Aside from the question of whether this constituted a 'sign' (see para 14.11), the Court held that a graphic representation of a combination of two or more colours, designated in the abstract and without contours, needed to be 'systematically arranged by associating the colours concerned in a predetermined and uniform way'.⁴⁴ The 'mere juxtaposition' of colours without shape or contours, or reference to use of those colours in 'every conceivable form' was not sufficiently precise. The current rules for both UK and EUTM applications adopt the same approach, requiring a reproduction of the mark 'that shows the systematic arrangement of the colour combination in a uniform and predetermined manner' as well as colour code details for the colours in question.⁴⁵

14.21 These requirements demonstrate that, in practical terms, registering an abstract colour combination may be hard to achieve for a corporate livery the precise appearance of which will differ from one product to another when applied to different goods. Examples of failed attempts to register colour combinations can be found, at the EU level, in *Red Bull GmbH v EUIPO* and, in the UK, in *Glaxo v Sandoz*:

■ ***Red Bull GmbH v EUIPO Joined Cases T-101/15 and T-102/15 (General Court) [2018] ETMR 11; C-124/18 P (ECJ) [2019] ETMR 57***

This case concerned two registrations by Red Bull for a combination of two colours, blue and silver. Both registrations were accompanied by a colour sample, showing the colours one above the other. In the first registration, the colour sample was accompanied by the written description: 'Protection is claimed for the colours blue (RAL 5002) and silver (RAL 9006). The ratio of the colours is approximately 50%–50%.' In the second registration, the colour sample was registration by the written description: 'The two colours will be applied in equal proportion and juxtaposed to each other.' The registrations were invalidated by the EUIPO Cancellation Division and Board of Appeal. On appeal to the General Court (GC), those invalidations were upheld. Citing *Heidelberger Bauchemie*, the GC held that the written descriptions did not provide additional precision on what the systematic arrangement of the two colours was said to be. The only information that was provided was that each colour would occupy one half of the total space occupied by both: the written descriptions did not stipulate the relevant spatial positions of the two colours (eg side by side, or one above the other). The colours were not associated in a predetermined or uniform way, and it was possible that there would be several different combinations of the two colours. The GC's ruling was upheld on appeal to the ECJ.

■ ***Glaxo Wellcome UK Ltd (t/a Allen & Hanburys), Glaxo Group Ltd v Sandoz Ltd [2017] ETMR 27 (Court of Appeal)***

This dispute concerned the validity of an EUTM registered in respect of asthma inhalers. The registration contained the representation of the mark shown at Figure 14.8.



Figure 14.8 Glaxo trade mark representation

↵ This was accompanied by the description: ‘The trade mark consists of the colour dark purple (Pantone code 2587C) applied to a significant proportion of an inhaler, and the colour light purple (Pantone code 2567C) applied to the remainder of the inhaler.’ The Court of Appeal upheld the lower court’s conclusion that the mark was invalid. The written description referred to ‘an inhaler’, not just the specific inhaler shape shown in the representation. It was, however, hard to understand how the arrangement of colours shown in the representation would appear if applied to a differently shaped inhaler. Kitchen LJ commented: ‘I believe that the public, including economic operators, looking at the certificate of the Trade Mark on the register, would be left in a position of complete uncertainty as to what the protected sign actually is.’⁴⁶ The application lacked the necessary clarity, intelligibility, precision, specificity, or accessibility and permitted numerous different combinations of the dark and light purple colours.

Question

How likely do you think it is that a trade mark applicant can adequately represent an abstract colour combination, such as a corporate livery applied to different products, following these cases?

14.22 In addition to the above, there are further rules and guidance for UK and EUTM applications setting out the forms of representation acceptable for further different types of mark. For example, three-dimensional shape marks may be represented using photographic or graphic reproduction of the shape (including computer-generated imaging) showing the shape from different views.⁴⁷ ‘Position marks’—that is, marks consisting of the specific way in which a mark is placed or affixed to the relevant goods—can be represented using a reproduction which accurately identifies the position of the mark and its size or proportion with respect to the relevant goods, disclaiming elements not forming part of the claimed mark using visual means such as broken or dotted lines.⁴⁸ ‘Pattern’ marks are to be represented using a reproduction showing the pattern of repetition of the pattern elements.⁴⁹ Motion, multi-media, and hologram marks can be filed using video or audio-visual files.⁵⁰ Other types of filing not foreseen in these specific categories must comply with the general standards discussed above.⁵¹ For some filings (but not all) an accompanying written description may be required or permitted.⁵²

Key points on the definition of a registrable trade mark

- The subject matter applied for must constitute a 'sign'. This requires the subject matter to be specific: something which is capable of taking on a multitude of different appearances will not be registrable.
- Since the 2015 reform package, the requirement of 'graphic' representation has been abolished. However, the mark must still be capable of being represented on the register in a way which enables the competent authorities and the public to determine the 'clear and precise' subject matter of the protection afforded by registration.
- ↵ Many trade marks will still satisfy these requirements by use of graphic representation. However, new and different formats for representing a mark, such as sound, video, or audio-visual files, can now also be used. However, the recitals to the TMD 2015 and EUTMR 2017 still require that, in order to be registrable, a sign should be clear, precise, self-contained, easily accessible, intelligible, durable, and objective. As a result, earlier case law from the ECJ (*Sieckmann* and later cases) is likely to remain relevant.

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Discussion point

For answer guidance visit www.oup.com/he/brown6e <<https://iws.oupsupport.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-14-guidance-on-answering-the-discussion-points?options=showName>>.

How much of a difference do you think that the changes to the definition of a registrable trade mark introduced by the 2015 reform package will make in practice? How many marks not previously considered capable of graphic representation will now be capable of adequate representation on the register?

The specification of goods and services

14.23 When considering key aspects of registered trade mark law (including distinctiveness, infringement, and revocation), the mark is not considered in isolation but in relation to the goods or services claimed in the trade mark filing. We therefore also need to consider the rules that have developed around the drafting of the specification of goods and services which forms a vital part of every trade mark application. Importantly, neither the Directive nor the Regulation as originally enacted contained any provisions on this. Despite this, in early case law the ECJ signalled its willingness to rule on matters relating to the specification of goods and services.⁵³ The most important developments address three inter-linked issues: the use of Nice classification

‘class headings’ for the text of the specification; the need for clarity and precision in the drafting of the specification; and how to deal with over-claiming through the inclusion of goods or services for which the applicant does not actually intend to use the mark.

14.24 Looking first at use of Nice classification class headings, as we saw in Chapter 13 the Nice classification system allocates goods and services into 45 different classes. Within the Nice classification, the heading for each class summarises (in a non-exhaustive way) the general type of goods or services falling within that class. For example, the class heading for Class 8 reads: ‘Hand tools and implements, hand-operated; cutlery; side arms, except firearms; razors’. There had been a practice in some EU member states of trade mark applicants using the Nice class heading as their trade mark specification. There were two longstanding, but opposing, views on what goods and services were actually claimed this way. On one view, using the Nice class heading meant that all possible goods or services within that class were thereby claimed, whether mentioned in the class heading or not. The opposing view was that the goods and services were limited literally to those referred to in the text of the class heading. Whichever approach was taken produced a very different understanding of what goods and services were claimed. Uncertainty threatened the objective that trade marks should enjoy the same protection across member states.

p. 554 **14.25** The issue came before the ECJ in *IP TRANSLATOR*.⁵⁴ The Chartered Institute of Patent Attorneys applied for registration in the UK of the mark *IP TRANSLATOR* for services in class 41, using the class heading for Nice class 41 (‘education; providing of training; entertainment; sporting and cultural activities’) as the specification. The UK IPO took the view that this covered all services in class 41 and rejected the application for non-distinctiveness and descriptiveness in relation to ‘translation services’ (which fall within class 41), even though translation services were not mentioned in the specification as filed. The decision was appealed and questions referred to the ECJ on the use of Nice class headings. The Court responded by stressing that the specification of goods and services needs to be sufficiently clear and precise to enable the competent authorities and economic operators, on that basis alone, to determine the extent of protection sought.⁵⁵ While some Nice class headings might be sufficiently precise, others might not: use of class headings was not precluded, but whether the requirements of clarity and precision were met was to be assessed on a case-by-case basis.⁵⁶ An applicant had in any event to specify whether the application was to cover all of the goods and services in the class or only some, and if so, which.⁵⁷ The 2015 reforms subsequently codified the *IP TRANSLATOR* ruling and the rules for UK trade mark applications can now be found in the Trade Mark Rules 2008 (as amended).⁵⁸ These repeat the requirements of clarity and precision from *IP TRANSLATOR*, requiring that UK trade mark applications must describe the goods and services claimed.⁵⁹

with sufficient clarity and precision to enable the registrar and other competent authorities and economic operators, on that sole basis, to determine the extent of the protection sought ...

The statutory updates made pursuant to the 2015 reform package also formally adopt the approach that use of class headings shall *not* be taken to cover all goods or services within the class. Instead, the language of the specification will be construed literally.⁶⁰

Where the specification contained in the application describes the goods or services using general terms, including the general indications included in the class headings of the Nice Classification, the application shall be treated as including only the goods or services clearly covered by the literal meaning of the term or indication.

Corresponding provisions for EUTMs can be found at Article 33 EUTMR 2017.

14.26 The upshot of this is an important new set of rules governing the drafting of trade mark specifications. Above all, the most critical of these are the new requirements of clarity and precision in the drafting of the specification. These requirements to apply to all trade mark applications, not just those using Nice class headings. However, neither *IP TRANSLATOR* nor the 2015 reforms specified what the consequences should be of failure to comply with these new requirements. This left major uncertainty as to the legal implications if a trade mark specification did not meet the requisite standards of clarity and precision.

14.27 Questions on this were referred to the ECJ by the English High Court in *Sky Plc v Skykick UK Ltd*.⁶¹ In this dispute, Skykick challenged the validity of various registrations for the mark SKY which claimed a vast range of goods and services, including some broadly-worded goods descriptors such as ‘computer software’ and ‘data storage’. The High Court asked whether a trade mark registration could be declared wholly or partially invalid if some or all of the terms in the specification lacked sufficient clarity and precision. The ECJ ruled on the case in 2020, before the end of the Brexit transition period. The ECJ held that lack of clarity and precision cannot in itself constitute a ground for invalidation: the grounds for invalidation explicitly set out in the Directive and Regulation are exhaustive, and do not include lack of clarity and precision in the drafting of the specification.⁶²

p. 555 **14.28** However, this was not the end of the matter. In *Skykick*, the High Court also asked whether it can constitute bad faith to register a mark without any intention to use it in relation to the specified goods or services. As we shall see in the fuller discussion of the ‘bad faith’ objection below, acting in bad faith when filing an application provides an absolute ground for refusal and invalidation of a UK trade mark under the TMA 1994 and a ground of post-grant invalidation for EUTMs under the EUTMR 2017.⁶³ In this case, although some items in Sky’s specifications could be explained as covering avenues of potential future use, registration in respect of other items (eg ‘fuel additives’ and ‘whips’) could not be explained on that basis. It was also argued that Sky would not ever use its marks in relation to all goods covered by descriptors such as ‘computer software’ and ‘data storage’.

14.29 In its ruling, the ECJ accepted that, at the point of filing, a trade mark applicant is not required to indicate or even to know precisely what use they will make of the mark applied for; under the rules on revocation for non-use, the applicant has five years to begin actual use of the mark.⁶⁴ However, there could be bad faith if an application were made without any intention to use the mark in relation to the goods and services claimed ‘where there is no rationale for the application for registration’ in the light of the aims of the Directive and the Regulation.⁶⁵ The ECJ explained:⁶⁶

Such bad faith may ... be established only if there is objective, relevant and consistent indicia tending to show that, when the application for a trade mark was filed, the trade mark applicant had the intention either of undermining, in a manner inconsistent with honest practices, the interests of third parties, or of obtaining, without even targeting a specific third party, an exclusive right for purposes other than those falling within the functions of a trade mark.

Bad faith cannot be presumed merely on the basis that, at the time the application was filed, the applicant had no economic activity corresponding to the goods and services referred to in the specification.⁶⁷

14.30 When the *Skykick* case returned to the High Court, the judge at first instance concluded that Sky's trade mark applications had been partially applied for in bad faith and cut down some of the more broadly-worded goods descriptors (including 'computer software' and 'data storage') to more limited formulations which were more closely related to the goods upon which Sky had actually used the marks.⁶⁸ However, this decision was reversed on appeal. The Court of Appeal emphasised that lack of intention to use does not on its own constitute bad faith and that bad faith will only arise where the lack of intention to use is coupled with objective, relevant, and consistent indicia of the additional intention identified in the paragraph quoted from the ECJ judgment above.⁶⁹ While it was possible that there might have been bad faith in relation to some of the more obscure goods applied for in Sky's trade mark applications (a matter which was not ultimately decided), that was not the case for goods such as 'computer software' where Sky did have a substantial business under the contested trade marks.⁷⁰ Giving the leading judgment of the Court of Appeal, Sir Christopher Floyd noted:⁷¹

It is true that Sky had no prospect of using the mark in relation to every conceivable sub-division of computer software, but that fact is not, in my judgment, a relevant or objective indication of bad faith.

He confirmed that a trade mark applicant 'does not have to formulate a commercial strategy for using the mark in relation to every species of goods or services falling within a general description'.⁷² The extent of the reputation enjoyed by the sign might also justify the applicant's interest in seeking wider trade mark protection.⁷³ Although determinations of bad faith in the drafting of trade mark specifications will always be fact-specific, the Court of Appeal's approach in *SkyKick* would suggest that existing drafting practices around the use of more broadly-encompassing terms such as 'computer software' may not need to change as much as some had anticipated (or feared). However, the position is not yet fully settled: at the time of

writing, the UK Supreme Court (UKSC) has granted *Skykick* leave to appeal against the Court of Appeal's ruling, and it remains to be seen how the UKSC may decide the issues.

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Key points on the specification of goods and services

- The goods and services claimed in a trade mark specification must be described with sufficient clarity and precision to enable the registrar and other competent authorities and economic operators, on that sole basis, to determine the extent of the protection sought.
- Nice class headings can be used in the specification provided that they are sufficiently clear and precise to enable the competent authorities and public, on that basis alone, to determine the extent of protection sought. Specifications framed in general terms, including through the use of Nice class headings, will be read literally: they will not be taken to include any goods or services which do not fall within a literal reading of the terms used.
- Failure to comply with the requirement of clarity and precision in relation to the trade mark specification is not in itself a ground for invalidation of the trade mark registration. However, applying to register a mark in relation to goods or services for which there is no intention to use the mark may constitute bad faith. This will only arise where there are objective, relevant and consistent indicia tending to show that, when the application for a trade mark was filed, the trade mark applicant had the intention either of undermining, in a manner inconsistent with honest practices, the interests of third parties, or of obtaining, without even targeting a specific third party, an exclusive right for purposes other than those falling within the functions of a trade mark.

Non-distinctive, descriptive, and customary marks

Sections 3(1)(b), (c) and (d) TMA 1994

14.31 The absolute grounds for refusal of a trade mark application are set out at section 3 TMA 1994 for UK trade marks and Article 7 EUTMR 2017 for EUTMs.⁷⁴ The ground for refusal at section 3(1)(a) TMA 1994 refers to ‘signs which do not satisfy the requirements of section 1(1)’ and provides the basis for rejecting applications which do not satisfy the definition of a registrable trade mark already discussed. Beyond this, sections 3(1)(b)–(d) TMA 1994 constitute the most important absolute grounds of objection to a trade mark application. They may come into play in a wide variety of cases. Under these provisions, the following may not be registered:

- trade marks which are devoid of any distinctive character (s 3(1)(b) TMA 1994) (non-distinctive marks);
- trade marks which consist exclusively of signs or indications which may serve, in trade, to designate the kind, quality, quantity, intended purpose, value, geographical origin, or the time of production of the goods or of rendering of the service, or other characteristics of the goods or service (s 3(1)(c) TMA 1994) (descriptive marks);

- trade marks which consist exclusively of signs or indications which have become customary in the current language or in the bona fide and established practices of the trade (s 3(1)(d) TMA 1994) (customary marks).

Each of these objections yields to the proviso (discussed at paras 14.63–14.76) that, even though a mark may fail these tests, if it can be shown that the mark has acquired a distinctive character as a result of the use that has been made of it, then the mark may be registrable. So, if a mark is not inherently distinctive (distinctive by nature), if it is used and it can be shown through that use to have become distinctive (distinctive by nurture) within the relevant time period, then it will be capable of registration.

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14.32 Sections 3(1)(b)–(d) TMA 1994 are central to trade mark law in delineating what can and what cannot be registered as a mark. They have, unsurprisingly, generated a good deal of case law. The more relaxed the legal standards on what marks may be registered, the fewer marks may remain in the public domain for competing traders to use. This is a particular concern where a mark may be one that competitors may wish, legitimately, to use in the course of their own trade, such as a descriptive or allusive term or one which is generally used to describe the characteristics of the relevant goods. There is also an important policy decision to be made as to how far the interests of competitors should be taken into account ‘up front’ at this stage by refusing trade mark applications, or should be left to be dealt with on a case-by-case basis by allowing marks to be registered and tackling competitor interests through the defences to infringement. On this issue, the ECJ rejected early on the argument that competitor interests were adequately protected via the defences to infringement. Instead, the ECJ emphasised that there should be ‘stringent and full’ examination of trade mark applications ‘in order to prevent trade marks from being improperly registered’.⁷⁵

Question

When considering what signs should be excluded from registration, when and how do you think that the respective interests of the trade mark owner, the competitor, and the consumer should be balanced? Explain and justify your response.

14.33 Each of the absolute grounds for refusal is independent of the others and requires separate examination.⁷⁶ Nonetheless it is also accepted that objections may overlap.⁷⁷ For example, a mark which is descriptive will also, by definition, be non-distinctive. Importantly, the absolute grounds for refusal must be interpreted in the light of the general interest underlying each of them, which differs from objection to objection.⁷⁸ The objections must be assessed in relation to all goods and services listed in the specification: a trade mark may be objectionable in relation to some goods and services but not others, and different grounds of objection may apply to in relation to different goods and services. For EUTMs, an objection will act as a bar to registration even if it applies in only part of the EU.⁷⁹

Distinctiveness

Section 3(1)(b) TMD 1994

14.34 Much of the case law deals with trade marks challenged for being devoid of distinctive character. This is not concerned with linguistic or artistic creativity or imaginativeness.⁸⁰ The paramount consideration is the need to ensure that the mark applied for functions as an indication of origin—in other words, that it is capable of distinguishing the goods and services of one trader from those of another. As the ECJ said in *SAT.1*, the public interest underlying the distinctiveness requirement is ‘manifestly, indissociable from the essential function of a trade mark’.⁸¹

p. 558 ↪ 14.35 In *Libertel*,⁸² the pure colour mark case discussed at para 14.19, the ECJ also considered ‘colour depletion’ concerns as part of the underlying rationale for the distinctiveness requirement. It said:⁸³

the fact that the number of colours actually available is limited means that a small number of trade mark registrations for certain services or goods could exhaust the entire range of colours available. Such an extensive monopoly would be incompatible with a system of undistorted competition, in particular because it could have the effect of creating an unjustified competitive advantage for a single trader.

There was therefore ‘a public interest in not unduly restricting the availability of colours for the other operators who offer for sale goods or services of the same type as those in respect of which registration is sought’.⁸⁴ However, the ECJ subsequently rejected attempts to bring a broader ‘availability’ public interest into the ambit of the distinctiveness test.⁸⁵ Such considerations are relevant to the requirement of descriptiveness (at s 3(1)(c) TMD 1994), but not the requirement of distinctiveness. In case law since *Libertel*, the focus of the Court’s distinctiveness rulings has remained very much on the mark’s ability to perform the essential function of indicating origin as the key public interest consideration.

14.36 For a mark to be considered distinctive, it ‘must serve to identify the product in respect of which registration is applied for as originating from a particular undertaking, and thus to distinguish that product from products of other undertakings’.⁸⁶ Distinctiveness must be assessed by reference to the goods and services applied for and the perception of the average consumer of those goods or services.⁸⁷ To be inherently distinctive, the mark must immediately enable consumers to distinguish the goods or services bearing the mark from the goods or services of competing undertakings.⁸⁸

14.37 The ECJ has repeatedly insisted that the test of distinctiveness is the same for all types of mark.⁸⁹ However, this finding is somewhat contradicted by certain quasi-factual principles which the Court has also developed. According to the Court, it may be harder in practice to establish the distinctiveness of marks consisting of, say, the shape of goods compared to more traditional forms of mark such as words or a logo.⁹⁰ The Court has stressed that the average consumer is not in the habit of making assumptions about the origin

of products on the basis of features such as the shape of the goods, their colour, or the shape of their packaging.⁹¹ As a result, although the requirement of distinctiveness is ostensibly the same for all categories of mark, in practice it is harder to meet for many non-conventional marks.

Discussion point

For answer guidance visit www.oup.com/he/brown6e <<https://iws.oup.support.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-14-guidance-on-answering-the-discussion-points?options=showName>>.

What is your view on the ECJ's assumptions about the consumer perception of different categories of mark? Do you think that it is right to say that consumers do not understand aspects of product presentation, such as shape, as indicators of trade origin? Do you think that consumer perception may have evolved at all since the case law on this issue first developed?

p. 559 Descriptiveness

Section 3(1)(c) TMD 1994

14.38 The policy underlying the descriptiveness objection is that marks falling within its scope should be freely available for use by all. According to the ECJ, the old Article 3(1)(c) TMD 2008 (corresponding to s3(1)(c) TMA 1994):⁹²

pursues an aim which is in the public interest, namely that descriptive signs or indications relating to the characteristics of goods or services in respect of which registration is applied for may be freely used by all ... Article 3(1)(c) therefore prevents such signs and indications from being reserved to one undertaking alone because they have been registered as trade marks.

The English Court of Appeal has explained the underlying rationale of this objection in similar terms:⁹³

The basic aim ... is obvious: to prevent an undue monopoly in the course of trade of a designation that may be used descriptively of a service or of any of its characteristics. It is in the general public interest that undertakings should be able to describe freely any characteristic of their own service ...

14.39 To be refused for descriptiveness or to invalidate an existing registration on this ground, there is no need to show that the mark is currently being used descriptively by other traders: it is unregistrable if it is capable of being so used.⁹⁴ The descriptiveness objection does not depend on there being a real, current, or serious need to leave a sign or indication free, and it is irrelevant how many competitors have, or might have, an interest in using the contested mark.⁹⁵ It is also irrelevant whether there are other, more usual ways of designating the same characteristics of the relevant goods or services: there is no requirement that, to be

refused, a mark must be the only way of designating such characteristics.⁹⁶ The references to kind, quality, quantity, intended purpose, value, geographical origin, or the time of production of the goods or of rendering of the service do not constitute an exhaustive list of relevant 'characteristics'.⁹⁷ Marks objectionable for descriptiveness are those which serve to designate a property, easily recognisable by the relevant class of persons, of the goods or the services in respect of which registration is sought.⁹⁸ That does not have to be an important property or attribute of the relevant goods or services: a mark may be objectionable for descriptiveness whether the characteristic described is essential or merely ancillary.⁹⁹ The descriptiveness objection is not confined to word marks: as the ECJ has noted, there is nothing in principle which prevents this objection applying to 'a wide variety' of marks including, for example, shapes.¹⁰⁰ It is possible that a mark which is descriptive of some goods or services and thus unregistrable would be registrable in connection with other goods or services for which it is distinctive.¹⁰¹

Customary marks

Section 3(1)(d) TMD 1994

p. 560 **14.40** This objection excludes from registration signs or indications which have become customary in the current language or in the *bona fide* and established practices of the trade. In essence, this is directed at marks which may at one time have been distinctive, but which have become generic by the time the trade mark application is filed. According to the ECJ, the purpose of this objection is to prevent registration of signs or indications which are not capable of distinguishing the goods or services of one undertaking from those of others.¹⁰²

14.41 For this objection to bite, the mark must have become customary in the current language or in the *bona fide* and established practices of the trade to 'designate' the goods or services in respect of which registration is sought.¹⁰³ However, the objection is not confined to marks which are descriptive of the properties or characteristics of the goods or services.¹⁰⁴ It may, for example, apply to advertising slogans or other indications of quality or incitements to purchase the relevant goods or services, if customary in current language or the relevant practices of the trade.¹⁰⁵ In terms of what constitutes 'the trade', in *Alcon v OHIM* the ECJ heard an appeal relating to an invalidity dispute over the mark 'BSS' which had been registered for ophthalmic pharmaceutical preparation and sterile solutions for ophthalmic surgery.¹⁰⁶ The validity of the registration was challenged as being contrary to what is now Article 7(1)(d) EUTMR 2017, on the basis that 'BSS' was the common acronym for 'buffered salt solution' or 'buffered saline solution'. Whether this was the case was assessed from the perspective of ophthalmologists and ophthalmic surgeons practising in the EU. However, by analogy with further ECJ case law on revocation, the perspective of members of the relevant 'trade' may not always be the only relevant perspective: in some cases the perception of the final consumer may also be relevant.¹⁰⁷

Different categories of mark

14.42 Having considered the key principles governing distinctiveness, descriptiveness, and customary marks, it is instructive to look at how various different categories of trade mark have fared in terms of these absolute objections. In this section, we will run through various categories of trade mark. There have been a very great many decisions from the UK IPO, UK courts, EUIPO, GC, and ECJ, so the focus here is on a selection of key or illustrative cases.

Word marks

14.43 Examples abound of word marks rejected or invalidated for lack of distinctiveness, descriptiveness, or customariness. Simple stylisation will not save an otherwise objectionable word. For example, in *Starbucks (HK) Ltd v British Sky Broadcasting Group Plc* the English High Court proceeded on the basis that the mark shown at Figure 14.9 would be perceived by the average consumer as the word 'NOW'.¹⁰⁸ The mark was registered *inter alia* for telecommunications services in class 38. The registration was held invalid for descriptiveness on the basis that the word NOW would be understood by the average consumer as a description of the instant and immediate nature of the service.¹⁰⁹ This conclusion was unaffected by the figurative elements of the EUTM.¹¹⁰ Noting that it seemed that mark had only been registered in the first place because of those figurative elements but that the mark was nonetheless being enforced against signs which did not contain those figurative elements or anything like them, the judge cautioned:¹¹¹



Figure 14.9 'NOW' EUTM registration

Trade mark registries should be astute to this consequence of registering descriptive marks under the cover of a figurative figleaf of distinctiveness, and refuse registration of such marks in the first place.

p. 561 **Words from other languages**

14.44 The registrability of words from other languages was considered in *Matratzen Concord AG v Hukla Germany SA*,¹¹² concerning the trade mark ‘Matratzen’ registered in Spain in respect of furniture including beds and similar goods. ‘Matratzen’ means mattresses in German. Matratzen Concord sought to have the Spanish registration invalidated on the grounds that it was descriptive. The question referred to the ECJ was whether a mark could be registered in one member state if it was descriptive in the language of another member state. The ECJ observed that there was nothing specifically in what was then Article 3 TMD (corresponding to s 3 TMA 1994) on this point. It was necessary to assess the perception of the relevant parties, in trade and among average consumers: because of linguistic, cultural, social, and economic differences between member states, a trade mark which is devoid of distinctive character or descriptive of the relevant goods or services in one member state may not be so in another member state.¹¹³ The determining factor for registrability would be how the term would be understood by the relevant parties in the state where registration was sought. Articles 4(1)(b) and (c) TMD 2015 and corresponding provisions in the TMA 1994 and EUTMR 2017 do not preclude the registration, as a national trade mark, of a term borrowed from the language of another member state in which it is devoid of distinctive character or descriptive.¹¹⁴

unless the relevant parties in the Member State in which registration is sought are capable of identifying the meaning of the term.

14.45 There was an attempt by the European Commission to change this rule in the 2015 reform package, aiming to make marks unregistrable in any EU member state if descriptive in the language of any other EU member state. However, this met with opposition and did not make it into the TMD 2015. In the meantime, for an EUTM, distinctiveness and descriptiveness must be assessed with reference to all languages of the EU. Descriptiveness in one language will be enough to make a mark inherently unregistrable. The decision of the GC in the *Caffè Nero* case is a good example.¹¹⁵ The applicant sought to register the word mark CAFFÈ NERO as an EUTM for goods in class 30, including coffee, and retail services related to coffee in class 35. The application was refused for descriptiveness on the basis that ‘caffè nero’ was the Italian for ‘black coffee’. However, it may be possible to overcome this sort of objection by proof of acquired distinctiveness. In *Phonebook of the World v OHIM*, it was found that ‘PAGINE GIALLE’, Italian for ‘yellow pages’, was a validly registered EUTM: it was descriptive of telephone directories and related services in Italy, but it had become distinctive through use there, while in the rest of the EU the expression was not understood by the average consumer.¹¹⁶

p. 562 **Personal names**

14.46 Although personal names are regularly used by traders, there may be a challenge in showing that they are inherently distinctive. *Nichols Plc v Registrar of Trade Marks*¹¹⁷ concerned an application to register the surname ‘Nichols’ for vending machines and other goods. Stressing that no distinction is to be drawn between assessing the distinctiveness of names and other categories of marks, the Court rejected the imposition of stricter specific assessment criteria such as looking at the number of persons with the name (the UK IPO’s then practice was to look at telephone directories to determine how common a surname was) or at how commonly the relevant name was used in the trade.¹¹⁸ Neither could an application to register a name

be refused simply because registration might give to the first comer a competitive advantage.¹¹⁹ However, the ECJ did nonetheless stress that proving distinctiveness for names might be more difficult than for other marks because the perception of the public differs as between categories of marks.¹²⁰

Geographical place names

14.47 In *Windsurfing Chiemsee*, the ECJ made various comments on the registrability of geographical place names under what is now Article 4(1)(c) TMD 2015. In addition to the general public interest underlying the descriptiveness objection, it is in the public interest that signs which may designate the geographic origin of the goods applied for remain available because they may be an indication of the quality or other characteristics of the goods, and may influence consumer tastes by associating the goods with a place which gives rise to a favourable response.¹²¹ Registration will be refused both where the place name designates a geographical location which is already famous or known for the relevant goods and which is associated by consumers or traders with the category of goods concerned, and where, even if not so known at the time, it is reasonable to assume that such an association may be established in future.¹²² Factors to consider include the degree of familiarity among relevant persons with the place name, the characteristics of the place designated by that name, and the category of goods concerned.¹²³ However, registration of a place name is not precluded if the place name is such that consumers or traders are unlikely to believe that the category of goods concerned originates there.¹²⁴ In applying these rules the GC found that the name ‘Cloppenburg’ (the name of a town in Lower Saxony in Germany) was registrable in connection with retail services.¹²⁵ In contrast, an application to register the ‘CANARY WHARF’ as a UK trade mark for various goods and services, including real estate investment and related services, was refused.¹²⁶ The sign applied for was the name of a general business district and the services for which registration was sought were ‘precisely the kind of services one would expect to be offered by or to businesses in that district’.¹²⁷

Combinations of words

14.48 Much case law has revolved around the question of whether and in what circumstances combinations of words can be registered where one or both words might be taken to indicate the kind, quality, quantity, or intended purpose of the goods or services, or the combination as a whole is allusive of these matters. In *Baby-Dry*¹²⁸ the ECJ said that the descriptiveness objection at what is now Article 7(1)(c) EUTMR 2017 only related to marks which served ‘in normal usage’, from a consumer’s point of view, to designate the goods or services applied for, either directly or by reference to one of their essential characteristics.¹²⁹ According to the Court:¹³⁰

↵ any perceptible difference between the combination of words submitted for registration and the terms used in common parlance of the relevant class of consumers to designate the goods or services or their essential characteristics is apt to confer distinctive character on the word combination enabling it to be registered as a trade mark.

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The case concerned an application to register the mark 'BABY-DRY' for diapers in classes 16 and 25. The Court concluded that, while 'unquestionably' alluding to the function of the goods, the mark 'BABY-DRY' consisted of a 'syntactically unusual juxtaposition' of words which was not a familiar expression in English; it was a 'lexical invention' which was registrable.¹³¹

14.49 There was considerable disquiet at the generosity which this decision displayed in favour of registrability, with concerns that the Court had failed to appreciate the strength of the monopoly the first comer would obtain over descriptive marks as a result of the legal test which it had formulated. However, not long afterwards, the ECJ tightened the parameters of what would be acceptable. In *Wrigley v OHIM*¹³² the ECJ re-emphasised the public interest underpinning the descriptiveness objection at Article 7(1)(c). It was not necessary for a mark to be objectionable for the mark actually to be in use at the relevant time in a way which was descriptive of the goods or services applied for. It was sufficient that the mark could be used for such purposes. The mark should therefore be refused registration 'if at least one of its possible meanings designates a characteristic of the goods or services concerned'.¹³³ This time, the ECJ rejected the mark in suit ('DOUBLEMINT') as unregistrable.

14.50 Where a neologism (ie a new word) is created, it may not be registrable if it does not differ sufficiently from the sum of its parts.

■ **Case C-265/00 *Campina Melkunie BV v Benelux-Merkenbureau* [2004] ECR I-1699; [2005] 2 CMLR 9**

This case concerned an application to register the word 'BIOMILD' for various foodstuffs, including milk products. The application was rejected on the basis that it conveyed solely that the products were biological and mild. In giving judgment, the ECJ first stated that, as a general rule, 'the mere combination of elements, each of which is descriptive of characteristics of the goods or services in respect of which registration is sought, itself remains descriptive of those characteristics within the meaning of Article 3(1)(c) of the Directive even if the combination creates a neologism'.¹³⁴ Simply bringing those elements together 'without introducing any unusual variations, in particular as to syntax or meaning' could only result in a mark which was descriptive.¹³⁵ However, if there was a perceptible difference between the neologism and 'the mere sum of its parts'— in other words, if, because of the 'unusual nature' of the combined elements in relation to the goods or services, the combined word creates 'an impression which is sufficiently far removed from that produced by the mere combination of meanings lent by the elements of which it is composed'—then the mark may be registrable.¹³⁶

A recent example of a successful attempt to register a neologism as a UK trade mark concerned an application by Nike to register 'FOOTWARE' in respect of various computer hardware, software, and firmware items in class 9, telecommunication services in class 38, and application service provider services and services relating to cloud computing in class 42. The application was opposed by Puma under section 3(1)(c) TMA 1994. However, the UK IPO Hearing Officer rejected the contention that the mark was descriptive, noting:¹³⁷

p. 564

It seems to me that the word 'FOOTWARE', in the context of all of the goods and services for which registration is sought, is likely to be perceived as a play on the word 'FOOTWEAR'. Clearly, software, hardware and firmware ↵ have some application in footwear with embedded technology. The same can be said of the contested services in class 42: application interfaces may be used or data may be uploaded to the cloud ... I have no doubt that in today's connected world the average consumer would understand that embedded devices may use computer technology services to upload, interpret and store data remotely. The difficulty I have is that I doubt that the use of 'FOOTWARE' would be considered descriptive of such services. It seems to me that whilst the average consumer may ultimately deduce that 'FOOTWARE' means software or hardware (or related services) for footwear, specifically footwear with embedded technology, it is not a meaning which is immediately apparent or easily recognisable without some stretch of the imagination ... The mark is not descriptive and does not fall foul of s. 3(1)(c).

This finding was upheld on appeal to the High Court.¹³⁸

Slogans

14.51 In *Erpo Möbelwerk* the ECJ rejected the imposition of stricter criteria for assessing the distinctiveness of slogans as a category of marks: the fact that a sign is used as an advertising slogan, indication of quality or incitement to purchase does not per se exclude it from registration.¹³⁹ However, the caveat that the relevant public might not perceive a slogan as an indicator of origin applies. The case law was developed further in *Audi AG v OHIM*.¹⁴⁰ Audi sought to register the slogan 'Vorsprung durch Technik' ('Progress through technology') as an EUTM for goods in a wide range of classes. On appeal, the ECJ reiterated that 'it is inappropriate to apply to slogans criteria which are stricter than those applicable to other types of sign'.¹⁴¹ However, the relevant public's perception was not necessarily the same for slogans as for other marks and it could be more difficult to prove distinctive character.¹⁴² Imaginativeness was not a requirement.¹⁴³ A slogan can express even a simple objective message and yet still also be capable of indicating the commercial origin of the relevant goods or services to the consumer. This is particularly the case if the slogan is 'not merely an ordinary advertising message' but has 'a certain originality or resonance'.¹⁴⁴ Audi's slogan was accepted for registration.

Symbols and numerals

14.52 It can be difficult to demonstrate inherent distinctiveness for marks consisting of a single symbol. There is no requirement for a specific level of linguistic or artistic creativity or imaginativeness; what is required is an assessment of whether the mark at issue is capable of distinguishing the goods and services applied for, viewed by reference to the perception of the relevant public in the usual way.¹⁴⁵ In relation to an application for the Greek alpha symbol 'α' in class 33, while the ECJ noted that the distinctiveness test was the same as for any other mark, it also observed (as it has done for other categories of mark) that, for the purposes of applying that test, the relevant public's perception is not necessarily the same and it could prove more difficult to establish distinctiveness in relation to certain categories of mark.¹⁴⁶

p. 565 14.53 As regards numerals, in *Agencja Wydawnicza Technopol sp z oo v OHIM* the applicant sought to register the mark '1000' for brochures and periodicals in class 16.¹⁴⁷ Before the ECJ, the arguments focused on what is now Article 7(1)(c) EUTMR 2017. The Court emphasised that the fact that the mark was composed exclusively of numerals was not, in itself, a bar to registration.¹⁴⁸ The ECJ stressed that the word 'characteristic' 'highlights the fact that the signs referred to in Article 7(1)(c) ... are merely those which serve to designate a property, easily recognisable by the relevant class of persons, of the goods or the services in respect of which registration is sought'.¹⁴⁹ A sign can only be refused registration if it is reasonable to believe that it will actually be recognised by the relevant class of persons as a description of one of those characteristics.¹⁵⁰ Where the general public might believe that the sign '1000' as applied to a publication which could, for example, contain a collection of 1,000 crossword puzzles, then it was appropriate to refuse registration.

In contrast, where a number has no such signification, the objection will not apply. *WHG (International) Ltd, WHG Trading Ltd and William Hill Plc v 32Red Plc*¹⁵¹ concerned, inter alia, the validity of a UK trade mark registration for the number 32 registered in respect of, among other things, online casino services, including roulette. The Court of Appeal noted:¹⁵²

At the end of the day, the point is a very short one. In *Technopol* ..., 1000 was capable of describing a feature of the goods in respect of which registration was sought, such as the number of pages or works or the number of crossword puzzles in periodicals. The bare number 32 is not descriptive of any characteristic of the services provided by the respondent. It is merely an allusion to an aspect of the game which the punter will play if he or she uses the respondent's services. The number does not in any way characterise the respondent's services in the sense of describing what will be supplied.

Colours

14.54 In *Libertel*, the ECJ considered whether a pure colour mark could be considered to have inherent distinctiveness. Noting that the perception of the relevant public was not necessarily the same in relation to a sign consisting of a colour *per se* as it would be in the case of a word or figurative mark, the Court held that distinctiveness for a pure colour mark was 'inconceivable save in exceptional circumstances' in the absence of prior use.¹⁵³ However, a pure colour mark could be registrable on proof of acquired distinctiveness (see paras 14.63ff).

Three-dimensional marks

14.55 The ECJ emphasised in *Henkel KGaA v OHIM*¹⁵⁴ that, in principle, three-dimensional shape marks are registrable.¹⁵⁵ The key question is when a three-dimensional shape may be considered inherently distinctive. In *Henkel*, the preliminary reference concerned two applications to register the three-dimensional shapes of dishwasher detergent tablets featuring different coloured layers. The Court noted that the criteria for assessing the distinctiveness of three-dimensional shape marks are no different from those applicable to other categories of trade mark.¹⁵⁶ However, for the purpose of applying those criteria, the perception of the relevant public is not necessarily the same in relation to a three-dimensional shape mark as it is in relation to a word or figurative mark which is independent from the appearance of the products it denotes.¹⁵⁷ As the

Court put it, '[a]verage consumers are not in the habit of making assumptions about the origin of products on the basis of their shape or the shape of their packaging in the absence of any graphic or word element'.¹⁵⁸ The more closely a shape mark resembled the shape most likely to be taken by the product in question, the more likely it was to be devoid of distinctive character.¹⁵⁹ In the Court's view, only a shape which 'departs significantly from the norm or customs of the sector and thereby fulfils its essential function of indicating origin, is not devoid of any distinctive character'.¹⁶⁰

p. 566 **14.56** This test has become the touchstone for assessing the distinctiveness of three-dimensional shape marks. Mere novelty of design is not sufficient, nor does it assist to argue that the shape is well-designed (eg as evidenced through design awards), as neither of these necessarily mean that the shape has the requisite distinctive character in the eyes of consumers.¹⁶¹ The upshot is that only relatively unusual shapes are likely to be capable of demonstrating inherent distinctiveness. Three-dimensional shapes which are accepted as inherently distinctive are rare, although there are some examples. For example, in *EUIPO v Wajos GmbH*, ECJ upheld a finding of inherent distinctiveness in relation to bottle shape shown at Figure 14.10, applied for in relation to food and drink items in classes 29, 30, 32 and 33. The Court emphasised that the mere fact that a shape is a 'variant' of the usual shape of product or packaging is not sufficient for distinctiveness purposes, and that the shape must be such that it permits consumers to distinguish the product concerned from those of other undertakings 'without conducting an analytical examination and without paying particular attention'.¹⁶² In this case, there had been some references in the GC's earlier ruling to aesthetics of the shape (which suggested some divergence from the existing case law), but the ECJ confirmed that the aesthetic aspect of a mark in the form of a product's packaging could be taken into account (alongside other factors) in establishing a difference to the norms and customs of the sector, provided that the aesthetic aspect of the mark was understood as referring to an objective and unusual visual effect.¹⁶³ Putting it another way: taking into account the aesthetic aspect of the mark is not an assessment of the beauty (or otherwise) of the shape, but whether that shape is capable of producing an objective and unusual visual effect in the eyes of the relevant public.¹⁶⁴



Figure 14.10 Wajos GmbH trade mark

p. 567 ↵ Other shape marks that have been recently accepted as inherently distinctive by the EUIPO or GC include a skull-shaped bottle registered for drinks in classes 32 and 33, and an unusually-shaped lipstick case applied for in relation to lipsticks in class 3.¹⁶⁵

14.57 In the UK, the courts have typically been hesitant about granting trade mark protection for three-dimensional shapes. Even after the *Henkel* ruling, questions have persisted as to whether satisfying the requirement that a shape depart significantly from the norm or customs of the sector is, on its own, sufficient to demonstrate inherent distinctiveness, or whether something more is required. The issue arises from the ECJ's statement that a shape mark is registrable if it:¹⁶⁶

departs significantly from the norm or customs of the sector and *thereby fulfils* its essential function of indicating origin (emphasis added).

In *Bongrain SA's Trade Mark Application*, the Court of Appeal suggested that a significant departure from the norms and customs of the sector is not *ipso facto* enough for inherent distinctiveness, Jacob LJ commenting: 'I think the Court is saying no more than that fancy shapes—those which depart significantly from the norm—may fulfil the essential function, not that they must'.¹⁶⁷ This issue was considered more recently by the Court of Appeal in *London Taxi Corp Ltd v Frazer-Nash Research Ltd*.¹⁶⁸ The dispute concerned alleged infringement of EUTM and UK trade mark registrations belonging to the London Taxi Corporation (LTC) both for the shape of the London taxi cab. Images from LTC's EUTM registration are at Figure 14.11.

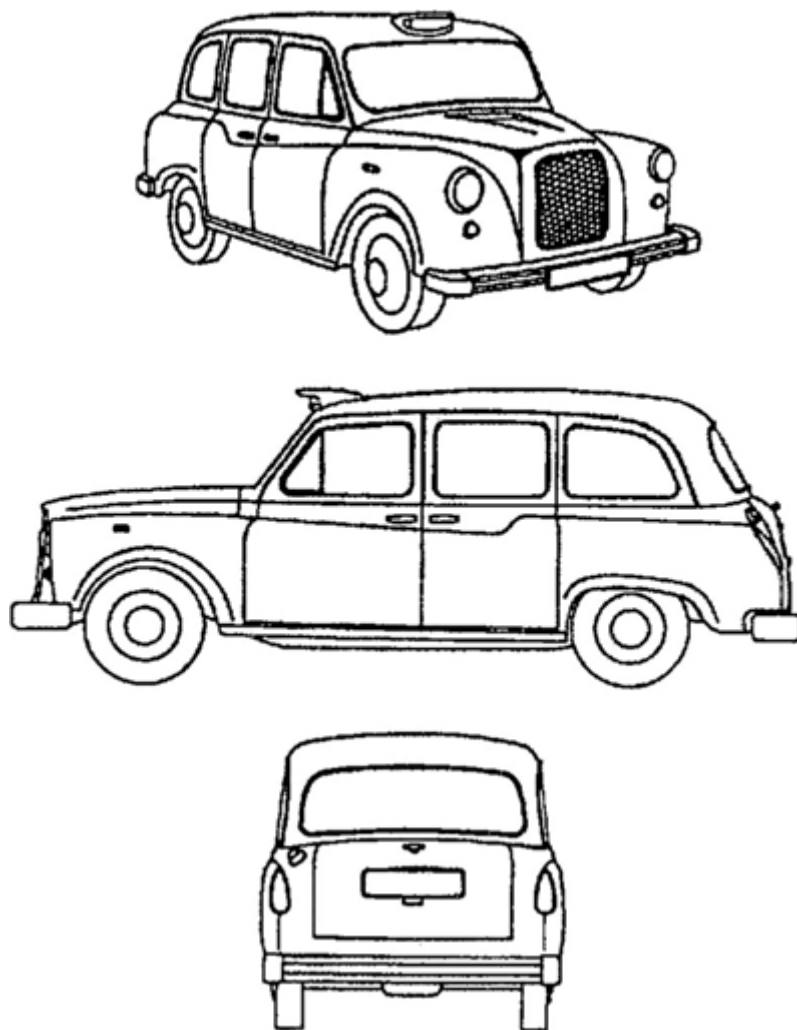


Figure 14.11 LTC EUTM registration

It was counterclaimed that the two registrations were invalid for lack of inherent distinctiveness. At first instance, the judge held that the requirement of a significant departure from the norm or customs of the sector was a necessary, but not in itself a sufficient, condition for registration. It also had to be shown that, like for all other marks, the marks in dispute were perceived by the average consumer as identifying the origin of the goods.¹⁶⁹ However, it was argued for LTC that, in light of further case law, it was clear that a

significant departure from the norm was both a necessary *and* a sufficient condition for inherent distinctiveness. At the Court of Appeal, Floyd LJ (giving the leading judgment) noted that there was ‘much force’ in these submissions. In his view, however, the matter was not *acte clair* and had it been determinative of the case, a preliminary reference to the ECJ would have been needed.¹⁷⁰ In any event, on the facts the Court of Appeal agreed with the trial judge and held that there was no significant departure from the norm. Assessing this was a three-step test: first, determining what constitutes the relevant sector; secondly, identifying the common norms and customs of that sector (if any); and finally, deciding whether the mark applied for departs significantly from those norms and customs.¹⁷¹ In this case, existing shapes of not only licensed black cabs but also of private hire vehicles were held to be relevant, which could in effect be any model of saloon car. The Court of Appeal concluded that—whether considered individually or as a whole—the features of the London taxi cab shape shown in LTC’s registrations were simply minor variants on the norms and customs of the car sector as a whole.¹⁷² More recently, attempts to register the shapes of various models of the Land Rover Defender have also been rejected for lack of inherent distinctiveness.¹⁷³

14.58 Distinctiveness is not the only potential challenge for shape marks; the descriptiveness objection at section 3(1)(c) TMA 1994 and Article 7(1)(c) EUTMR may also apply. An early preliminary reference concerned the shape of a bottle used to hold liquid wool detergent.¹⁷⁴ Noting that some goods (such as liquids) did not possess an intrinsic shape and had to be packaged in order to be marketed, the ECJ held that the packaging ‘impos[ed] its shape on the goods’.¹⁷⁵ In such cases, for the purposes of trade mark examination, the shape of the packaging had to be assimilated to the shape of the product. The ECJ held that a trade mark which consisted of a 3D shape assimilated to the shape of the relevant goods could, in appropriate cases, serve to designate characteristics of the goods so packaged.¹⁷⁶

Position, pattern, and other marks indissociable from the appearance of the goods

14.59 The case law test for the inherent distinctiveness of shape marks—requiring that a shape must ‘depart significantly from the norms and customs of the sector’—has also been applied in other contexts. The key consideration in terms of when this test will apply is that the sign is of a kind that is ‘indissociable from the appearance of the product designated’.¹⁷⁷

14.60 This test has, for example, been applied to position marks. In *X Technology Swiss GmbH v OHIM*, the GC rejected as inherently non-distinctive a position mark consisting of the orange colour of the toe end of a sock (see Figure 14.12).¹⁷⁸ In the GC’s view, there was no significant divergence from the norms or customs of the hosiery sector; the mark applied for would be perceived by the relevant public only as a decorative element, rather than as having trade mark significance. The UK IPO has also recently taken a similar approach, drawing an analogy with shape marks in rejecting an application by Tefal to register their ‘red dot’ position mark (see Figure 14.13) for frying pans and other goods in class 21 for lack of inherent distinctiveness.¹⁷⁹



Figure 14.12 X Technology Swiss GmbH position mark

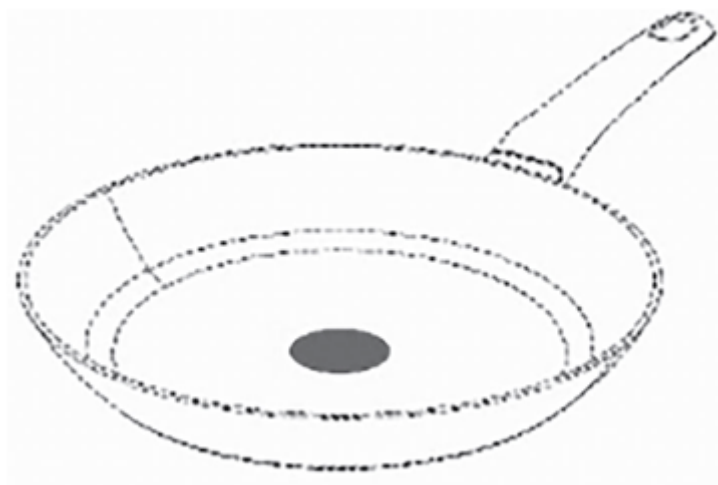


Figure 14.13 Tefal 'red dot' position mark

p. 569 ↵ **14.61** The ‘norms and customs’ test has also been applied in other contexts where the nature of the mark is indissociable from the relevant product, such as pattern marks. In an appeal to the ECJ in relation to an attempt to register the pattern on the sole of Birkenstock footwear, the Court confirmed that there was ‘an inherent probability that a sign consisting of a repetitive sequence of elements will be used as a surface pattern and thus will be indissociable from the appearance of the goods concerned’, such that the ‘norms and customs’ test should apply.¹⁸⁰ The test has also been relied upon in the rejection of Louis Vuitton’s application to register its ‘Damier Azur’ pattern as an EUTM for luggage and other items in class 18.¹⁸¹ Extending the reach of this test to service marks, in the preliminary reference concerning the Apple store layout, the ECJ also indicated that the distinctiveness of a store layout should be assessed by whether it departs significantly from the norm or customs of the economic sector concerned.¹⁸²

p. 570 **Sounds**

14.62 In *Globo Comunicação e Participações S/A v EUIPO*,¹⁸³ the GC considered the inherent distinctiveness of a sound mark, graphically represented in musical notation and described by the applicant as ‘a sound which resembles a telephone ringtone’ and ‘a particular electronic ringing sound evoking sonar equipment, which consists of the repetition of two notes’. The applicant had applied to register this in relation to a range of goods and services, including television broadcasting services in class 38. The GC accepted that, in some economic sectors such as broadcasting, it was common for the consumer to identify a product or service in that sector by a sound element such as a jingle. However, a sound needed to have ‘a certain resonance’ which would enable the consumer to perceive and regard it as a trade mark.¹⁸⁴ A ‘banal combination of notes’ or one which was characterised by ‘excessive simplicity’—such as, in this case, the simple repetition of two identical notes—would not suffice.¹⁸⁵ However, the GC has declined to apply the ‘norms and customs of the sector’ test to sound marks, on the basis that sound marks do not reproduce either the shape of the goods or their packaging.¹⁸⁶ In other words, sound marks should not be regarded as ‘indissociable’ from the product designated, in the same way as shapes, position marks, patterns, and store layouts discussed above.

Key points on distinctiveness, descriptiveness, and customary marks

- Non-distinctive, descriptive, and customary marks are excluded from registration unless it can be shown that they have become distinctive through use.
- For a mark to be inherently distinctive, the mark must function as an indicator of origin for the goods or services applied for. This is assessed through the eyes of the average consumer. The test of distinctiveness is the same for all types of marks, but for some categories of mark (such as shapes or colours) inherent distinctiveness may be difficult to demonstrate in light of the ECJ’s assumption that consumers tend not to perceive such signs as indicators of origin.
- Marks will be refused for descriptiveness both where the mark is currently in descriptive use by other traders and also if it may be liable to be so used in the future. There is no requirement that the mark be the only way of designating the characteristics of the goods or services.

- Marks will also be refused if they have become customary in current language or trade practices. The perception of end users of the relevant goods or services may also be relevant. This objection can also apply to slogans or other incitements to purchase.

Distinctiveness through use (acquired distinctiveness)

Proviso to section 3(1) TMA 1994

p. 571 14.63 As was indicated above, each of the absolute grounds of refusal at sections 3(1)(b)–(d) TMA 1994 is subject to the proviso that a sign which is inherently unregistrable on those grounds may become distinctive through use.¹⁸⁷ This is not an independent right to have a trade mark registered, but a ‘major exception’ to the grounds for refusal listed in section 3(1)(b)–(d).¹⁸⁸ The rationale is that, although there are public policy reasons for excluding from registration marks which lack inherent distinctiveness or which are descriptive or customary, they are overridden if consumers have in fact come to understand the mark in question as an indicator of origin. The acquired distinctiveness proviso only applies to objections under sections 3(1)(b)–(d) TMA 1994: no other absolute objections to registration can be overcome in this way.

14.64 Proving acquired distinctiveness means proving that the mark has, as a matter of fact, come to serve as an indicator of the origin of the relevant goods and services. In *Philips v Remington*, the ECJ emphasised that:¹⁸⁹

the identification, by the relevant class of persons, of the product as originating from a given undertaking *must be as a result of the use of the mark as a trade mark* and thus as a result of the nature and effect of it, which make it capable of distinguishing the product concerned from those of other undertakings (emphasis added).

14.65 Useful guidance on what evidence is required to show that a mark has become distinctive through use was given by the ECJ in *Windsurfing Chiemsee*. The Court said that there must be an overall assessment of the evidence that the mark has come to identify the goods and services as originating from a particular undertaking. The following factors could be taken into account:

- the market share held by the mark;
- how intensive, geographically widespread, and long-standing use of the mark has been;
- the amount invested by the trade mark applicant in promoting the mark;
- the proportion of the relevant class of persons who, because of the mark, identify the relevant goods as originating from a particular undertaking;
- statements from chambers of commerce and industry or other trade and professional associations.¹⁹⁰

Survey evidence may also be used, although the ECJ rejected the argument that such surveys need to reach a specific predetermined percentage level of recognition of the mark in question.¹⁹¹ Acquired distinctiveness will be proved if the evidence shows that the ‘relevant class of persons, or at least a significant proportion thereof, identifies goods as originating from a particular undertaking because of the trade mark’.¹⁹² This will be very much fact- and evidence-based in each case.

14.66 For pending applications, in the UK and for EUTMs it is necessary to show that the mark has acquired distinctiveness *before* the date upon which the application for registration was filed.¹⁹³ In invalidation disputes, a mark can be shown to be validly registered if it has acquired distinctiveness after the date of registration.¹⁹⁴

Secondary marks

14.67 Proof of acquired distinctiveness can be particularly difficult for so-called ‘secondary marks’; that is, marks such as slogans, product shapes, or colours which are not, in themselves, the primary branding used by the trade mark owner. The difficulty is that secondary marks are rarely used by the trade mark owner on their own. Instead, they will tend to be accompanied by more readily recognised indicators of origin such as the main product name, trade mark owner’s ‘house mark’, or a logo. As a result, it may be harder to show that a secondary mark is, in its own right, understood by consumers as an indicator of the origin of the goods.

p. 572 ↪ **14.68** The ECJ has confirmed that it is, at least in theory, possible for a secondary mark to become distinctive through its use as part of, or in conjunction with, another registered mark. In *Société des Produits Nestlé SA v Mars UK Ltd*,¹⁹⁵ Nestlé applied for registration of the words ‘HAVE A BREAK’ for goods in class 30. The mark was held to be devoid of inherent distinctiveness and so the case turned on whether ‘HAVE A BREAK’ could be shown to have acquired distinctiveness through use. The difficulty was that those words were used as part of the slogan ‘Have a break ... Have a Kit Kat’, which was itself separately registered, along with the ‘Kit Kat’ mark. One view might be that there was no use of the words ‘HAVE A BREAK’ as an independent trade mark. However, while noting that, as held in *Philips*, acquired distinctiveness must result from use of the relevant mark ‘as a trade mark’, the ECJ concluded that the mark applied for need not necessarily have been used independently.¹⁹⁶ There was no such restriction in the TMD.¹⁹⁷ The expression ‘use of the mark as a trade mark’ in this context referred solely to use of the mark for the purposes of the identification, by the relevant class of persons, of the product as originating from a given undertaking.¹⁹⁸ Such identification (and thus acquisition of distinctive character) could result from use of the mark applied for as component part of another registered trade mark or in conjunction with another, separate registered trade mark. The Court held:¹⁹⁹

In both cases it is sufficient that, in consequence of such use, the relevant class of persons actually perceive the product or service, designated exclusively by the mark applied for, as originating from a given undertaking.

14.69 Even if the ‘HAVE A BREAK’ case made it clear that a mark does not have to have been used on its own to acquire distinctiveness, issues have still arisen around what is required in terms of proof of the necessary consumer reaction. On the one hand, a strict view might demand that acquired distinctiveness can only be shown if a consumer actually relies on the mark in question to recognise the origin of the relevant goods. Alternatively, a more generous test would be to ask simply whether the consumer associates the mark with the trade mark owner or one of its brands. The English courts had favoured the stricter view, reflecting concerns articulated by Jacob J as he then was in a dispute about the registrability of the shape of the ‘Viennetta’ ice-cream dessert.²⁰⁰

There is a bit of sleight of hand going on here and in other cases of this sort. The trick works like this. The manufacturer sells and advertises his product widely and under a well-known trade mark. After some while the product appearance becomes well known. He then says the appearance alone will serve as a trade mark, even though he himself never relied on the appearance alone to designate origin and would not dare to do so. He then gets registration of the shape alone. Now he is in a position to stop other parties, using their own word trade marks, from selling the product, even though no-one is deceived or misled.

I do not think that is what the European trade mark system is for. It is a system about trade marks, badges of trade origin. For that reason I think that in the case of marks consisting of product shapes it is not enough to prove the public recognises them as the product of a particular manufacturer. It must be proved that consumers regard the shape alone as a badge of trade origin in the sense that they would rely upon that shape alone as an indication of trade origin, particularly to buy the goods. If that cannot be proved, then the shape is not properly a trade mark. It does not have a ‘distinctive character’ for the purposes of trade mark law.

14.70 In another case involving Nestlé, *Société des Produits Nestlé SA v Cadbury UK Ltd*,²⁰¹ questions on this issue were referred to the ECJ. This case concerned Nestlé’s ability to register the shape of the Kit Kat bar as a trade mark. The mark is shown in Figure 14.14.

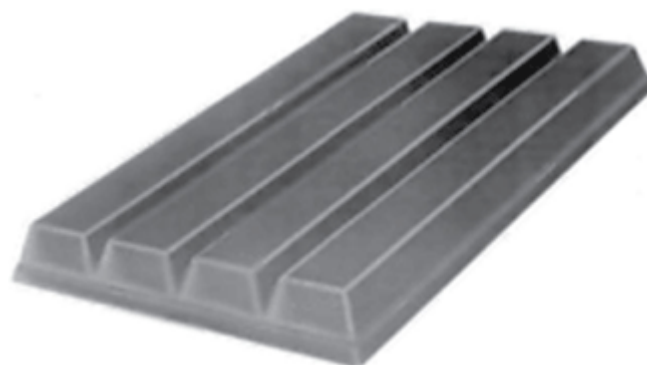


Figure 14.14 Kit Kat mark

p. 573 ↵ In the High Court, Arnold J agreed with the hearing officer's conclusion that there was no evidence that Nestlé's marketing resulted in the relevant public *relying* on the shape of the product alone to identify its trade origin.²⁰² He also opined that it was 'inherently unlikely' that the public used the shape to confirm the authenticity of the four-fingered 'Kit Kat' bar, and noted instead that each of the Kit Kat fingers was imprinted with the trade mark KIT KAT, indicating that consumers did not rely on the product shape but on the trade mark 'Kit Kat'.²⁰³ However, the judge concluded that the circumstances in which a secondary trade mark such as the Kit Kat shape could acquire distinctive character remained unclear and referred the following question to the ECJ:

In order to establish that a trade mark has acquired distinctive character following the use that had been made of it within the meaning of Article 3(3) of Directive 2008/95 ..., is it sufficient for the applicant for registration to prove that at the relevant date a significant proportion of the relevant class of persons recognise the mark and associate it with the applicant's goods in the sense that, if they were to be asked who marketed goods bearing that mark, they would identify the applicant; or must the applicant prove that a significant proportion of the relevant class of persons rely upon the mark (as opposed to any other trade marks which may also be present) as indicating the origin of the goods?

The ECJ reframed the question referred, posing the issue as a choice between (on the one hand) an interpretation whereby the relevant class of persons must perceive the goods or services designated exclusively by the mark, as opposed to any other mark which might also be present, as originating from a particular company or (on the other hand) whether it would be sufficient to prove that a significant proportion of the relevant class of persons recognised that mark and associated it with the applicant's goods.²⁰⁴ Addressing this question, the Court ruled that:²⁰⁵

regardless of whether [the use of the mark in question] is as part of another registered trade mark or in conjunction with such a mark, the trade mark applicant must prove that the relevant class of persons perceive the goods or services designated exclusively by the mark applied for, as opposed to any other mark which might also be present, as originating from a particular company.

The ECJ thus placed emphasis on consumer perception as a key factor.

14.71 When the case returned to the High Court, Arnold J expressed concern that the ECJ had re-written the question which he had referred and had thereby not answered it, failing in particular to deal with the 'reliance' issue. The case was appealed and the legal position has thereby been finessed by the Court of Appeal, which has arguably in effect re-introduced a requirement of reliance. Emphasising that a shape could become very well known by being sold on a very large scale and by reference to a highly distinctive brand, Kitchen LJ (as he then was) explained that nonetheless:²⁰⁶

p. 574

That does not necessarily mean that the public have come to perceive the shape as a badge of origin such that they would rely upon it alone to identify the product as coming from a particular source. They might simply regard the shape as a characteristic of products of that kind or they might find it brings to mind the product and brand name with which they have become familiar. These kinds of recognition and association do not amount to distinctiveness for trade mark purposes, as the CJEU has now confirmed in its decision in this case.

Kitchin LJ recognised that the ECJ had not referred to ‘reliance’ in its judgment. However, in his view:²⁰⁷

Perception by consumers that goods or services designated by the mark originate from a particular undertaking means they can rely upon the mark in making or confirming their transactional decisions. In this context, reliance is a behavioural consequence of perception.

It was therefore considered legitimate to consider whether consumers would rely upon the sign applied for, used on its own, as denoting the origin of the goods or services.²⁰⁸ On the facts, acquired distinctiveness was not shown. A particular challenge for Nestlé was that, because of the product wrapper, the shape of the goods was not visible at or before the point of sale. There was also little evidence that Nestlé had actually used the shape as a trade mark, as required in case law since *Philips*: there was, for example, no evidence that the shape applied for had featured in Nestlé’s promotional or advertising material. Nestlé had submitted in evidence a survey in which respondents were shown a picture of the shape applied for and asked various questions; the results showed that at least half of the respondents thought that the picture shown to them was a ‘Kit Kat’. However, this was taken as evidencing at best that just a significant proportion of the relevant public recognised the shape and associated it with Kit Kat, not that they ‘perceived’ it as an indicator of origin in the sense noted above. It was (somewhat harshly) also queried whether the survey responses could in any event have indicated that respondents just recognised the shape as ‘a product which looked like a Kit Kat’, rather than specifically the Nestlé product.²⁰⁹ The Court found it relevant that other manufacturers sold similarly shaped chocolate bars.

14.72 Further English cases demonstrate the challenges facing trade mark applicants in the UK in proving acquired distinctiveness for marks such as shapes. In *London Taxi Corp*,²¹⁰ it was a matter of dispute as to whether the LTC shape marks had acquired distinctive character. The Court of Appeal approached this issue applying its own test as formulated in the *Nestlé* appeal. It was not sufficient to show that a significant proportion of the relevant class of persons recognised and associated the mark with the trade mark owner’s goods—it had to be shown that consumers perceived that the goods designated by the mark originated with a particular undertaking and no other.²¹¹ LTC did not succeed in demonstrating this. Floyd LJ emphasised that, in addition to the usual assumption that consumers do not expect shapes to be indicators of origin, in this case passengers hiring a black cab (who could be included as relevant ‘consumers’) would be more focused on the provider of the taxi service than the manufacturer of the taxi itself. It would be ‘hard to interest them, far less educate them, in the topic of whether the shape of the taxi is an indication of a unique trade source’.²¹² Whether the shape of the taxi had acquired trade mark significance also had to be distinguished from any more generalised understanding that taxis of that shape were licensed London cabs.²¹³ It was therefore particularly important for LTC to adduce evidence showing that consumers had come to understand that

there was only one manufacturer of taxis of the relevant shape; however, no sufficient such evidence had been provided.²¹⁴ Attempts to prove acquired distinctiveness have also failed in the UK in relation to the shape of the Land Rover Defender, the Tefal 'red dot' position mark, and the Birkenstock sole pattern.²¹⁵

p. 575 **Geographical extent**

14.73 The question arises as to the geographical extent of the territory for which acquired distinctiveness must be shown. This is a particular issue for EUTMs. Article 7(2) EUTMR 2017 provides that an EUTM is not to be registered 'notwithstanding that the grounds of non-registrability obtain in only part of the Union'. This reflects the unitary character of EUTMs: an EUTM must have distinctive character, whether inherent or acquired, across the whole of the EU. For an EUTM, it is therefore necessary to show that a mark has acquired distinctiveness in all of those member states where it would be regarded as non-distinctive.²¹⁶

14.74 For a word mark, this is likely to be related to the question of where the relevant language or languages are spoken. For example, *Ford Motor Company v OHIM*²¹⁷ concerned an application to register the word 'OPTIONS' for insurance and similar financial services. It was shown that the word had acquired distinctiveness in various countries, including the UK, but not in France. The applicant did not prove distinctiveness of the word 'OPTIONS' in the French language and the objection to registration was upheld.

14.75 Proof of acquired distinctiveness will be particularly burdensome for a mark which has been found to be inherently non-distinctive across the whole territory of the EU, as acquired distinctiveness will need be proved across the whole EU. This is likely to be the case for many non-conventional marks such as colours or shapes. The ECJ had ruled that it would be unreasonable to require proof of the acquisition of distinctiveness for each individual member state.²¹⁸ However, it revisited this issue in *Mondelez*, the invalidation proceedings on Nestlé's EUTM registration for the 'Kit Kat' shape which ran in parallel to the English litigation noted above.²¹⁹ In those parallel proceedings, the GC had rejected Nestlé's appeal on proof of acquired distinctiveness, ruling that there had been no assessment of whether there was acquired distinctiveness in Belgium, Ireland, Greece, and Portugal. On appeal, the ECJ reiterated that, to be registered, a mark such as Nestlé's 'Kit Kat' shape mark which was inherently non-distinctive across the EU, must as a matter of fact be shown to have acquired distinctiveness under what is now Article 7(3) EUTMR 2017 across the whole of the territory of the EU.²²⁰ However, the evidence required to prove such acquired distinctiveness might relate to several member states at the same time or even to the whole of the EU: this could arise if several member states were grouped together in the same distribution network and were treated, particularly for marketing purposes, as a single market or if there was a sufficient geographic, cultural, or linguistic proximity between member states such that the public in one state has knowledge of the products or services present on the market in the other.²²¹ Overall, however, the evidence submitted in support of a claim to acquired distinctiveness had to be capable of establishing that distinctive character had been acquired throughout the member states of the EU.²²² Nestlé's appeal was dismissed. *Mondelez* is a salutary reminder that the threshold is clearly demanding (and expensive) for those seeking to prove distinctiveness through use for the purposes of registration of an EUTM.

14.76 The geographical extent required for acquired distinctiveness differs for a national trade mark and was considered in *Bovemij Verzekeringen NV v Benelux-Merkenbureau*.²²³ The question was whether the sign ‘EUROPOLIS’ had acquired a distinctive character in the Benelux territory for services including insurance and financial affairs. In the instant case, the Dutch word ‘polis’ referred to an insurance contract and so the grounds for refusal existed only in that part of Benelux where Dutch was spoken. The Court stressed that registration of a trade mark at the national level could only be allowed if it was proven that the trade mark had acquired distinctive character through use throughout the territory of the relevant member state or, in the case of Benelux, throughout the part of the territory of Benelux in which there existed a ground for refusal.²²⁴

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Key points on acquired distinctiveness

- A mark which lacks inherent distinctiveness or is descriptive or customary may become distinctive through use. To overcome these objections by proof of acquired distinctiveness, it must be shown that the mark has come to be understood, as a matter of fact, as an indicator of the origin of the trade mark owner’s goods or services.
- To overcome objections raised against a trade mark application, acquired distinctiveness must be shown to exist as at the date of filing. To overcome post-grant invalidity objections, distinctiveness acquired after registration will also be relevant.
- For an EUTM, it is necessary to show that a mark has acquired distinctiveness throughout all parts of the EU where the relevant objection applies. For word marks, this may be linked to the language(s) in which the relevant word is non-distinctive, descriptive, or customary. For other marks (particularly marks such as shapes and colours), the trade mark owner may need to prove distinctiveness throughout the whole of the EU.
- For a national mark, it is necessary to show that it has become distinctive through use throughout the territory of the member state.
- A mark may be shown to have acquired distinctiveness both where it is used independently by the trade mark owner and where it is used as part of, or in conjunction with, another mark. Some controversy persists as to whether it is sufficient to show that consumers perceive such a ‘secondary mark’ to be an indicator of origin or must actually be shown to rely upon it in their purchasing decisions.

Exclusion from registration of certain shapes and signs consisting of ‘other characteristics’

Section 3(2) TMA 1994

14.77 A further important set of absolute grounds for refusal or invalidation is at section 3(2) TMA 1994. Before the 2015 reforms, this section provided that a sign would not be registered as a trade mark if it consisted exclusively of:

- the shape which results from the nature of the goods themselves;
- the shape of goods which is necessary to attain a technical result; or
- the shape which gives substantial value to the goods.

As a result of the 2015 reforms, these exclusions have now been extended to cover not only shapes but also signs consisting exclusively of other ‘characteristics’ which offend against any of the three limbs of section 3(2). The new section 3(2) TMA 1994 now reads as follows (with the new text shown in *italics*):²²⁵

A sign shall not be registered as a trade mark if it consists exclusively of—

- (a) the shape, *or another characteristic*, which results from the nature of the goods themselves,
- (b) the shape, *or another characteristic*, of goods which is necessary to attain a technical result, or
- (c) the shape, *or another characteristic*, which gives substantial value to the goods.

Importantly, these objections do not apply insofar as a mark is applied for in relation to services—the objections only bite where the mark is applied for in relation to goods, and this is unchanged by the 2015 reforms.

p. 577 ↗ **14.78** The public interest underpinning the three grounds for refusal at section 3(2) TMA 1994 has been said by the ECJ to be ‘to prevent trade mark protection from granting its proprietor a monopoly on technical solutions or functional characteristics of a product which a user is likely to seek in the products of competitors’.²²⁶ To allow such registrations would ‘form an obstacle preventing competitors from freely offering for sale products incorporating such technical solutions or functional characteristics in competition with the proprietor of the trade mark’.²²⁷ In early case law, the ECJ described the section 3(2) TMA 1994 objections as a ‘preliminary obstacle’ to registration.²²⁸ Critically, it is not possible for a sign which is refused under section 3(2) TMA 1994 to be registered by proving acquired distinctiveness: the proviso at section 3(1) TMA 1994 does not apply. Even if the mark in question has, in fact, become distinctive, if one of the grounds of refusal at section 3(2) TMA 1994 is engaged the mark cannot be validly registered.²²⁹ In this instance, consumer interests are secondary insofar as the risk of confusion is concerned: even if consumers perceive the sign as an indicator of origin of the relevant goods (and may, therefore, be confused if others also use the sign), the anti-competitive implications of allowing the objectionable sign to be registered and related interests in favour of consumer choice are considered to outweigh these considerations.

14.79 The three limbs of section 3(2) TMA 1994 must each be applied independently.²³⁰ This was confirmed in *Société des Produits Nestlé SA v Cadbury UK Ltd*²³¹ Nestlé had sought registration of the three-dimensional sign representing the shape of its four-fingered chocolate bar as a trade mark in respect of, inter alia, chocolate bars, biscuits, pastries, and cakes in the UK. Various objections under section 3(2) TMA 1994 were considered. The ECJ confirmed that an application could only be refused if any one ground was fully applicable to the sign at issue.²³² An application could not be refused if the grounds of objection at section 3(2) TMA 1994 were each only partially established.

‘Shapes’ and other ‘characteristics’

14.80 As noted above, in their pre-2015 form the exclusions at section 3(2) TMA 1994 were applicable only to marks consisting exclusively of an objectionable ‘shape’. The expression ‘shape’ is not defined, however, and has generated a number of case law rulings.

14.81 For example, responding to attempts by trade mark owners to avoid the reach of the section 3(2) exclusions, the ECJ has confirmed that a two-dimensional sign representing the shape of a product can be a ‘shape’. *Yoshida v OHIM*²³³ concerned what the trade mark applicant claimed was merely a two-dimensional figurative mark, containing rows of black dots and resembled a knife handle as shown in Figure 14.15.

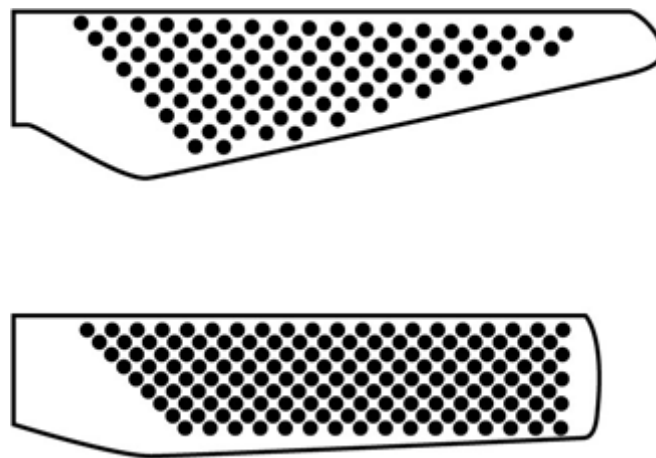


Figure 14.15 *Yoshida v OHIM*

p. 578 ↵ The GC had ruled that what is now Article 7(1)(e) EUTMR 2017 applied not only to three-dimensional marks but also to two-dimensional marks where all of the essential characteristics of the sign performed a technical function.²³⁴ This was approved by the ECJ. The ECJ confirmed that it is permissible to look to all relevant material when assessing the essential characteristics of the sign. This could include material extraneous to the representation of the sign and any description contained in the filing for the mark in question. In this case, that meant that it was possible to look to the trade mark applicant’s actual product to understand the nature and function of the black dots shown on the knife handle. Those dots had been identified by the Board of Appeal as concave dents intended to achieve a ‘non-skid’ effect.²³⁵

14.82 There is a limit as to how far a two-dimensional sign can be taken to constitute the ‘shape’ of goods: in *Textilis*, the ECJ confirmed that a two-dimensional repeated decorative motif appearing on goods such as textiles was not an objectionable ‘shape’.²³⁶ There is also a limit to how far the objections can be said to apply to signs which represent only part of the shape of the relevant ‘goods’. In *Yokohama Rubber*,²³⁷ a judgment handed down after the end of the Brexit transition period, the ECJ considered the application of the technical functionality exclusion to the mark shown at Figure 14.16, applied for in relation to tyres and related products in class 12. The mark consisted of the representation of a single groove of a tyre tread. This was only a very limited part of the tyre tread as a whole, which was in turn itself only one part which, along with other elements such as the sidewall of the tyre, constituted the actual goods covered by the application—that is, tyres. The ECJ upheld the GC’s finding that the contested mark did not, in these circumstances, represent the shape of the actual goods covered by the mark.²³⁸



Figure 14.16 Pirelli tyre groove mark

14.83 Looking more broadly at the question of what may constitute the ‘shape’ of goods, in early case law in *Henkel KGaA v Deutsches Patent- und Markenamt*,²³⁹ the ECJ confirmed that packaging of goods may constitute the shape of the goods within the meaning of what is now Article 4(1)(e) TMD 2015, where the packaging must be assimilated to the shape of the goods (eg packaging for liquids). The notion of what

constitutes a 'shape' was tested further in the *Louboutin* preliminary reference. In *Louboutin*, the ECJ had to consider the applicability of what is now Article 4(1)(e) TMD 2015 to a Benelux mark registered by Christian Louboutin in relation to high-heeled shoes in class 25.²⁴⁰ The Louboutin mark is shown in Figure 14.17.



Figure 14.17 Louboutin mark

In the application, the mark was described as follows: 'The mark consists of the colour red (Pantone 18-1663TP) applied to the sole of a shoe as shown (the contour of the shoe is not part of the trade mark but is intended to show the positioning of the mark).' In the context of infringement proceedings, the question arose as to whether the Louboutin mark was a 'shape' such that the 'substantial value' exclusion at what is now Article 4(1)(e)(iii) TMD 2015 would apply. The question was referred to the ECJ. The ECJ responded that:²⁴¹

in the context of trade mark law, the concept of 'shape' is usually understood as a set of lines or contours that outline the product concerned.

A colour per se, without an outline, could not constitute a shape.²⁴² In any event, in light of the explicit wording in the description of the mark, the Court concluded that Louboutin's registration did not relate to a specific shape of sole for high-heeled shoes.²⁴³

14.84 Compared with the very purposive (and expansive) approach taken by the ECJ to capturing two-dimensional figurative signs as 'shapes' such as in *Yoshida*, the approach in *Louboutin* was notably literal (and restrained). However, given the extension to 'other characteristics' effected by the 2015 reform package, the implications of this more literal approach to 'shape' may be limited. It is not stipulated what 'other

p. 580 characteristics' of a sign may be relevant under the expanded rules. The Max Planck Institute 2011 Study referred to the broadly equivalent US rules on functionality, which cover not only shapes but also types of sign such as colours and sounds. The Study considered, for example, that the sound of a motorbike might result from the technical properties of its engine and could thus be said to result from the nature of the goods.²⁴⁴ Similarly, a colour might be necessary to achieve a technical result (eg enhanced visibility) or might give substantial value to goods (eg if it conveys particular messages about the goods). It remains to be seen how the revised objections will be applied in practice.

Discussion point

For answer guidance visit www.oup.com/he/brown6e <<https://iws.oup.support.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-14-guidance-on-answering-the-discussion-points?options=showName>>.

To what sort of 'other characteristics' do you think the objections at section 3(2) TMA 1994 are likely to be applied? How do you think this expansion of the scope of the exclusion may shape the direction of future case law under each of the three limbs of section 3(2) TMA?

Which consists 'exclusively'

14.85 All three objections at section 3(2) TMA 1994 only apply if the contested sign consists 'exclusively' of the relevant objectionable shape or other characteristic. What is meant by 'consisting exclusively' of the relevant subject matter was considered by the ECJ in the context of what is now Article 4(1)(e)(ii) TMD 2015 in *Lego Juris A/S v OHIM*.²⁴⁵ The Court held that a sign 'consists exclusively' of the shape of goods necessary to achieve a technical result.²⁴⁶

when all the essential characteristics of the shape perform a technical function, the presence of non-essential characteristics with no technical function being irrelevant in that context.

The presence of 'one or more minor arbitrary elements' in a three-dimensional sign would not affect the conclusion that the sign 'consisted exclusively' of a shape necessary to obtain a technical result. In contrast, a shape with a 'major non-functional element' would not fall within the ground of refusal.²⁴⁷ The assessment of the essential characteristics of a sign must be carried out on a case-by-case basis. There is no systematic hierarchy between the types of elements of which a sign may consist. The assessment of a sign's essential characteristics can look directly at the sign's overall impression or first examine in turn each of its elements: it can accordingly be carried out by a simple visual analysis or be based on a detailed examination.²⁴⁸ The same principles also apply to testing whether a sign 'consists exclusively' of objectionable subject matter for the other indents at Article 4(1)(e) TMD 2015 and Article 7(1)(e) EUTMR 2017.²⁴⁹

Nature of the goods themselves (s 3(2)(a) TMA 1994)

14.86 Section 3(2)(a) TMA 1994 provides that a sign shall not be registered where it consists exclusively of a shape or other characteristic that results 'from the nature of the goods themselves'. What is meant by this reference to 'resulting from the nature of the goods themselves' has provoked considerable uncertainty.

The prevailing view was that this ground of objection was narrow, applying where there was no other possible shape for the goods in question.²⁵⁰ There was, however, also a concern that this narrow interpretation would render the exclusion effectively meaningless. It took a long time for a case on interpretation of this provision to come before the ECJ. In *Hauck GmbH & Co KG v Stokke A/S*,²⁵¹ however, the ECJ was finally asked to provide clarification on what is now Article 4(1)(e)(i) TMD 2015. The case concerned registration of the shape of the 'Tripp-Trapp' children's chair. One of the questions before the ECJ was whether the objection at Article 4(1)(e)(i) applied only to a shape which was 'indispensable to the function of the product in question', or whether it also applied to a sign consisting exclusively of a shape with 'one or more characteristics which are essential to the function of that product and which consumers may be looking for in the products of competitors'.²⁵² The ECJ rejected the first of these interpretations, noting that this would narrow the scope of the ground for refusal only to 'regulated' products (whose shape was prescribed by legal standards) or 'natural' products (for which there was no substitute).²⁵³ This was not consistent with the underlying objectives of this ground for refusal. Instead, the Court concluded that the ground for refusal now at Article 4(1)(e)(i) TMD 2015 extends to 'shapes with essential characteristics which are inherent to the generic function or functions of [the] goods'.²⁵⁴ Article 4(1)(e)(i) applies to a 'sign which consists exclusively of the shape of a product with one or more essential characteristics which are inherent to the generic function or functions of that product and which consumers may be looking for in the products of competitors'.²⁵⁵

The design of the Tripp-Trapp Chair is shown in Figure 14.18.

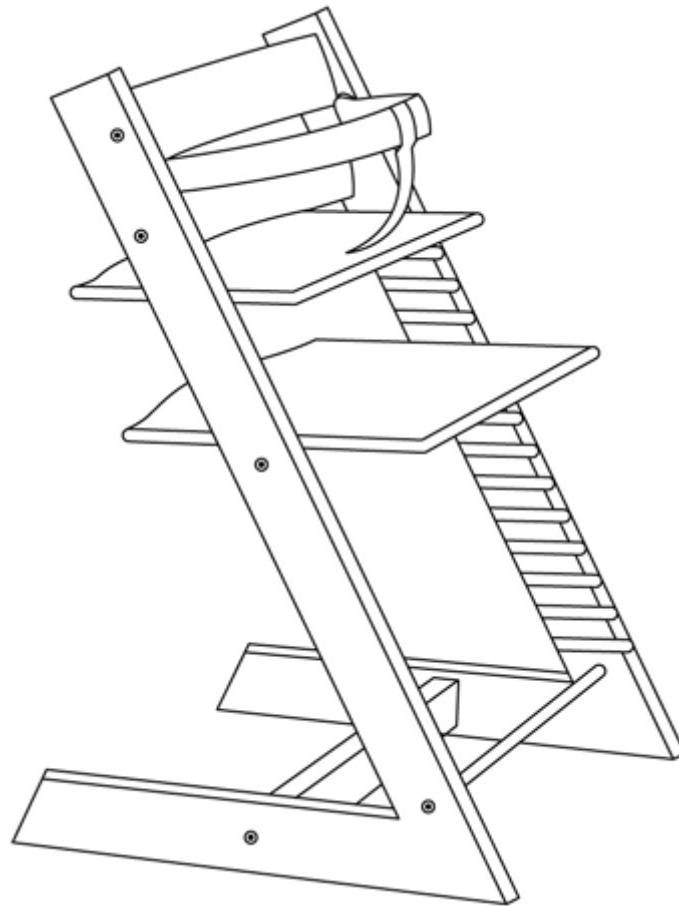


Figure 14.18 Tripp-Trapp Chair

The reference by the Court to ‘generic function’ is unclear. In *Hauck* the ECJ suggested that the characteristics of generic function are those that consumers would look for in the products of competitors and which were designed to perform an identical or similar function.²⁵⁶ The concern is that allowing one trader to monopolise such characteristics would make it difficult for competitors to give their products a shape which is suited to the use for which their products are intended.²⁵⁷ However, concerns have been expressed that this aspect of the decision in *Hauck* creates an unclear overlap with the technical exclusion at indent (ii) of Article 4(1)(e) TMD 2015 and Article 7(1)(e) EUTMR.²⁵⁸ The ECJ has also not explained what approach should be taken to deciding what constitutes the ‘goods themselves’ for these purposes.

Necessary to achieve a technical result (s 3(2)(b) TMA 1994)

14.87 Section 3(2)(b) TMA 1994 provides that a sign shall not be registered where it consists exclusively of a shape or other characteristic that is ‘necessary to obtain a technical result’. The ECJ elaborated on the underlying public interests in *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd.*²⁵⁹ The Court explained that what is now Article 4(1)(e)(ii) TMD 2015 is intended to:²⁶⁰

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↪ preclude the registration of shapes whose essential characteristics perform a technical function, with the result that the exclusivity inherent in the trade mark right would limit the possibility of competitors supplying a product incorporating such a function or at least limit their freedom of choice in regard to the technical solution they wish to adopt in order to incorporate such a function in their product.

A shape whose essential characteristics perform a technical function and were chosen to fulfil that function should be freely used by all.²⁶¹ Article 4(1)(e)(ii) also reflects the aim of not allowing the use of trade mark registration to acquire or perpetuate exclusive rights relating to technical solutions,²⁶² the thinking being that it would be wrong for the indefinite protection achievable through trade mark registration to be used to perpetuate the strictly time-limited monopoly otherwise obtainable under patent law in particular.

14.88 In *Philips*, Philips had registered a trade mark consisting of a picture of a three-headed rotary electric shaver. Remington also marketed three-headed rotary shavers. Philips accused Remington of infringing their registered trade mark. In turn, Remington alleged that the Philips mark was invalid on a number of grounds, including that it consisted exclusively of a shape which was necessary to obtain a technical result. The key question was what makes a particular shape ‘necessary’ to achieve a technical result. Philips argued that this meant that the shape in question had to be the only possible shape for that function, but Remington opposed this.²⁶³ After outlining the underlying rationale of what is now Article 4(1)(e)(ii) TMD 2015 as noted above, the ECJ held that there was nothing in that provision that allowed the conclusion that the objection could be overcome by showing that there were other shapes that could achieve the same technical result.²⁶⁴ The Court held:²⁶⁵

Where the essential functional characteristics of the shape of a product are attributable solely to the technical result, Article 3(1)(e), second indent, precludes registration of a sign consisting of that shape, even if that technical result can be achieved by other shapes.

14.89 The interpretation of this ground of objection was developed further by the ECJ in *Lego Juris A/S v OHIM*.²⁶⁶ The ECJ noted that what is now Article 7(1)(e)(ii) EUTMR 2017 reflected a ‘balancing’ of considerations intended to ‘help establish a healthy and fair system of competition’.²⁶⁷ On the one hand, Article 7(1)(e)(ii) meant that traders could not ‘use trade mark law to perpetuate, indefinitely, exclusive rights relating to technical solutions’.²⁶⁸ On the other hand, by limiting the ground of refusal to signs which consist ‘exclusively’ of the shape of goods which is ‘necessary’ to obtain a technical result:²⁶⁹

the legislature duly took into account that any shape of goods is, to a certain extent, functional and that it would therefore be inappropriate to refuse to register a shape of goods as a trade mark solely on the ground that it has functional characteristics. By the terms ‘exclusively’ and ‘necessary’, that provision ensures that solely shapes of goods which only incorporate a technical solution, and whose registration as a trade mark would therefore actually impede the use of that technical solution by other undertakings, are not to be registered.

The ECJ reiterated that the fact that the same technical result may be achieved by other shapes is irrelevant.²⁷⁰ The key requirement is that all of the sign's essential characteristics perform the technical function of the goods at issue.²⁷¹ On this issue, the perception of the relevant public is not relevant: consumer perception is at most relevant to the prior question of identifying the 'essential characteristics' of the sign.²⁷²

p. 583 **14.90** It has subsequently been further confirmed that what is now Article 4(1)(e)(ii) TMD 2015 applies only to the manner in which the relevant goods function and not in respect of the manner in which the goods were manufactured.²⁷³ The ECJ has also spoken further, in the *Simba Toys* case, on the evidence relevant to the assessment of technical functionality.²⁷⁴ The case concerned the registration as a trade mark of the 'Rubik's Cube', the famous rotating three-dimensional puzzle. Seven Towns Limited was the owner of various intellectual property rights related to the 'Rubik's Cube', including an EUTM registration for the sign shown in Figure 14.19 registered for 'three-dimensional puzzles' in class 28.

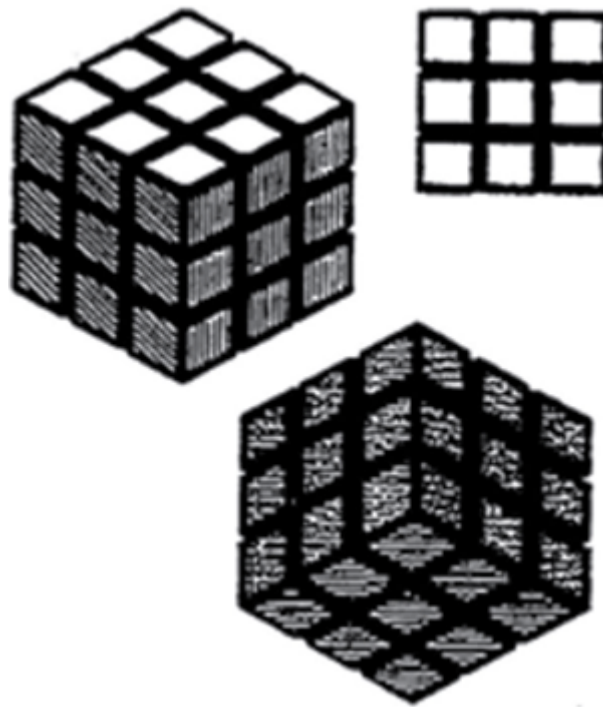


Figure 14.19 Rubik's Cube registration

The validity of the registration was challenged by Simba Toys. For the purposes of what is now Article 4(1)(e)(ii) TMD 2015, the essential characteristics of the registered sign were taken to consist of its cube shape and the grid structure on each surface of the cube. On the question of whether those essential characteristics performed a technical function, the GC had rejected Simba Toys' arguments relating to the rotating capability of the toy, on the basis that that capability resulted not from the shape shown in the registration but from an invisible internal mechanism. The GC had taken the view that inferring the existence of an internal rotating mechanism from the graphic representations of that mark was not consistent with the requirement that any inference must be drawn with sufficient certainty and as objectively as possible from the shape as represented in the registration. However, the ECJ disagreed: when examining the functional characteristics of

a sign, account may be taken of relevant material which is extraneous and in addition to the representation shown in the registration and any description of the mark filed as part of the application. On that basis, the rotating mechanism could be taken into account.

14.91 This has been further confirmed by the ECJ in the more recent *Gömböc* preliminary reference,²⁷⁵ decided before the end of the Brexit transition period. *Gömböc* concerned an application for a Hungarian national trade mark registration for the three-dimensional sign shown at Figure 14.20, applied for in respect of goods including ‘decorative items’ in class 14 and toys in class 28. The shape applied for is the unique embodiment of a mathematical phenomenon, taking the form of the only convex monostatic object made from homogeneous material which has a single point of stable equilibrium and a single point of unstable equilibrium, such that it always returns to its position of balance by righting itself.²⁷⁶



Figure 14.20 The *Gömböc* application

p. 584 ↺ One of the questions referred in this case asked whether the assessment of the technical functionality of a sign should be limited to the representation of the sign or whether other information could be taken into account. The ECJ confirmed again that, while the representation of the shape was the necessary ‘starting point’ for the assessment of functionality, where appropriate additional features relating to the function of the goods could also be taken into consideration.²⁷⁷ The perception of the relevant public was not relevant: the relevant public does not necessarily have the required expertise to enable it to determine with accuracy what constitute the technical features of the product in question or the extent to which the shape of that product contributes to the technical result.²⁷⁸ Instead, the assessment of technical function must be based on ‘objective and reliable information’.²⁷⁹ That could be found inter alia:²⁸⁰

in any description of the product submitted at the time of filing of the application for registration of the mark, in data relating to intellectual property rights conferred previously in respect of that product, by looking at surveys or expert opinions on the functions of the product, or in any relevant documentation, such as scientific publications, catalogues and websites, which describes the technical features of the product.

Substantial value (s 3(2)(c) TMA 1994)

14.92 Finally, section 3(2)(c) TMA 1994 provides that a shape or other characteristic which gives ‘substantial value’ to the goods will not be registrable. This objection was understood to be inspired by provisions of pre-harmonisation Benelux law, but its interpretation and application were unclear. It was thought to be directed to aesthetically valuable shapes (wholly decorative or ornamental) and to be intended to create a demarcation between copyright or design protection on the one hand and trade mark protection on the other. However, it was by no means clear that this demarcation was necessary or that this exclusion (unlike, say, the exclusion for technical functionality) was really aimed at solving competitiveness concerns. There was a sense that this exclusion also created a form of ‘Catch 22’ situation for distinctive shapes—as the Max Planck Institute put it in its 2011 Study:²⁸¹

Worse, it might present a dilemma for particularly ambitious designs: as indicated above, (only) products which are significantly different from existing forms may, under the standards established in ECJ jurisprudence, qualify as being inherently distinctive—however, if that makes them also particularly attractive for consumers, they may ... for the same reason be barred from protection forever.

p. 585 ↪ The GC’s decision in *Bang and Olufsen v OHIM*²⁸² seemed to illustrate the trade mark owner’s dilemma: in this case, the GC noted that the design of speakers would be an important element in the choice made by the consumer.²⁸³

Indeed, the shape for which registration was sought reveals a very specific design and the applicant itself admits, at para. 92 of the application in particular, that that design is an essential element of its branding and increases the appeal of the product at issue, that is to say, its value.

Protection was denied (see Figure 14.21). Reflecting the concerns noted above, the Max Planck Institute Study of 2011 recommended abolishing this ground of objection, but this was not taken up in the 2015 reform package.

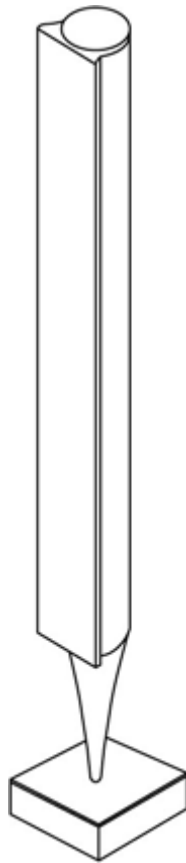


Figure 14.21 Bang & Olufsen loud speaker

14.93 The leading case on this objection is now *Hauck GmbH & Co KG v Stokke A/S*, the Tripp-Trapp chair case.²⁸⁴ The referring court in that case was unsure how to apply what is now Article 4(1)(e)(iii) TMD 2015 given that, while the shape of the Tripp-Trapp chair gave it significant aesthetic value, it also had other characteristics—such as safety, comfort, and reliability—which gave it essential functional value. The ECJ stressed the underlying aim of Article 4(1)(e)(iii) as being to prevent trade mark protection being used to extend indefinitely the life of other IP rights which are subject to more limited time periods.²⁸⁵ In the Court’s view, a ‘shape which gives substantial value to the goods’ could not be limited only to shapes with only artistic or ornamental value as there would be a risk that shapes with both essential functional characteristics and significant aesthetic value would not be caught.²⁸⁶ Article 4(1)(e)(iii) could apply to a sign which consisted exclusively of the shape of a product ‘with several characteristics each of which may give that product substantial value’.²⁸⁷ The assessment could take into account the nature of the category of goods concerned, the artistic value of the shape in question, its dissimilarity from other shapes in common use on the market concerned, any substantial price difference in relation to similar products, and any evidence of a promotion strategy focused on accentuating the aesthetic characteristics of the product in question.²⁸⁸

14.94 There remained considerable uncertainty over where *Hauck* left the interpretation and application of this exclusion, with concern that the range of different aspects of ‘value’ identified as relevant by the ECJ creates undue overlap with the technical functionality exclusion at indent (ii).²⁸⁹ However, the ‘substantial

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value' exclusion has been considered further *Gömböc*,²⁹⁰ the Court's ruling in that case suggesting a more cautious approach to the applicability of this exclusion. In *Gömböc*, the Court emphasised that the application of this exclusion should be:²⁹¹

Based ... on an objective analysis, intended to demonstrate that the shape in question, on account of its characteristics, has such a great influence on the attractiveness of the product that restricting the benefit of the shape to a single undertaking would distort the conditions of competition on the market concerned.

It must therefore be apparent from 'objective and reliable evidence' that a consumer's decision to purchase the goods in question is 'to a very great extent ... determined by one or more features of the shape' which forms the sign.²⁹² A shape which gives substantial value to the goods can consist of a shape with exclusively artistic or ornamental value, although it is not limited to this: 'substantial value' can arise on the basis of other relevant factors, including inter alia whether the shape is dissimilar from other shapes in common use on the market concerned.²⁹³ However, it does not follow per se from the existence of any registered design protection in the shape that the 'substantial value' exclusion must apply,²⁹⁴ nor in this case did this follow automatically from the fact that the goods applied for were described in the specification as '*decorative* items' and '*decorative* crystalware and china' (emphasis added).²⁹⁵ Characteristics of the product not connected to its shape, such as technical quality or the product's reputation, are not relevant.²⁹⁶ In relation to the *Gömböc* application, in the view of the ECJ, it was 'in no way inconceivable' that the substantial value of that type of item could result from factors other than its shape, the Court giving the examples of the story of its creation, its method of production, the materials that it contains, which may be rare or precious, or even the identity of its designer.²⁹⁷

Key points on the exclusion from registration of certain shapes and 'other characteristics' of a sign

- Pursuant to section 3(2) TMA 1994 a sign may not be registered if it consists exclusively of a 'shape' or 'other characteristic' which results from the nature of the goods themselves, is necessary to achieve a technical result, or adds substantial value to the goods.
- These objections are motivated by an intention to avoid anti-competitive trade mark monopolies, albeit that this rationale has been articulated most clearly in relation to technical functionality.
- If any of the objections apply, the sign will not be registrable: it is not possible to overcome these objections by proof of acquired distinctiveness.
- Before the 2015 reforms, these objections applied only to signs which consisted exclusively of an objectionable 'shape'; it remains to be seen how the extension of these objections to signs consisting exclusively of objectionable 'other characteristics' will operate in practice.

p. 587 **Public policy and morality**

Section 3(3)(a) TMA 1994

14.95 Under section 3(3)(a) TMA 1994, a mark will not be registered if it is ‘contrary to public policy or to accepted principles of morality’.²⁹⁸

14.96 These objections are directed to the mark, and are not concerned with the conduct of the applicant.²⁹⁹ The English courts have taken the approach that the public policy and morality objections address two different types of case, with different considerations applying to each.³⁰⁰ The Advocate General in the leading case of *Constantin* expressed the view that public policy and morality are conceptually different and, while they may overlap, each has its own rules.³⁰¹ The ECJ itself did not address this in *Constantin*, noting simply that its judgment addressed the morality objection only.³⁰² For EUTMs, the position is further complicated by the fact that, pursuant to Article 7(2) EUTMR 2017, an EUTM may be refused or invalidated where any absolute ground of objection obtains only in part of the EU. Given the cultural, social, linguistic, historic, and religious diversity existing across the EU, this opens up the possibility of EUTMs being successfully challenged on the basis of public policy or morality concerns that may arise in some parts of the EU but not others.

14.97 What is captured by the concept of ‘public policy’ has not been considered in any depth by the ECJ. The Court’s only pronouncement on this issue has been to confirm in *Skykick* that lack of clarity and precision in the specification of goods and services covered by a trade mark registration cannot be analysed as a public policy objection.³⁰³ The English courts have held that the expression ‘public policy’ refers to matters of the kind covered by the French legal term ‘ordre public’.³⁰⁴ The UK IPO Trade Marks Manual states that the ‘public policy’ objection is ‘intended to deny protection to marks which could induce public disorder, or increase the likelihood of criminal or other offensive behaviour’.³⁰⁵ The EUIPO Examination Guidelines define ‘public policy’ as ‘the body of all legal rules that are necessary for the functioning of a democratic society and the state of law’, giving as examples of marks objectionable for public policy grounds those which ‘contradict the basic principles and fundamental values of the European Union political and social order’ including universal values such as human dignity, freedom and quality, the principles of democracy and the rule of law.³⁰⁶ A figurative mark including the words ‘*La Mafia—se sienta a la mesa*’ has been held by the GC to be contrary to public policy for referring to a criminal organisation (the Mafia), conveying a positive image of that organisation (the words ‘*se sienta a la mesa*’ meaning ‘takes a seat at the table’ in Spanish) and thereby trivialising the serious harm done the Mafia to the fundamental values of the EU.³⁰⁷ A figurative mark consisting of the words ‘CANNABIS STORE AMSTERDAM’ shown against a background pattern of stylised green cannabis leaves has also been held by the GC to be contrary to public policy, the mark being such as to be understood by consumers as referring to narcotic substances illegal in many member states.³⁰⁸

14.98 What is caught by the objection for marks contrary to ‘accepted principles of morality’ has been considered in more depth by the ECJ in *Constantin Film Produktion GmbH v EUIPO*.³⁰⁹ The applicant had applied to register ‘*Fack Ju Göhte*’—meaning ‘Fuck You Goethe’ in German—as an EUTM for goods in a range of Nice classes. The mark was the title of a German comedy film produced by the applicant, and had been one

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of the most successful films in Germany in 2013, with two sequels (*'Fack Ju Göhte 2'* and *'Fack Ju Göhte 3'*) also released. The application had been refused by the EUIPO and appeals against that refusal dismissed by the EUIPO Board of Appeal and GC. However, the ECJ disagreed. While noting that the concept of 'accepted principles of morality' was not defined in the EU legislation, the ECJ held that:³¹⁰

that concept refers, in its usual sense, to the fundamental moral values and standards to which a society adheres at a given time. Those values and norms, which are likely to change over time and vary in space, should be determined according to the social consensus prevailing in that society at the time of the assessment. In making that determination, due account is to be taken of the social context, including, where appropriate, the cultural, religious or philosophical diversities that characterise it, in order to assess objectively what that society considers to be morally acceptable at that time.

14.99 'Accepted principles of morality' may therefore change over time: this leads to the interesting possibility that marks which were at one point objectionable may cease to be so, and vice versa. Assessing whether the morality objection applies requires an examination of 'all the elements specific to the case' in order to determine how the relevant public would perceive the sign applied for if used as a trade mark for the goods or services claimed.³¹¹ It is not sufficient for the sign to be regarded as being in bad taste: it must be perceived by the relevant public as 'contrary to the fundamental moral values and standards of society as they exist at that time'.³¹² This assessment should be based on:³¹³

the perception of a reasonable person with average thresholds of sensitivity and tolerance, taking into account the context in which the mark may be encountered and, where appropriate, the particular circumstances of the part of the Union concerned.

The assessment should not be an abstract one: it must be established that use of the contested mark 'in the concrete and current social context' would be perceived by the relevant public as being contrary to the fundamental moral values and standards of society.³¹⁴ Relevant indicators can include legislation, administrative practices, public opinion, and, where appropriate, the way in which the relevant public has reacted in the past to the contested sign or other similar signs, as well as 'any other factor which may make it possible to assess the perception of that public'.³¹⁵ In *Constantin*, having found that the GC had erred in its legal approach, the ECJ substituted its own assessment. Relevant considerations included the films' great success with the German-speaking public, the fact that the title did not appear to have caused controversy, the fact that access to the films by young people had been authorised and the fact that the Goethe Institute—the cultural institute of the Federal Republic of Germany—had been using the films for educational purposes.³¹⁶ All these factors indicated that the title of the films was not perceived as morally unacceptable by the German-speaking public at large.³¹⁷

14.100 *Constantin* was decided before the end of the Brexit transition period and may require some changes to the way that the morality objection has been applied in the UK. Like the ECJ, the English courts have taken the approach that merely being in poor taste is not sufficient for the morality objection to apply.³¹⁸ However, in *Ghazilian's Trade Mark Application*, the Appointed Person had approached the assessment of the morality objection from the perspective of a 'right-thinking member of the public', taken to be able to objectively

p. 589 assess whether the contested mark would cause the public reaction required to justify being refused.³¹⁹ That is not necessarily the same as adopting the perspective of the ‘reasonable person with average thresholds of sensitivity and tolerance’ as instructed in *Constantin*. In *Ghazilian’s Trade Mark Application*, it was also suggested that a higher degree of outrage or censure among a small section of the community might suffice for the objection to be engaged,³²⁰ but again this is not necessarily consistent with *Constantin*. How far *Constantin* affects the outcome of cases in the UK will remain to be seen. In *Ghazilian’s Trade Mark Application*, an application to register the words ‘Tiny Penis’ in connection with articles of clothing was refused on morality grounds.³²¹ On the other hand, the sign FCUK was allowed.³²² In *Pooja Sweets & Savouries Ltd’s Trade Mark Application*,³²³ the Appointed Person also allowed the registration of the word ‘pooja’,³²⁴ a religious Hindu ritual, in the marks in relation to certain foodstuffs, noting that this would not cause serious offence to reasonable people of normal levels of sensitivity and tolerance, including those who were themselves observant Hindus.

14.101 Further questions which also remain to be addressed include the underlying rationale for the section 3(3)(a) objections and the role played by freedom of expression as a factor in the section 3(3)(a) assessment. The English courts have noted that there is a ‘paradox’ in pinning down the rationale for these objections: refusal to grant a trade mark registration does not prevent the applicant from actually using the mark in trade, and the effect of refusing trade mark protection is, if anything, more likely to mean that others can use the mark too, such that an offensive mark might actually even be more widely used in the event of registration being refused. As the judge noted in *FCUK*:³²⁵

If the subject matter is objectionable, I would have thought that the policy of the law would be to adopt measures which reduced the likelihood of it being disseminated.

In *Constantin*, the ECJ did not address the underlying rationale of the morality objection. It did, however, confirm that freedom of expression is relevant in this context, saying:³²⁶

freedom of expression, enshrined in article 11 of the Charter of Fundamental Rights of the European Union, must ... be taken into account when applying article 7(1)(f) of Regulation No 207/2009. Such a finding is corroborated, moreover, by recital 21 of Regulation No 2015/2424, which amended Regulation No 207/2009 and recital (21) of Regulation 2017/1001, both of which expressly emphasise the need to apply those Regulations in such a way as to ensure full respect for fundamental rights and freedoms, in particular freedom of expression.

What the ECJ did not do was articulate exactly *how* freedom of expression should be taken into account. In the United States, Supreme Court decisions have struck down as unconstitutional interference with First Amendment free speech rights the provisions of the US Lanham Act prohibiting registration of marks which consist of ‘immoral’ matter or which disparage persons or beliefs.³²⁷ It seems clear, however, that that is not how the ECJ sees freedom of expression operating here. Referring to Article 10 of the European Convention on Human Rights (ECHR), the English courts have taken the view that freedom of expression considerations

mean that an application should be refused ‘only where this is justified by a pressing social need and is proportionate to the legitimate aim pursued’, with any real doubts as to the applicability of the objection being resolved by upholding the right to freedom of expression and by permitting the registration.³²⁸

Discussion point

For answer guidance visit www.oup.com/he/brown6e <<https://iws.oup.support.com/ebook/access/content/brown6e-student-resources/brown6e-chapter-14-guidance-on-answering-the-discussion-points?options=showName>>.

Do you think that the case law discussed here adequately covers all of the public policy considerations that might arise in relation to trade mark registration? Do you think that there is any role for

↪ this ground of objection in relation to the appropriation of public domain cultural creations?

Read the article M Senftleben, ‘Vigeland and the status of cultural concerns in trade mark law—the EFTA Court develops more effective tools for preservation of the public domain’ (2017) 48 IIC 683–720, which discusses a decision of the EFTA Court in relation to an attempt to register works by Gustav Vigeland, an eminent Norwegian sculptor, as trade marks. Do you think that EU courts should take a similar approach to cultural works the EFTA Court took in the *Vigeland* case?

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Deceptive marks

Section 3(3)(b) TMA 1994

14.102 A mark may be considered to be deceptive under section 3(3)(b) TMA 1994 if it is ‘of such a nature as to deceive the public (for instance, as to the nature, quality or geographical origin of the goods or service)’.³²⁹

14.103 The concept of deceptiveness was considered by the ECJ in *Elizabeth Florence Emanuel v Continental Shelf 128 Ltd.*³³⁰ The case concerned a trade mark registration for the name ‘Elizabeth Emanuel’, which had been filed by the designer of that name in the 1990s. Ownership of the trade mark had been assigned, along with all corresponding goodwill, when the designer sold her business and the designer had ceased to be involved with the activities of the new owners. Some time later, the new owners also filed a further trade mark application for the ‘Elizabeth Emanuel’ name. The designer opposed that new filing on the basis that it was deceptive and sought to revoke the existing trade mark registration on the basis that it was misleading pursuant to section 46(1)(d) TMA 1994 (discussed further below). Examining the deceptiveness objection, the Court held that the public interest which justified the ground of objection at what is now Article 4(1)(g) TMD 2015 was one of consumer protection, reflecting a risk of confusion in the mind of the average consumer, ‘especially where the person to whose name the mark corresponds originally personified the goods bearing that mark’.³³¹ However, Article 4(1)(g) presupposed:³³²

the existence of actual deceit or a sufficiently serious risk that the consumer will be deceived.

In the present case, even if a consumer was influenced into purchasing a garment because of the name by imagining that the relevant individual was involved in the design, the ‘characteristics and the qualities of that garment remain guaranteed by the undertaking which owns the trade mark’.³³³ Consequently, the name was not in and of itself of a nature to deceive the public as to the nature, quality, or geographical origin of the product it designated. If there was an intention by the owner of the trade mark to make the consumer believe Ms Emanuel was the designer, that could be fraudulent behaviour and would be a matter for the national court, but would not be deception for the purposes of what is now Article 4(1)(g) TMD 2015.³³⁴ A contrasting, more recent example of a UK trade mark application which was refused for deceptiveness under section 3(3) (b) TMA 1994 was an application to register a stylised form of the mark ‘NOSECCO’ for non-alcoholic wines in class 32, opposed by the Consorzio di Tutela della Denominazione di Origine Controllata Prosecco, an association responsible for promoting and enforcing the Protected Designation of Origin (PDO) for ‘Prosecco’, a particular form of Italian wine.³³⁵ The UK IPO Hearing Officer had concluded that there was a risk that consumers would be deceived into thinking that the goods applied for were compliant with the Prosecco PDO, that is, that they were a de-alcoholised form of Prosecco. The Hearing Officer’s conclusion was upheld on appeal to the High Court.³³⁶

p. 591 **Marks prohibited by law, protected emblems, and geographical indications**

Sections 3(4), (4A)–(4D) and (5) TMA 1994

14.104 Further absolute grounds of refusal are to be found in sections 3(4) and (5) TMA 1994. Section 3(4) prohibits registration of marks to the extent that their use would be prohibited in the UK by any enactment or rule of law other than relating to trade marks.³³⁷ Pre-Brexit, section 3(4) TMA 1994 also referred to use prohibited by ‘any provision of EU law’, although this wording has now been deleted. Examples of UK trade mark applications successfully opposed under section 3(4) include an application to register ‘PAWSECCO’ for ‘edible pet treats’ in class 31 and the application for the ‘NOSECCO’ mark (see para 14.103) both of which were found to be prohibited (at the time) pursuant to EU Regulation (EU) 1308/2013 as a result of the Prosecco PDO.³³⁸ Section 3(5) relates to specially protected emblems.³³⁹ These would include, for example, the Union Jack, and any sign that would lead to indication of a connection with the Royal Family. The Paris Convention requires Convention countries to prohibit the registration of ‘armorial bearings, flags and emblems’ of the countries of the Union.³⁴⁰ The ECJ has confirmed that there is broad protection for state emblems.³⁴¹

14.105 Implementing the 2015 reform package, new sub-sections 3(4A)–(4D) were also inserted into the TMA 1994.³⁴² These prohibit the registration of marks contrary to any enactment or rule of law, or any international agreement to which the UK is party, protecting protected designations of origin (PDOs), geographical indications (GIs), traditional terms for wine, traditional specialties guaranteed (TSGs), and plant variety rights.³⁴³

Bad faith

Section 3(6) TMA 1994

14.106 Section 3(6) TMA 1994 provides that a trade mark shall not be registered if or to the extent that the application is made in bad faith. This is also a ground for invalidation in UK law pursuant to section 47(1) TMA 1994.³⁴⁴ For an EUTM, bad faith is a ground for invalidation only (see Art 59(1)(b) EUTMR 2017).

14.107 There is no statutory definition of ‘bad faith’ and it has proved an elusive concept for courts to define. The case law at EU level remained under-developed for some time. Bad faith has, however, now received more by way of recent attention from the ECJ and from the English Court of Appeal in the *Skykick* case. The issues surrounding bad faith and the drafting of the specification of goods and services were discussed at paras 14.28–14.30. This section will look at the rules on bad faith more broadly.

14.108 The first ECJ decision to consider the concept of bad faith was *Chocoladefabriken Lindt & Sprüngli AG v Franz Hauswirth GmbH*.³⁴⁵ The ECJ had been asked to determine a question concerning the registration as an EUTM of a chocolate bunny (Figure 14.22) and the challenge to the registration by other producers of chocolate bunnies (Figure 14.23). In a ruling that tended heavily towards the specifics of the facts of the dispute in hand, the ECJ identified as factors to be taken into account in determining bad faith:

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- the fact that the applicant knows or must know that a third party is using, in at least one member state, an identical or similar sign for an identical or similar product capable of being confused with the sign for which registration is sought;
 - the applicant’s intention to prevent that third party from continuing to use such a sign; and
 - the degree of legal protection enjoyed by the third party’s sign and by the sign for which registration is sought.



Figure 14.22 Lindt bunny



Figure 14.23 Franz Hauswirth bunny

This decision was followed by a further ruling by the ECJ in *Malaysia Dairy Industries*, which confirmed that ‘bad faith’ was an EU law concept requiring a uniform interpretation throughout the EU but did not otherwise substantively develop the discussion on when bad faith might arise.³⁴⁶

14.109 More recently, the ECJ has now considered the concept of bad faith in a way which provides more generalisable case law principles. The Court confirmed in *Koton* that bad faith is not limited to the scenarios addressed in the *Lindt* ruling.³⁴⁷ The Court explained that, although in its usual meaning in everyday language the concept of bad faith ‘presupposes the existence of a dishonest state of mind or intention’, for present purposes the concept must be ‘understood in the context of trade mark law, which is that of the course of trade’.³⁴⁸ Consequently, the bad faith objection applies.³⁴⁹

where it is apparent from relevant and consistent indicia that the proprietor of an EU trade mark has filed the application for registration of that mark not with the aim of engaging fairly in competition but with the intention of undermining, in a manner inconsistent with honest practices, the interests of third parties, or with the intention of obtaining, without even targeting a specific third party, an exclusive right for purposes other than those falling within the functions of a trade mark, in particular the essential function of indicating origin ...

In the *Skykick* preliminary reference decided a short while later (and before the end of the Brexit transition period), the ECJ considered how bad faith might arise in the context of lack of intention to use a mark for the goods or services applied for. As discussed at paras 14.28–14.30, it held that lack of intention to use was not per se bad faith: it would only constitute bad faith if accompanied with objective, relevant, and consistent indicia showing that the applicant had the intentions noted above—that is, the intention of either undermining, in a manner inconsistent with honest practices, the interests of third parties, or of obtaining an exclusive right for purposes other than those falling within the functions of a trade mark.³⁵⁰

14.110 The English Court of Appeal in *Skykick* has now thoroughly reviewed and summarised the state of the authorities on bad faith. Drawing from the ECJ’s rulings, Sir Christopher Floyd confirmed that the concept of bad faith presupposes the existence of a dishonest state of mind or intention:³⁵¹

but dishonesty is to be understood in the context of trade mark law, i.e. the course of trade and having regard to the objectives of the law namely the establishment and functioning of the internal market, contributing to the system of undistorted competition in the Union, in which each undertaking must, in order to attract and retain customers by the quality of its goods or services, be able to have registered as trade marks signs which enable the consumer, without any possibility of confusion, to distinguish those goods or services from others which have a different origin.

With this in mind:³⁵²

The concept of bad faith, so understood, relates to a subjective motivation on the part of the trade mark applicant, namely a dishonest intention or other sinister motive. It involves conduct which departs from accepted standards of ethical behaviour or honest commercial and business practices.

p. 594 ↪ **14.111** The relevant date for assessing whether an application was made in bad faith is the filing date.³⁵³ Good faith is presumed unless the contrary is proved by the party alleging bad faith.³⁵⁴ Whether the applicant was acting in bad faith must be the subject of an overall assessment, taking into account all relevant factors.³⁵⁵ To that end, it is necessary to examine the applicant’s intention when the application was filed, this being a subjective factor which must be determined by reference to the objective circumstances of the case.³⁵⁶ However, even where there are objective indicia pointing towards bad faith, it is possible that the applicant’s intention was in pursuit of a legitimate objective, such as ‘excluding copyists’.³⁵⁷

14.112 Aside from dispute over the drafting of trade mark specifications (which is covered at paras 14.28–14.30), case law from the GC, EUIPO, and English courts gives a flavour of the sort of circumstances which may or may not give rise to a finding of bad faith. Bad faith has been successfully relied upon to invalidate UK

trade mark registrations made by a company affiliated to Michael Gleissner, a well-known large-scale applicant for UK and other trade marks, on the basis that the applications were part of a blocking strategy made with no intention to use the marks in accordance with their essential function.³⁵⁸ In *Hasbro v EUIPO*, the GC held that it could constitute bad faith to making repeated fresh trade mark filings for the same mark with the intention of circumventing the need to prove genuine use to avoid revocation.³⁵⁹ In *Full Colour Black Ltd v Pest Control Office Ltd*, the EUIPO Cancellation Division invalidated for bad faith an EUTM registered by a representative of the artist Banksy for Banksy's 'Flower Thrower' artwork.³⁶⁰ Banksy had not made any use of the sign until after the invalidation proceedings were commenced: he then did so via a shop called 'Gross Domestic Product' which had a window display which the public could look at before buying products online. However, Banksy and his representatives also made a number of public statements indicating that the whole purpose of this set-up was to circumvent the trade mark non-use rules, and not genuinely to use the sign as a trade mark.³⁶¹ The Cancellation Division concluded that the use of the sign was made with the intention of obtaining an exclusive right for purposes other than those falling within the functions of a trade mark.³⁶² It also rejected arguments that the trade mark application was legitimately made because it was intended to allow Banksy to stop third parties taking advantage of his work due to their knowledge that he could not enforce unregistered trade mark rights or copyright without prejudicing his (anonymous) public persona: in the view of the Cancellation Division, the contested EUTM was filed in order to give legal rights over the sign because copyright could not be relied upon, but that was not the function of a trade mark.³⁶³

14.113 By way of contrast to these cases, a bad faith challenge was rejected by the English High Court in *Swatch v Apple*.³⁶⁴ Apple argued that applications by Swatch to register 'ONE MORE THING' and 'SWATCH ONE MORE THING' were made in bad faith because they parodied the phrase 'one more thing' that had commonly been used by the late Steve Jobs as the precursor to announcements at Apple product launches since the late 1990s. However, Apple's arguments were rejected. The High Court accepted that Swatch's applications were at least to some extent designed to 'upset' or 'cock a snook' at Apple.³⁶⁵ It was also possible Swatch had, at the time of filing, 'not ... given much thought' to exactly what they would do with the marks; however, that alone could not constitute bad faith and there was no support in the evidence for the proposition that Swatch intended to use the trade mark to undermine Apple by parodic use.³⁶⁶ The court also observed that 'annoyance of a business is not a concept which is capable of objective analysis' and that the reference in the ECJ case law to 'undermining the interests of third parties' suggested that something economically identifiable was required.³⁶⁷ The court rejected the proposition that parodic intentions must per se amount to bad faith.³⁶⁸

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↩ ‘Poking fun’ and ‘parody’ cover a multitude of possibilities from gentle and affectionate teasing to full-frontal attacks. I do not consider that it is an inherently dishonest business practice to use a sign which brings another trader to the mind of some consumers in an amusing but inoffensive way. Such an activity would not necessarily undermine the interests of the third party in any material way. The point at which parodic or humorous activity of that kind would transgress the boundaries of honest business practices must depend on the nature of the humour, the intensity of its use and its consequent impact on the business interests of the recipient.

One can imagine cases in which a mark is inherently offensively parodic, so that any use of it must inevitably transgress honest business practices and unfairly undermine the interests of the subject of the parody. However, where (as here) the mark itself is not offensive, it is hard to see how the mere prospect that it might be put to some parodic use which overstepped the mark provides a ground for refusal under s.3(6).

Key points on the exclusion of registering a trade mark based on public policy and morality, deceptive marks, and applications in bad faith

- Objections on the grounds of public policy and morality are directed to different issues, but can overlap. ‘Public policy’ is considered by the English courts to equate to matters of the kind covered by the French legal term ‘ordre public’. ‘Accepted principles of morality’ are those fundamental moral values and standards to which a society adheres at a given time, which may change over time and should be determined according to the social consensus prevailing at the time of the assessment. For a mark to be contrary to accepted principles of morality, it is not sufficient that it be in bad taste: the mark must be perceived by the relevant public as contrary to the fundamental moral values and standards of society as they exist at the time, assessed from the perception of a reasonable person with average thresholds of sensitivity and tolerance.
- For a mark to be considered deceptive there needs to be evidence of actual deceit or a sufficiently serious risk that the consumer will be deceived.
- An application will be refused for bad faith where there is a dishonest state of mind or intention, dishonesty being understood in the context of trade mark law as involving conduct which departs from accepted standards of ethical behaviour or honest commercial and business practices. There must be relevant and consistent indicia that the proprietor of the contested mark filed the application not with the aim of engaging fairly in competition but with the intention of undermining, in a manner inconsistent with honest practices, the interests of third parties, or with the intention of obtaining an exclusive right for purposes other than those falling within the functions of a trade mark.

Revocation

Non-use

Sections 46(1)(a)–(b), (2) and (3) TMA 1994

p. 596 **14.114** A registered trade mark must be put to genuine use in the territory in which it is registered (for a national registered mark, the relevant member state; for an EUTM, ‘in the Union’). If a registered trade mark has not been put to genuine use by the proprietor or with his consent within five years following the date of completion of the registration procedure, or if such use of the trade mark has been suspended for an uninterrupted period of five years, the registration may be revoked unless there are ‘proper reasons’ for non-use.³⁶⁹ The mark may not be revoked if genuine use is commenced or resumed after the expiry of the five-year period but before the application for revocation.³⁷⁰ The burden of proof is on the trade mark owner to show that genuine use has been made.³⁷¹ There are also provisions in the TMA 1994 and EUTMR 2017 requiring proof of ‘genuine use’ for marks relied upon in opposition and infringement proceedings.³⁷²

14.115 The recitals of the Trade Marks Directive give an indication as to why a trade mark will be revoked if it is not used.³⁷³

Trade marks fulfil their purpose of distinguishing goods or services and allowing consumers to make informed choices only when they are actually used on the market. A requirement of use is ... necessary in order to reduce the total number of trade marks registered and protected in the Union and, consequently, the number of conflicts which arise between them. It is therefore essential to require that registered trade marks must actually be used in connection with the goods or services for which they are registered or, if not used in that connection within five years of the date of the completion of the registration procedure, be liable to be revoked.

This objective reflects the basic principle that registered trade marks should be used, and if not used then a registration will be vulnerable to challenge.

Traders are thus discouraged from stockpiling registered trade marks, or overclaiming with broad specifications including goods and services for which the mark is not used, thus keeping them from competitors.

14.116 The leading authority on what constitutes ‘genuine use’ is the decision of the ECJ in *Ansul BV v Ajax Brandbeveiliging BV*.³⁷⁴ The Court held that ‘genuine use’ denoted ‘use that is not merely token, serving solely to preserve the rights conferred by the mark’ but instead use must be consistent with the essential function of a trade mark, which is to guarantee the origin of relevant goods or services to the consumer or end user.³⁷⁵ ‘Genuine use’ requires use of the mark, either by the trade mark proprietor or with his consent, in relation to goods on the market or about to be marketed where preparations to secure customers are underway through such activities as advertising campaigns.³⁷⁶ Purely internal use by the relevant undertaking is insufficient.³⁷⁷ As the Court put it:³⁷⁸

The protection the mark confers and the consequences of registering it in terms of enforceability vis-à-vis third parties cannot continue to operate if the mark loses its commercial raison d'être, which is to create or preserve an outlet for the goods or services that bear the sign of which it is composed, as distinct from the goods or services of other undertakings.

In assessing genuine use, regard is to be had to 'all the facts and circumstances relevant to establishing whether the commercial exploitation of the mark is real', looking in particular at whether the use in question is 'viewed as warranted in the economic sector concerned to maintain or create a share in the market for the goods or services protected by the mark'.³⁷⁹ This assessment may include looking at matters such as the nature of the goods or services in issue, the characteristics of the market concerned, and the scale and frequency of use of the mark. The Court stressed, however, that use of the mark does not always have to be quantitatively significant for it to be deemed genuine: the position will depend on the characteristics of the goods or service concerned on the relevant market.³⁸⁰

p. 597 ↺ **14.117** The ECJ has continued to stress that use which is not quantitatively significant may be sufficient to constitute 'genuine use' in appropriate circumstances. The issue arose in a case concerning the registered mark 'Laboratoire de la Mer'.³⁸¹ In this case the use comprised the sale of £800 worth of cosmetics containing seaweed to a firm in Banff, Scotland. There were five deliveries between 1996 and 1997, with the items packed in containers bearing the mark with recommended retail prices of between £5 and £30. The goods were apparently to be sold by sub-agents, but there was no evidence that any of the goods ever reached consumers. The Court repeated the points made in *Ansul*, emphasising that there were no abstract de minimis quantitative thresholds for determining 'genuine use' and that this depended on a case-by-case assessment which was for the national court to carry out.³⁸² The Court stressed that even 'minimal use' could be sufficient to qualify as genuine, if justified in the sector concerned for the purpose of preserving or creating market share for the goods or services protected by the mark.³⁸³ The case was re-heard by the High Court and then appealed to the Court of Appeal.³⁸⁴ The Court of Appeal considered that the owner of the mark in the UK wanted to create an outlet that was sufficient to qualify as genuine use. The Court of Appeal came to the view that there was nothing which indicated that the consumer or end-user market was the only relevant market for determining whether use of a mark is genuine. In the instant case there were arm's-length sales to a third party, who imported the goods. The fact that the use was on the import market and was modest did not prevent that from being genuine use.

14.118 Some uses of a mark will not be sufficient to constitute 'genuine use'. It will not be enough to use a mark on free gifts handed out as a reward for purchasing other goods: such free items are not distributed with the aim of penetrating the market for such goods.³⁸⁵ It is, however, possible for a not-for-profit organisation to put a mark to genuine use where it uses the mark to identify and promote the goods or services for which it is registered to the general public.³⁸⁶ In a more recent dispute involving an EUTM which should, perhaps, have been registered instead as a collective trade mark (see Chapter 13), the ECJ has confirmed that affixing a mark to goods solely as a label of quality (rather than origin) would not constitute 'genuine use' under what is now Article 18 EUTMR 2017.³⁸⁷

p. 598 **14.119** Interesting issues arise when the trade mark owner stops selling the goods for which the mark is registered, but continues to use the mark in relation to the provision of after-sales services or the sale of component parts or second-hand goods. Can these activities constitute ‘genuine use’ of the mark in relation to the goods for which it was originally registered? This was an issue in the *Ansul* preliminary reference: the contested mark in that case (the word mark ‘MINIMAX’, registered for fire extinguishers) had been registered in 1971, but from 1989 to 1994 the trade mark owner had stopped selling fire extinguishers under the mark, instead selling only component parts and providing after-sales services (such as maintenance and repair) for fire extinguishers previously sold under the mark. During this time period, the trade mark owner used the ‘MINIMAX’ mark on the invoices issued for its services and on stickers on the components supplied. In *Ansul*, the ECJ confirmed that there may be genuine use of the mark in certain circumstances in respect of goods for which the mark is registered that were sold at one time but are no longer available.³⁸⁸ That would be the case where the trade mark owner used the mark for ‘parts which are integral to the make-up or structure of the goods previously sold’ or in providing goods and services ‘directly related’ to the previously-sold goods and ‘intended to meet the needs of customers’ of those goods: genuine use of the mark for such parts, or related goods and services, was deemed to relate to the goods previously sold and thus to preserve the trade mark owner’s rights in respect of those goods.³⁸⁹ In a more recent (pre-Brexit) preliminary reference involving Ferrari’s ‘Testarossa’ trade mark, the ECJ was asked whether there could be genuine use of the mark by the trade mark owner in the resale, by the trade mark proprietor, of second-hand goods previously placed on the market under the mark.³⁹⁰ In this case, Ferrari had ceased using the ‘Testarossa’ mark on newly-produced cars in the 1990s, producing only a one-off ‘Testarossa’ model in 2014. The Court confirmed that, if the trade mark owner actually uses the mark in accordance with its essential function when reselling second-hand goods, then such use is capable of constituting ‘genuine use’ of the mark.³⁹¹ This will be a question of fact to be determined in every case. For example, in the *London Taxi* case, in a dispute over non-use of one of the contested trade mark registrations, Arnold J (as he then was) found that the trade mark owner’s sales of second-hand goods was insufficient to create or maintain a share of the market for the relevant goods.³⁹² In *Aiwa v Aiwa*, the High Court found that sales of second-hand ‘AIWA’-branded goods by third parties not linked to the trade mark owner did not amount to genuine use: on the facts, those sales did not take place with the trade mark owner’s express or implied consent and were not, in any event, of a level or nature capable of maintaining a market share or preserving an outlet for goods bearing mark as required by the case law.³⁹³

14.120 For revocation purposes, relevant ‘use’ of the mark includes use of the trade mark ‘in a form ... differing in elements which do not alter the distinctive character of the mark in the form in which it was registered’.³⁹⁴ The purpose of this provision is to allow the trade mark owner, in commercial exploitation of the mark, to make minor variations to the mark which adapt it better to the trade mark owner’s marketing and promotion requirements while without altering its distinctive character.³⁹⁵ The variant form of the mark can itself also be a registered mark.³⁹⁶ There may be ‘genuine use’ of a mark where the mark has been used independently and also where it has been used as a part of or in conjunction with another mark.³⁹⁷ In *Specsavers v Asda*, an issue arose over whether there had been genuine use of a wordless logo mark belonging to Specsavers (see Figure 14.24).³⁹⁸ The logo had only been used with the name ‘Specsavers’ superimposed over it (see Figure 14.25), both ‘Specsavers’ and the combined word/logo being separately also registered as trade marks.



Figure 14.24 Specsavers wordless logo mark



Figure 14.25 Specsavers registered mark with 'Specsavers' superimposed

p. 599 ↵ The ECJ held that this was use of the wordless logo mark in a different form to that which had been registered, but it was possible that the differences did not alter its distinctive character. There could therefore be 'genuine use' pursuant to what is now Article 18(1)(a) EUTMR 2017.

14.121 The geographical extent of use required to constitute 'genuine use' is a particular issue for EUTMs. The issue was considered in *Leno Merken BV v Hagelkruis Beheer BV*.³⁹⁹ The Court was asked to determine what constituted genuine use 'in the Community' (now 'Union') for the purposes of what is now Article 18 EUTMR 2017 and, in particular, whether use in one member state would be enough to satisfy that requirement. The mark in dispute, 'ONEL', had been used in the Netherlands but no proof of use was provided for any other member state.

The ECJ did not answer the questions referred particularly clearly. The Court indicated that territorial borders should be disregarded when deciding if there had been genuine use of a trade mark 'in the Community'.⁴⁰⁰ If 'genuine use' was to be assessed by reference to the territories of member states, that would frustrate the objectives of the EUTM system as an EU-wide unitary right.⁴⁰¹ The Court noted that 'there is admittedly some justification for thinking that a Community trade mark should—because it enjoys more extensive territorial protection than a national trade mark—be used in a larger area than the territory of a single Member State'.⁴⁰² However, in certain circumstances if the market for the goods or services for which an EUTM was been registered was in fact restricted to the territory of a single member state, it could not be ruled out that use in a single member state could be sufficient to constitute 'genuine use' of an EUTM.⁴⁰³ As 'genuine use' had to be assessed on a case-by-case basis it was not possible to stipulate an abstract minimum geographic scope of use.⁴⁰⁴ It was for the national court to assess the position in light of all relevant facts and circumstances.⁴⁰⁵ The continuing uncertainty left by the *Leno Merken* ruling is illustrated by two more recent conflicting decisions based on the same EUTM for the mark 'TITANIC', registered for alcoholic beverages in class 33. In proceedings before the UK IPO in which the EUTM owner was required to prove genuine use of the mark as a precursor to opposing a later application, total sales over three to four years, worth just under

£15,000 and focused in the Belfast area, were held not to be sufficient to demonstrate genuine use of the relevant EUTM.⁴⁰⁶ However, the same evidence was taken as sufficient by the EUIPO First Board of Appeal to reject a non-use challenge against the same 'TITANIC' EUTM.⁴⁰⁷

In *The Sofa Workshop Ltd v Sofaworks Ltd*⁴⁰⁸ HHJ Hacon sitting in IPEC summarised the ECJ's case law thus:

- (1) [T]he question of whether there has been 'genuine use in the Community' is not to be approached from the perspective of whether there has been use of the mark in more than one, two or any other particular number of member states. Territorial borders are to be disregarded;
- (2) [A] Community trade mark is put to genuine use in the Community where it is used in accordance with its essential function, which is to guarantee the identity of the origin of the goods or services for which it is registered, and used for the purpose of maintaining or creating market share within the European Community for the goods or services covered by the mark;
- (3) [W]hether the mark has been so used will depend on all relevant facts and circumstances, including the characteristics of the market concerned, the nature of the relevant goods and services, the territorial extent and scale of use, and the frequency and regularity of use;
- (4) [P]urely in relation to the territorial extent of use, genuine use in the Community will in general require use in more than one member state; and
- (5) [A]n exception to that general requirement arises where the market for the relevant goods or services is restricted to the territory of a single member state.

p. 600 ↩ 14.122 Revocation will not occur on the grounds of non-use if there are 'proper reasons for non-use'.⁴⁰⁹ 'Non-use' here refers to both a situation where there has been no use at all of the mark and where its use has been only limited, such as to fail to qualify as 'genuine use'.⁴¹⁰ A question as to whether there would be 'proper reasons' where there was delayed implementation of the corporate strategy being pursued by the trade mark proprietor for reasons outside his control was referred to the ECJ in *Armin Häupl v Lidl Stiftung & Co KG*.⁴¹¹ The disputed mark was registered in various territories, including Austria, for ready-meals. However, Lidl had been delayed in opening supermarkets in Austria by 'bureaucratic obstacles' and thus had not sold the goods in Austria within the requisite five-year period. The Court expressed concern that the objectives of the scheme of revocation for non-use would be undermined if too broad a scope was given to the concept of 'proper reasons', for example to encompass any obstacle arising independently of the will of the trade mark owner.⁴¹² In order to be taken into account, any obstacles had to have a direct relationship with the trade mark. The obstacle did not have to make use of the mark impossible: there would also be 'proper reasons' where use of the mark was unreasonable—for example, if the only way to use the mark was to sell the trade mark owner's goods in competitor outlets.⁴¹³ These difficulties had to 'arise independently of the

will of the proprietor of the mark and it was for the national court to assess whether it would have been unreasonable for the proprietor to change his business strategy in order to get around the difficulty.⁴¹⁴ It thus seems that the hurdle may be high to show non-use is reasonable.

Liable to mislead

14.123 Revocation can also take place if, after the date upon which it was registered, in consequence of the use made of it by the proprietor or with his consent in relation to the goods or services for which it is registered, the mark is liable to mislead the public, particularly as to the nature, quality, or geographical origin of those goods or services.⁴¹⁵ It will be recalled from the discussion in para 14.103 that a mark that is liable to deceive the public is precluded from registration. This section is the counterpart to the non-registrability of a mark in that if, after having successfully been registered, a mark becomes likely to mislead the public, then it can be revoked.

14.124 The case law discussed at para 14.103 will be relevant here. In addition, interesting questions arise over the extent to which, if a trade mark has been licensed to another, the trade mark owner needs to maintain quality control over the goods or services produced under the mark in order to avoid the mark becoming vulnerable to revocation on this ground. The issue was referred to the ECJ by the House of Lords in *Scandecor Developments AB v Scandecor Marketing AB*,⁴¹⁶ but the case settled before judgment was given by the ECJ. The issue has, however, come before the ECJ again in *WF Gözze Frottierweberei GmbH v Verein Bremer Baumwollbörse*.⁴¹⁷ The Court reiterated its finding in *Emanuel* (see para 14.103) that the risk of deception presupposes actual deceit or a sufficiently serious risk that consumers will be deceived.⁴¹⁸ It is necessary to show that the trade mark per se creates such a risk.⁴¹⁹ The subsequent management of the mark and licences relating thereto are irrelevant.⁴²⁰ A mark cannot be declared invalid for failure of the trade mark owner to carry out periodic quality controls over its licensees.⁴²¹

p. 601 Genericism

14.125 A registered trade mark may also be revoked if, after registration, in consequence of the acts or inactivity of the proprietor, it has become the common name in the trade for a product or service in respect of which it is registered.⁴²² The proprietor of a registered trade mark should therefore take care that the mark does not become generic. Although the legislation refers to a mark becoming the generic name 'in the trade', the ECJ has said that the relevant circles 'comprise principally consumers and end users'.⁴²³ However, depending on the features of the mark for the relevant product, 'the influence of intermediaries on decisions to purchase, and thus their perception of the trade mark, must also be taken into consideration'.⁴²⁴

14.126 The genericism of the mark must be due to the action or inaction of the trade mark proprietor.⁴²⁵ 'Inactivity' can include failing to take action against infringers, but is not limited to this: it includes any omission by which the trade mark proprietor 'shows that he is not sufficiently vigilant as regards the preservation of the distinctive character of his trade mark'.⁴²⁶ The proprietor of a registered trade mark is thus well advised to take active steps in order to ensure that his mark does not become generic. Such measures may include, for example, emphasising the mark in comparison with surrounding text. *Backaldrin*

also suggests that a trade mark owner should contact sellers of the trade mark owner's products to ensure that they in turn inform customers that the mark is registered.⁴²⁷ As part of the 2015 reform package, a new section 99A has been inserted into the TMA 1994 (see also Art 12 EUTMR 2017) which applies if the reproduction of a trade mark in a print or electronic 'dictionary, encyclopaedia or similar reference work' gives the impression that the mark constitutes the generic name of the goods or services for which the trade mark is registered. On a written request from the trade mark proprietor, the publisher must ensure that the reproduction of the mark is accompanied by an indication that it is a registered trade mark (s 99A(2) TMA 1994). This must be done without delay and, for printed works, no later than the next edition (s 99A(3) TMA 1994). Various remedies are available if the publisher does not act (s 99A(4) TMA 1994).

Question

Can you think of any marks that have, in your view, become generic? How should a trade mark owner go about trying to prevent this? Consider the 'Don't say Velcro' campaign on YouTube:
www.youtube.com/watch?v=rRi8LptvFZY&start_radio=1&list=RDrRi8LptvFZY&t=0 <https://www.youtube.com/watch?v=rRi8LptvFZY&start_radio=1&list=RDrRi8LptvFZY&t=0>. Do you think this is an effective way of tackling the issue?

The extent of revocation

14.127 If a mark is to be revoked, then the question also arises as to the extent of that revocation. Section 46(5) TMA 1994 provides that, where grounds for revocation exist in respect of only some of the goods or services for which the mark is registered, revocation shall relate to those goods or services only (see also Art 58(2) EUTMR 2017). This becomes difficult, however, if the trade mark specification uses broad terminology (eg 'clothing', 'computer software', or 'alcoholic drinks') which may cover a multitude of different sub-categories of product in respect of only some of which the mark has been used. Must the registration be revoked altogether, or should the registration remain and only some of the goods or services in the specification be revoked by rewriting the specification? As the Court of Appeal has noted:⁴²⁸

there are here two competing considerations. On the one hand, a proprietor should not be able to monopolise the use of a trade mark in relation to a general category of goods or services simply because he has used it in relation to a few of them. A mark should remain registered only for those goods or services in relation to which it has been used. On the other hand, a proprietor cannot reasonably be expected to use his mark in relation to every possible variation of all of the goods or services covered by his registration.

The Court of Appeal has set out a four-step test which should be followed in such a case:⁴²⁹

First, it is necessary to identify the goods or services in relation to which the mark has been used during the relevant period.

Secondly, the goods or services for which the mark is registered must be considered. If the mark is registered for a category of goods or services which is sufficiently broad that it is possible to identify within it a number of subcategories capable of being viewed independently, use of the mark in relation to one or more of the subcategories will not constitute use of the mark in relation to all of the other subcategories.

Thirdly, it is not possible for a proprietor to use the mark in relation to all possible variations of a product or service. So care must be taken to ensure this exercise does not result in the proprietor being stripped of protection for goods or services which, though not the same as those for which use has been proved, are not in essence different from them and cannot be distinguished from them other than in an arbitrary way.

Fourthly, these issues are to be considered having regard to the perception of the average consumer and the purpose and intended use of the products or services in issue. Ultimately it is the task of the tribunal to arrive at a fair specification of goods or services having regard to the use which has been made of the mark.

In *Merck*, the question was whether the trade mark owner should retain its registration for 'pharmaceutical substances and preparations', when it had only used the relevant mark for pharmaceuticals for treatment of certain specific conditions. It was concluded that the contested specification of goods should be limited to the series of subcategories of products in relation to which the disputed mark had been used.⁴³⁰ Another example of the English court cutting down a specification in this way is *Fil Limited v Fidelis Underwriting Limited*, relating to the term 'insurance services'.⁴³¹ The High Court held that the term 'insurance services' covered a broad range of different subcategories, such as car insurance, home insurance, and travel insurance. The disputed marks had only been used in relation to pension-related insurance services, so 'insurance services' was amended to 'pension-related insurance services' to reflect this.⁴³²

14.128 The issue has also been considered by the ECJ. The Court has held that, for partial revocation purposes, any subcategory of goods into which a more broadly-drafted specification is to be re-written must be identified 'having recourse to a criterion enabling that subcategory to be delimited in a sufficiently precise manner'.⁴³³ The purpose and intended use of the goods or services at issue are essential criteria for defining a subcategory of goods in this way.⁴³⁴ In the (pre-Brexit) *Ferrari* non-use case, the ECJ considered whether use of the 'Testarossa' mark only on high-end luxury sports cars could amount to genuine use across a specification covering motor vehicles generally in class 12. The ECJ's response favoured the conclusion that this could constitute genuine use across the whole motor vehicles category, and did not require the specification to be limited only to certain subcategories of vehicle. The Court held that the mere fact that the goods in respect of which the mark had been used were sold at a particularly high price and thus belonged to a particular market was not sufficient for them to be regarded as an independent subcategory of the goods,

p. 603 nor were they an independent subcategory of goods because they could be described as 'sports cars' (as this was only one of the uses to which the cars could be put) or 'luxury cars' (since this could describe several types of car).⁴³⁵

Key points on revocation

- A registered trade mark must be put to genuine use: revocation may occur if it has not been put to genuine use within five years of registration or use is suspended for more than five years thereafter.
- Token use is not sufficient for genuine use.
- Revocation will not occur if there are proper reasons for non-use.
- Revocation can also occur where the use of a mark is liable to mislead the public as to the nature, quality, or geographical origin of the goods and services and if the mark becomes generic.

Further reading

Books

I Calboli and M Senftleben (eds), *The Protection of Non-Traditional Marks: Critical Perspectives* (2018)

Studies

Max Planck Institute for Intellectual Property and Competition Law, 'Study on the Overall Functioning of the European Trade Mark System' (February 2011)

Articles

M Adams and A Scardamaglia, 'Non-traditional trade marks in Europe: an historical snapshot of applications and registrations' (2018) 40(10) EIPR 623–629

L Anamaet, 'The public domain is under pressure—why we should not rely on empirical data when assessing trade mark distinctiveness' (2016) 47(3) IIC 303–305

A Fernandez-Mora, 'Inconsistencies in European trade mark law: the public policy and morality exclusions' (2020) 4 IPQ 271–298

I Fhima, 'The public interest in European trade mark law' (2017) 4 IPQ 311–329

I Fhima, 'Consumer Value as the Key to Trade Mark Functionality' (2022) 85(3) MLR 661–696

C Gielen, 'Substantial value rule: how it came into being and why it should be abolished' (2014) 36(3) EIPR 164–169

A Kur, 'Too common, too splendid, or "just right"? Trade mark protection for product shapes in the light of CJEU case law', Max Planck Institute for Innovation and Competition Research Paper No 14–17

J Marshall, 'Colour trade marks: certainty, utility or impossibility' (2017) 12(10) JIPLP 860–866

A Quaedvlieg, 'Shapes with a technical function: an ever-expanding exclusion? (2016) 17 ERA Forum 101–117

M Senftleben, '*Vigeland* and the status of cultural concerns in trade mark law—the EFTA Court develops more effective tools for preservation of the public domain' (2017) 48 IIC 683–720

Notes

¹ TMA 1994, s 72; EUTMR 2017, Art 127(1).

² TMA 1994, s 47(6). This does not affect transactions which are past and closed.

³ For EUTMs, see EUTMR 2017, Art 59 (identifying the grounds for invalidation of an EUTM as registration contrary to Art 7 EUTMR 2017, and bad faith).

⁴ TMA 1994, s 46(6).

⁵ Based on TMD 2015, Art 3.

⁶ Case C-299/99 *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd* [2002] ETMR 81.

⁷ *ibid*, para 39 (referring to the old Article numbering of the Directive: this corresponds to what is now Art 3 TMD 2015). The Court also rejected the notion that a shape be required to display some sort of 'capricious addition' (such as an embellishment with no functional purpose) to be 'capable of distinguishing' for the purpose of what was then Art 2 TMD: *ibid*, paras 47-50.

⁸ *West (t/a Eastenders) v Fuller Smith & Turner Plc* [2003] FSR 44 at para 35. Arts 3(1)(b), (c), and (d) and 3(3) of the then version of the Directive are now Arts 4(1)(b), (c), and (d) and 4(4) TMD 2015.

⁹ UK Trade Mark No 1438989, class 30, proprietor: Mars Wrigley Confectionery UK Limited.

¹⁰ EUTM No 23069, classes 7 and 12, proprietor: Rolls-Royce plc.

¹¹ UK Trade Mark No 2000546, class 32, proprietor: The Coca-Cola Company.

¹² UK Trade Mark No 2002390, classes 6, 12, 16, and 28, proprietor: Bayerische Motoren Werke Aktiengesellschaft.

¹³ EUTM No 3903101, class 43, proprietor: McDonald's International Property Company, Ltd.

¹⁴ Case C-104/01 *Libertel Groep BV v Benelux-Merkenbureau* [2003] ETMR 63 at para 27, although the Court does not articulate in detail what this contextual assessment should be looking for.

¹⁵ Case C-49/02 *Heidelberger Bauchemie GmbH* [2004] ETMR 99 at paras 24 and 42.

¹⁶ Case C-421/13 *Apple Inc v Deutsches Patent- und Markenamt* [2014] ETMR 48 at para 19.

¹⁷ Case C-49/02 *Heidelberger Bauchemie GmbH* [2004] ETMR 99 at para 24.

¹⁸ Case C-321/03 *Dyson Ltd v Registrar of Trade Marks* [2007] ETMR 34.

¹⁹ *ibid*, para 35.

²⁰ *ibid*, paras 36 and 37.

²¹ *ibid*, para 38.

²² *ibid*, para 39.

²³ Case C-49/02 *Heidelberger Bauchemie GmbH* [2004] ETMR 99 at para 31.

²⁴ *Société des Produits Nestlé SA v Cadbury UK Ltd* [2014] ETMR 3.

²⁵ *ibid*, para 50.

²⁶ *ibid*, para 51; note that the representation requirement was still for ‘graphic’ representation at the time.

²⁷ *Cadbury UK Ltd v Société des Produits Nestlé SA* [2019] ETMR 39 (UK IPO Hearing Officer); *Cadbury UK Ltd v Société des Produits Nestlé SA and the Comptroller-General of Patents, Designs and Trade Marks (intervener)* [2022] EWHC 1671 (Ch) (Meade J on appeal to the English High Court). The upshot post-appeal is that the mark was held to satisfy the requirements of s1(1) TMA 1994 with the description ‘The colour purple (Pantone 2685C), as shown on the form of application, applied to the whole visible surface of the packaging of the goods’: this description did not suffer from the same uncertainties introduced by the word ‘predominantly’ which had previously proved so problematic in *Société des Produits Nestlé SA v Cadbury UK Ltd* [2014] ETMR 3. Meade J on appeal also held that requirements of 1(1) TMA 1994 were met by an application with the description ‘The colour purple (Pantone 2685C), as shown on the form of application’: again, this did not suffer from the ambiguity of language arising in the earlier dispute. However, the description ‘The colour purple (Pantone 2685C), as shown on the form of application, applied to the packaging of the goods’ was felt by both the UK IPO Hearing Officer and Meade J to be ambiguous (eg not indicating whether the colour was to be used on the whole of the packaging or only part) and capable of extending to situations in which there were other colours also present, but not in a way specified in Cadbury’s trade mark application.

²⁸ *JW Spear & Sons Ltd, Mattel Inc and Mattel UK Ltd v Zynga Inc* [2014] ETMR 5.

²⁹ *ibid*, para 32; there was also no acceptable representation of the mark.

³⁰ Case C-273/00 *Ralf Sieckmann v Deutsches Patent- und Markenamt* [2003] ETMR 37.

³¹ *ibid*, para 55.

³² *ibid*, para 47.

³³ *ibid*, paras 47–51.

³⁴ TMD 2015, recital 13; see also EUTMR 2017, recital 10.

³⁵ See in particular, UK IPO, *Manual of trade marks practice*, ‘New applications’ (www.gov.uk/guidance/trade-marks-manual/new-applications <<https://www.gov.uk/guidance/trade-marks-manual/new-applications>>).

³⁶ See, eg, *Eli Lilly and Company’s Application* (OHIM Second Board of Appeal, Case R 120/2001–2) [2004] ETMR 4, concerning an attempt to register the ‘taste of artificial strawberry flavour’ in respect of pharmaceutical products.

³⁷ Case C-283/01 *Shield Mark BV v Joost Kist HODN Memex* [2004] ETMR 33.

³⁸ *ibid*, para 62.

³⁹ Decision No EX-05–3 of the President of the Office of 10 October 2005 concerning electronic filing of sound marks.

- ⁴⁰ UK IPO, *Manual of trade marks practice*, 'New applications', para 2.4.6; EUTMIR, Art 3(3)(g).
- ⁴¹ Case C-104/01 *Libertel Groep BV v Benelux-Merkenbureau* [2003] ETMR 63.
- ⁴² UK IPO, *Manual of trade marks practice*, 'New applications', para 2.4.5; EUTMIR, Art 3(3)(f)(i).
- ⁴³ Case C-49/02 *Heidelberger Bauchemie GmbH* [2004] ETMR 99.
- ⁴⁴ *ibid*, para 33.
- ⁴⁵ UK IPO, *Manual of trade marks practice*, 'New applications', para 2.4.5; EUTMIR, Art 3(3)(f)(ii).
- ⁴⁶ *Glaxo Wellcome UK Ltd (t/a Allen & Hanburys), Glaxo Group Ltd v Sandoz Ltd* [2017] ETMR 27 at para 80.
- ⁴⁷ UK IPO, *Manual of trade marks practice*, 'New applications', para 2.4.3; EUTMIR, Art 3(3)(c).
- ⁴⁸ EUTMIR, Art 3(3)(d). Position marks are not considered as a category as such in the UK IPO's 'New applications' guidance, but general guidance is given elsewhere in the *Manual of trade marks practice*.
- ⁴⁹ UK IPO, *Manual of trade marks practice*, 'New applications', para 2.4.4; EUTMIR, Art 3(3)(e).
- ⁵⁰ UK IPO, *Manual of trade marks practice*, 'New applications', paras 2.4.7–2.4.9; EUTMIR, Arts 3(3)(h)–(j). Motion marks may alternatively be represented by a sequence of still images; holograms can also alternatively be represented using graphic or photographic reproductions containing the views needed to identify the holographic effect.
- ⁵¹ UK IPO, *Manual of trade marks practice*, 'New applications', para 2.3; EUTMIR, Art 3(4).
- ⁵² UK IPO, *Manual of trade marks practice*, 'New applications'; EUTMIR, Art 3(3).
- ⁵³ Case C-418/02 *Praktiker Bau- und Heimwerkermärkte AG* [2005] ETMR 88 and Case C-420/13 *Netto Marken-Discount AG & Co KG v Deutsches Patent- und Markenamt* [2014] ETMR 52, confirming the (then quite controversial, although now settled) proposition that a mark can be registered for 'retail services'.
- ⁵⁴ Case C-307/10 *Chartered Institute of Patent Attorneys v Registrar of Trade Marks* [2012] ETMR 42.
- ⁵⁵ *ibid*, paras 46–49.
- ⁵⁶ *ibid*, paras 54–56.
- ⁵⁷ *ibid*, para 61.
- ⁵⁸ Trade Mark Rules 2008 (SI 2008/1797) (as amended), r 8; based on TMD 2015, Art 39.
- ⁵⁹ Trade Mark Rules 2008, r 8, para (2)(b).
- ⁶⁰ Trade Mark Rules 2008, r 8, para (2B).
- ⁶¹ *Sky Plc v Skykick UK Ltd* [2018] ETMR 23 and [2018] RPC 12.
- ⁶² Case C-371/18 *Sky Plc v SkyKick UK Ltd* [2020] ETMR 24 at paras 55–61. The ECJ also rejected arguments that lack of clarity and precision in the specification meant that a trade mark registration could be invalidated as non-compliant with the definition of a registrable trade mark or as being contrary to public policy: *ibid*, paras 63–64 and 65–67.
- ⁶³ TMA 1994, s 3(6); EUTMR 2017, Art 59(1)(b).
- ⁶⁴ Case C-371/18 *Sky Plc v SkyKick UK Ltd* [2020] ETMR 24 at para 76.
- ⁶⁵ *ibid*, para 77.

⁶⁶ *ibid*, para 77.

⁶⁷ *ibid*, para 78.

⁶⁸ *Sky Plc v Skykick UK Ltd* [2020] RPC 16.

⁶⁹ *Sky Limited (formerly Sky Plc) v SkyKick UK Ltd* [2021] EWCA Civ 1121 at paras 45 and 71.

⁷⁰ *ibid*, para 113.

⁷¹ *ibid*, para 113.

⁷² *ibid*, para 116.

⁷³ *ibid*, para 67, point (12).

⁷⁴ See also TMD 2015, Art 4.

⁷⁵ Case C-104/01 *Libertel Groep BV v Benelux Merkenbureau* [2003] ETMR 63 at para 59. See also Joined Cases C-108/97 and 109/97 *Windsurfing Chiemsee Produktions- und Vertriebs GmbH v Boots- und Segelzubehör Walter Huber and Another* [2000] Ch 523 at para 28.

⁷⁶ Joined Cases C-53/01, C-54/01, and C-55/01 *Linde AG, Winward Industries Inc, Rado Uhren AG* [2003] ETMR 78 at para 67; *Société des Produits Nestlé SA v Mars UK Ltd* [2003] ETMR 101 at para 42.

⁷⁷ Case C-363/99 *Koninklijke KPN Nederland NV v Benelux-Merkenbureau* [2004] ETMR 57 at para 85; *Société des Produits Nestlé SA v Mars UK Ltd* [2003] ETMR 101 at para 42.

⁷⁸ Case C-299/99 *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd* [2002] ETMR 81 at para 77.

⁷⁹ EUTMR 2017, Art 7(2).

⁸⁰ Case C-329/02 *SAT.1 Satellitenfernsehen GmbH v OHIM* [2005] ETMR 20 at para 41.

⁸¹ *ibid*, para 27.

⁸² Case C-104/01 *Libertel Groep BV v Benelux-Merkenbureau* [2003] ETMR 63.

⁸³ *ibid*, para 54.

⁸⁴ *ibid*, para 55.

⁸⁵ Case C-329/02 P *SAT.1 Satellitenfernsehen GmbH v OHIM* [2005] ETMR 20 at para 36.

⁸⁶ Joined Cases C-53/01, C-54/01, and C-55/01 *Linde AG, Winward Industries Inc, Rado Uhren AG* [2003] ETMR 78 at para 40; *Société des Produits Nestlé SA v Cadbury UK Ltd* [2014] ETMR 17 at para 40 citing numerous further ECJ authorities to this effect.

⁸⁷ Joined Cases C-53/01, C-54/01, and C-55/01 *Linde AG, Winward Industries Inc, Rado Uhren AG* [2003] ETMR 78 at para 41; *Société des Produits Nestlé SA v Cadbury UK Ltd* [2014] ETMR 17 at para 41. See further the discussion on the ‘average consumer’ in Chapter 15.

⁸⁸ Cases C-136/02 P *Mag Instrument Inc v OHIM* [2005] ETMR 46 at para 50.

⁸⁹ By way of example: Case C-299/99 *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd* [2002] ETMR 81 at para 48; Joined Cases C-53/01, C-54/01, and C-55/01 *Linde AG, Winward Industries Inc, Rado Uhren AG* [2003] ETMR 78 at paras 42–49; Case C-404/02 *Nichols Plc v Registrar of Trade Marks* [2005] ETMR 21 at para 24.

⁹⁰ Joined Cases C-53/01, C-54/01, and C-55/01 *Linde AG, Winward Industries Inc, Rado Uhren AG* [2003] ETMR 78 at para 48.

⁹¹ Case C-104/01 *Libertel Groep BV v Benelux-Merkenbureau* [2003] ETMR 63 at para 65; Joined Cases C-53/01, C-54/01, and C-55/01 *Linde AG, Winward Industries Inc, Rado Uhren AG* [2003] ETMR 78 at para 48; Case C-218/01 *Henkel KGaA v Deutsches Patent- und Markenamt* [2005] ETMR 45 at para 52; Case C-173/04 P *Deutsche SiSi-Werke v OHIM* [2006] ETMR 41 at para 28.

⁹² Joined Cases C-108/97 and C-109/97 *Windsurfing Chiemsee Produktions- und Vertriebs GmbH v Boots- und Segelzubehör Walter Huber and Another* [2000] Ch 523 at para 25.

⁹³ *Starbucks (HK) Ltd v British Sky Broadcasting Group Plc* [2014] FSR 20 at para 41.

⁹⁴ Joined Cases C-108/97 and C-109/97 *Windsurfing Chiemsee Produktions- und Vertriebs GmbH v Boots- und Segelzubehör Walter Huber and Another* [2000] Ch 523 at para 30.

⁹⁵ *ibid*, para 35; Case C-363/99 *Koninklijke KPN Nederland NV v Benelux-Merkenbureau* [2004] ETMR 57 at para 58.

⁹⁶ Case C-363/99 *Koninklijke KPN Nederland NV v Benelux-Merkenbureau* [2004] ETMR 57 at para 57.

⁹⁷ Case C-51/10 P *Agencja Wydawnicza Technopol sp z oo v OHIM* [2011] ETMR 34 at para 49.

⁹⁸ *ibid*, para 50.

⁹⁹ Case C-363/99 *Koninklijke KPN Nederland NV v Benelux-Merkenbureau* [2004] ETMR 57 at para 102.

¹⁰⁰ Joined Cases C-53/01, C-54/01, and C-55/01 *Linde AG, Winward Industries Inc, Rado Uhren AG* [2003] ETMR 78 at para 69.

¹⁰¹ Case C-363/99 *Koninklijke KPN Nederland NV v Benelux-Merkenbureau* [2004] ETMR 57 at para 113.

¹⁰² Case C-517/99 *Merz & Krell GmbH & Co* [2002] ETMR 21 at paras 28 and 37.

¹⁰³ *ibid*, para 31.

¹⁰⁴ *ibid*, paras 35–36. The Court emphasised that descriptiveness is the key criterion under what is now Art 7(1)(c) EUTMR but not Art 7(1)(d) EUTMR.

¹⁰⁵ Case C-517/99 *Merz & Krell GmbH & Co* [2002] ETMR 21 at paras 39–40.

¹⁰⁶ Case C-192/03 P *Alcon Inc v Office for Harmonisation in the Internal Market (Trade Marks and Designs) (OHIM)* [2005] ETMR 69.

¹⁰⁷ Case C-409/12 *Backaldrin Österreich The Kornspitz Co GmbH v Pfahnl Backmittel GmbH* [2014] ETMR 30.

¹⁰⁸ *Starbucks (HK) Ltd v British Sky Broadcasting Group Plc* [2013] FSR 29 at para 99.

¹⁰⁹ *ibid*, para 116; upheld on appeal, *Starbucks (HK) Ltd v British Sky Broadcasting Group Plc* [2014] FSR 20.

¹¹⁰ *Starbucks (HK) Ltd v British Sky Broadcasting Group Plc* [2013] FSR 29 at para 116.

¹¹¹ *ibid*, para 117.

¹¹² Case C-421/04 *Matratzen Concord AG v Hukla Germany SA* [2006] ETMR 48.

¹¹³ *ibid*, paras 24–25.

¹¹⁴ *ibid*, para 26.

14. Trade marks 2: definition of a registrable trade mark, absolute grounds for refusal and invalidation, and revocation

¹¹⁵ Case T-29/16 *Caffè Nero Group Ltd v EUIPO* (unreported).

¹¹⁶ Case T-589/11 *Phonebook of the World v OHIM* [2013] ETMR 15.

¹¹⁷ Case C-404/02 *Nichols plc v Registrar of Trade Marks* [2005] ETMR 21.

¹¹⁸ *ibid*, paras 24–26.

¹¹⁹ *ibid*, para 31.

¹²⁰ *ibid*, para 28.

¹²¹ Cases C-108/97 and 109/97, *Windsurfing Chiemsee Produktions- und Vertriebs GmbH v Boots- und Segelzubehör Walter Huber and Another* [2000] Ch 523 at para 26.

¹²² *ibid*, paras 29–31.

¹²³ *ibid*, para 32.

¹²⁴ *ibid*, para 33.

¹²⁵ Case T-379/03 *Peek & Cloppenburg KG v OHIM* [2006] ETMR 33. The relevant public was at most only moderately familiar with this place name and there was nothing to suggest a link with the category of services applied for.

¹²⁶ *Canary Wharf Group Plc v Comptroller General of Patents, Designs and Trade Marks* [2015] FSR 34.

¹²⁷ *ibid*, paras 25 and 29.

¹²⁸ Case C-383/99 P *Procter & Gamble Company v OHIM* ('BABY-DRY') [2002] ETMR 3.

¹²⁹ *ibid*, para 39.

¹³⁰ *ibid*, para 40.

¹³¹ *ibid*, paras 43–44.

¹³² Case C-191/01 P *OHIM v WM Wrigley JR Company* [2004] ETMR 9.

¹³³ *ibid*, paras 31–32.

¹³⁴ Case C-265/00 *Campina Melkunie BV v Benelux-Merkenbureau* [2005] 2 CMLR 9 at para 39.

¹³⁵ *ibid*, para 39.

¹³⁶ *ibid*, para 41.

¹³⁷ *Trade Mark Application No. 3383412 by Nike Innovate CV*, O/415/20 (2 September 2020) at para 26.

¹³⁸ *Puma SE v Nike Innovate CV* [2021] ETMR 44.

¹³⁹ Case C-64/02 P *OHIM v Erpo Möbelwerk GmbH* [2005] ETMR 58 (concerning the slogan 'Das Prinzip der Bequemlichkeit'—'The Principle of Comfort') at para 41.

¹⁴⁰ Case C-398/08 P *Audi AG v OHIM* [2010] ETMR 18.

¹⁴¹ *ibid*, para 36.

¹⁴² *ibid*, para 37.

¹⁴³ *ibid*, para 39.

- ¹⁴⁴ *ibid*, paras 56–57. For a further example of case involving a disputed slogan, see Case C-311/11 P *Smart Technologies ULC v OHIM* [2012] ETMR 49 ('*WIR MACHEN DAS BESONDERE EINFACH*'—'We make special things simple').
- ¹⁴⁵ Case C-265/09 P *OHIM v BORCO-Marken-Import Matthiesen* [2011] ETMR 4 at paras 31–32 and 38.
- ¹⁴⁶ *ibid*, para 33.
- ¹⁴⁷ Case C-51/10 P *Agencja Wydawnicza Technopol sp z oo v OHIM* [2011] ETMR 34.
- ¹⁴⁸ *ibid*, para 29.
- ¹⁴⁹ *ibid*, para 50.
- ¹⁵⁰ *ibid*, para 50.
- ¹⁵¹ *WHG (International) Ltd, WHG Trading Ltd and William Hill Plc v 32Red Plc* [2012] ETMR 14.
- ¹⁵² *ibid*, para 64.
- ¹⁵³ Case C-104/01 *Libertel Groep BV v Benelux-Merkenbureau* [2003] ETMR 63 at para 66.
- ¹⁵⁴ Joined Cases C-456/01 P and C-457/01 P *Henkel KGaA v OHIM* [2005] ETMR 44.
- ¹⁵⁵ *ibid*, paras 30 and 31.
- ¹⁵⁶ *ibid*, para 38.
- ¹⁵⁷ *ibid*, para 38.
- ¹⁵⁸ *ibid*, para 38.
- ¹⁵⁹ *ibid*, para 39.
- ¹⁶⁰ *ibid*, para 39. See also Joined Cases C-473/01 P and C-474/01 P *Proctor & Gamble Co v OHIM* [2004] ETMR 89 (another dishwasher tablet case); Case C-218/01 *Henkel KGaA v Deutsches Patent- und Markenamt* [2005] ETMR 45 at para 49 (dealing with the shape of packaging); Case C-136/02 *Mag Instrument v OHIM* [2005] ETMR 46 (an application to register the shape of a torch); and many other subsequent shape-mark cases.
- ¹⁶¹ Case T-573/18 *Hickies, Inc v EUIPO* [2020] ETMR 28 at paras 64 and 65.
- ¹⁶² Case C-783/18 P, *EUIPO v Wajos GmbH* (unreported) at para 25.
- ¹⁶³ *ibid*, para 32.
- ¹⁶⁴ Case T-488/20 *Guerlain v EUIPO* (unreported) at para 44.
- ¹⁶⁵ *Skullduggery Rum Ltd v Globefill Incorporated* [2020] ETMR 9 (EUIPO Cancellation Division); Case T-488/20 *Guerlain v EUIPO* (unreported).
- ¹⁶⁶ Joined Cases C-456/01 P and C-457/01 P *Henkel KGaA v OHIM* [2005] ETMR 44 at para 39.
- ¹⁶⁷ *Bongrain SA's Trade Mark Application* [2005] RPC 14 at para 26.
- ¹⁶⁸ *London Taxi Corp Ltd (t/a London Taxi Co) v Frazer-Nash Research Ltd* [2018] ETMR 7.
- ¹⁶⁹ [2016] EWHC 52 (Ch) at paras 165–172.
- ¹⁷⁰ *London Taxi Corp Ltd (t/a London Taxi Co) v Frazer-Nash Research Ltd* [2018] ETMR 7 at para 42.
- ¹⁷¹ *ibid*, para 45.

¹⁷² *ibid*, paras 46–49.

¹⁷³ *Jaguar Land Rover Ltd v Ineos Industries Holdings Ltd* [2020] ETMR 56.

¹⁷⁴ Case C-218/01 *Henkel KGaA v Deutsches Patent- und Markenamt* [2005] ETMR 45.

¹⁷⁵ *ibid*, para 33.

¹⁷⁶ *ibid*, para 42.

¹⁷⁷ Case C-26/17 P *Birkenstock Sales GmbH v EUIPO* (unreported) at para 36.

¹⁷⁸ Case T-547/08 X *Technology Swiss GmbH v OHIM* (unreported).

¹⁷⁹ *In the matter of application no 3361324 by Tefal* (O/587/20) (20 November 2020).

¹⁸⁰ Case C-26/17 P *Birkenstock Sales GmbH v EUIPO* (unreported) at para 41. The UK Appointed Person has also upheld a decision of the UK IPO applying the *Henkel* test to the Birkenstock sole pattern: *Re Birkenstock Sales GmbH's UK Trade Mark Registration (No.3070652)* [2019] 1 WLUK 354.

¹⁸¹ Case T-105/19 *Louis Vuitton Malletier v EUIPO* [2020] ETMR 46 at paras 16 and 17.

¹⁸² Case C-421/13 *Apple Inc v Deutsches Patent- und Markenamt* [2014] ETMR 48 at para 20.

¹⁸³ Case T-408/15 *Globo Comunicação e Participações S/A v EUIPO* (unreported).

¹⁸⁴ *ibid*, para 45.

¹⁸⁵ *ibid*, paras 46 and 51.

¹⁸⁶ Case T-668/19 *Ardagh Metal Beverage Holdings GmbH & Co. KG v EUIPO* (unreported) at para 33.

¹⁸⁷ See also EUTMR 2017, Art 7(3) and TMD 2015, Arts 4(4) and (5).

¹⁸⁸ Cases C-108/97 and 109/97 *Windsurfing Chiemsee Produktions- und Vertriebs GmbH v Boots- und Segelzubehör Walter Huber and Another* [2000] Ch 523 at para 45.

¹⁸⁹ Case C-299/99 *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd* [2002] ETMR 81 at para 64.

¹⁹⁰ Cases C-108/97 and 109/97 *Windsurfing Chiemsee Produktions- und Vertriebs GmbH v Boots- und Segelzubehör Walter Huber and Another* [2000] Ch 523 at para 51.

¹⁹¹ *ibid*, paras 52–53. See also Joined Cases C-217/13 and 218/13 *Oberbank AG, Banco Santander SA and Santander Consumer Bank AG v Deutscher Sparkassen- und Giroverband eV* [2014] ETMR 56 at paras 33–49.

¹⁹² Cases C-108/97 and 109/97 *Windsurfing Chiemsee Produktions- und Vertriebs GmbH v Boots- und Segelzubehör Walter Huber and Another* [2000] Ch 523 at para 52.

¹⁹³ Proviso to TMA 1994, s 3(1); EUTMR 2017, Art 7(3). See also Case C-542/07 P *Imagination Technologies Ltd v OHIM* [2010] ETMR 19 at para 42. The TMD 2015 gives member states the option to allow an application to proceed to registration where distinctiveness is shown to have been acquired after the date of filing but before the date of registration: TMD 2015, Art 4(5).

¹⁹⁴ TMA 1994, s 47(1); TMD 2015, Art 4(4); EUTMR 2017, Art 59(2).

¹⁹⁵ Case C-353/03 *Société des Produits Nestlé SA v Mars UK Ltd* [2005] ETMR 96.

¹⁹⁶ *ibid*, para 27.

¹⁹⁷ *ibid*, para 28.

¹⁹⁸ *ibid*, para 29.

¹⁹⁹ *ibid*, para 30.

²⁰⁰ *Societe des Produits Nestle SA v Unilever Plc* [2003] ETMR 53 at paras 32–33.

²⁰¹ Case C-215/14 *Société des Produits Nestlé SA v Cadbury UK Ltd* [2015] ETMR 50.

²⁰² *Société des Produits Nestlé SA v Cadbury UK Ltd* [2014] ETMR 17 at para 50.

²⁰³ *ibid*, para 51.

²⁰⁴ Case C-215/14 *Société des Produits Nestlé SA v Cadbury UK Ltd* [2015] ETMR 50 at para 58.

²⁰⁵ *ibid*, para 67.

²⁰⁶ *Société des Produits Nestlé SA v Cadbury UK Ltd* [2017] ETMR 31 at para 78.

²⁰⁷ *ibid*, para 82.

²⁰⁸ *ibid*, para 84.

²⁰⁹ *ibid*, para 89. Contrast Case T-112/13 *Mondelez UK Holdings & Services Ltd v EUIPO* [2017] ETMR 13, a set of parallel proceedings before the GC concerning Nestlé's parallel EUTM. In those proceedings, the shape was held to have acquired a distinctive character in some EU member states including the UK, although was refused registration because acquired distinctiveness had not been demonstrated throughout the whole of the EU (see para 14.75).

²¹⁰ *London Taxi Corp Ltd (t/a London Taxi Co) v Frazer-Nash Research Ltd* [2018] ETMR 7.

²¹¹ *ibid*, para 53.

²¹² *ibid*, para 66.

²¹³ *ibid*, para 66.

²¹⁴ *ibid*, para 67.

²¹⁵ *Jaguar Land Rover Ltd v Ineos Industries Holdings Ltd* [2020] ETMR 56; *In the matter of application no 3361324 by Tefal (O/587/20)* (20 November 2020); *Re Birkenstock Sales GmbH's UK Trade Mark Registration (No 3070652)* [2019] 1 WLUK 354.

²¹⁶ Case C-25/05 *P August Storck KG v OHIM* (unreported) at para 83.

²¹⁷ Case T-91/99 *Ford Motor Company v OHIM* [2000] ETMR 554.

²¹⁸ Case C-98/11 *P Chocoladefabriken Lindt & Sprungli AG v OHIM* [2012] 5 WLUK 756 at para 62.

²¹⁹ Case C-84/17 *P Société des Produits Nestlé SA v Mondelez UK Holdings & Services Ltd (formerly Cadbury Holdings Ltd)* [2018] ETMR 38.

²²⁰ *ibid*, paras 68 and 76.

²²¹ *ibid*, paras 80–82.

²²² *ibid*, para 83.

²²³ Case C-108/05 *Bovemij Verzekeringen NV v Benelux-Merkenbureau* [2007] ETMR 29.

²²⁴ *ibid*, para 23.

²²⁵ See also TMD 2015, Art 4(1)(e) and EUTMR 2017, Art 7(1)(e). In Case C-21/18 *Textilis Ltd v Svenskt Tenn Aktiebolag* [2019] ETMR 31, the ECJ confirmed that the broadening of the scope of the exclusion to other ‘characteristics’ is not retroactive and is therefore not applicable to marks registered before the entry into force of the 2015 reform package.

²²⁶ Case C-299/99 *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd* [2002] ETMR 81 at para 78.

²²⁷ *ibid*.

²²⁸ *ibid*, para 76.

²²⁹ See, eg, Case C-48/09 P *Lego Juris A/S v OHIM* [2010] ETMR 63 at para 47. See also Case C-371/06 *Benetton Group SpA v G-Star International BV* [2008] ETMR 5.

²³⁰ Case C-205/13 *Hauck GmbH & Co KG v Stokke A/S* [2014] ETMR 60 at paras 37–43.

²³¹ Case C-215/14 *Société des Produits Nestlé SA v Cadbury UK Ltd* [2015] ETMR 50.

²³² *ibid*, paras 46–48 in particular.

²³³ Joined Cases C-337/12 P to 340/12 P *Pi-Design AG and Others v Yoshida and OHIM* [2014] ETMR 32.

²³⁴ *ibid*, para 51.

²³⁵ *ibid*, para 18.

²³⁶ Case C-21/18 *Textilis Ltd v Svenskt Tenn Aktiebolag* [2019] ETMR 31.

²³⁷ Case C-818/18 P *Yokohama Rubber Co Ltd v Pirelli Tyre SpA* [2021] ETMR 45.

²³⁸ *ibid*, paras 59–66 in particular.

²³⁹ Case C-218/01 *Henkel KGaA v Deutsches Patent- und Markenamt* [2005] ETMR 45 at para 37.

²⁴⁰ Case C-163/16 *Christian Louboutin v Van Haren Schoenen BV* [2018] ETMR 31.

²⁴¹ *ibid*, para 21.

²⁴² *ibid*, para 22.

²⁴³ *ibid*, para 25. The ‘main element’ of the sign was the colour claimed by reference to the Pantone colour code; the mark could therefore also not be regarded as consisting ‘exclusively’ of a shape: para 26.

²⁴⁴ Max Planck Institute for Intellectual Property and Competition Law, ‘Study on the Overall Functioning of the European Trade Mark System’ (February 2011), 72.

²⁴⁵ Case C-48/09 P *Lego Juris A/S v OHIM* [2010] ETMR 63.

²⁴⁶ *ibid*, para 51.

²⁴⁷ *ibid*, para 52.

²⁴⁸ *ibid*, paras 69–71.

²⁴⁹ See, eg, Case C- 205/13 *Hauck GmbH & Co KG v Stokke A/S* [2014] ETMR 60 at para 21.

²⁵⁰ See, eg, the Court of Appeal in *Philips Electronics NV v Remington Consumer Products Ltd* [1999] ETMR 816:

Subsection 2(a) has to be construed in the context of subsections (b) and (c). It is intended to exclude from registration basic shapes that should be available for use by the public at large. It is difficult to envisage such shapes, except those that are produced in nature such as bananas [per Aldous LJ at 829].

²⁵¹ Case C- 205/13 *Hauck GmbH & Co KG v Stokke A/S* [2014] ETMR 60.

²⁵² *ibid*, para 15.

²⁵³ *ibid*, para 24.

²⁵⁴ *ibid*, para 25.

²⁵⁵ *ibid*, para 27.

²⁵⁶ *ibid*, para 26.

²⁵⁷ *ibid*, para 26.

²⁵⁸ See, eg, A Kur, 'Too common, too splendid, or "just right"? Trade mark protection for product shapes in the light of CJEU case law', Max Planck Institute for Innovation and Competition Research Paper No 14–17.

²⁵⁹ Case C-299/99 *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd* [2002] ETMR 81.

²⁶⁰ *ibid*, para 79.

²⁶¹ *ibid*, para 80.

²⁶² *ibid*, para 82.

²⁶³ For discussion of similar issues in registered design law, see Chapter 8.

²⁶⁴ Case C-299/99 *Koninklijke Philips Electronics NV v Remington Consumer Products Ltd* [2002] ETMR 81 at para 81.

²⁶⁵ *ibid*, para 83.

²⁶⁶ Case C-48/09 P *Lego Juris A/S v OHIM* [2010] ETMR 63.

²⁶⁷ *ibid*, para 44.

²⁶⁸ *ibid*, para 45.

²⁶⁹ *ibid*, para 48.

²⁷⁰ *ibid*, paras 53–62.

²⁷¹ *ibid*, para 72.

²⁷² *ibid*, paras 75–76.

²⁷³ Case C-215/14 *Société des Produits Nestlé SA v Cadbury UK Ltd* [2015] ETMR 50 at paras 52–57.

²⁷⁴ Case C-30/15 P *Simba Toys GmbH & Co. KG v EUIPO, Seven Towns Ltd (intervener at first instance)* [2017] ETMR 6.

²⁷⁵ Case C-237/19 *Gömböc Kutató, Szolgáltató és Kereskedelmi Kft v Szellemi Tulajdon Nemzeti Hivatala* [2020] ETMR 41.

²⁷⁶ *ibid*, para 11.

²⁷⁷ *ibid*, para 33.

²⁷⁸ *ibid*, paras 35–36.

²⁷⁹ *ibid*, para 34.

²⁸⁰ *ibid*, para 34.

²⁸¹ Max Planck Institute for Intellectual Property and Competition Law, 'Study on the Overall Functioning of the European Trade Mark System' (February 2011), 73.

²⁸² Case T-508/08 *Bang and Olufsen v OHIM* [2012] ETMR 10.

²⁸³ *ibid*, para 74.

²⁸⁴ Case C- 205/13 *Hauck GmbH & Co KG v Stokke A/S* [2014] ETMR 60.

²⁸⁵ *ibid*, para 31.

²⁸⁶ *ibid*, para 32.

²⁸⁷ *ibid*, para 36.

²⁸⁸ *ibid*, para 35.

²⁸⁹ See, eg, A Kur, 'Too common, too splendid, or "just right"? Trade mark protection for product shapes in the light of CJEU case law', Max Planck Institute for Innovation and Competition Research Paper No 14–17 and A Quaedvlieg, 'Shapes with a technical function: an ever-expanding exclusion?' (2016) 17 ERA Forum 101–17.

²⁹⁰ Case C-237/19 *Gömböc Kutató, Szolgáltató és Kereskedelmi Kft v Szellemi Tulajdon Nemzeti Hivatala* [2020] ETMR 41.

²⁹¹ *ibid*, para 40.

²⁹² *ibid*, para 41.

²⁹³ *ibid*, para 46.

²⁹⁴ *ibid*, paras 48–57. This appears to resolve uncertainty which the English Court of Appeal flagged on this issue in *London Taxi Corp Ltd (t/a London Taxi Co) v Frazer-Nash Research Ltd* [2018] ETMR 7 at para 76.

²⁹⁵ Case C-237/19 *Gömböc Kutató, Szolgáltató és Kereskedelmi Kft v Szellemi Tulajdon Nemzeti Hivatala* [2020] ETMR 41 at para 59.

²⁹⁶ *ibid*, para 42. This confirms the view of the English courts that goodwill attaching to the mark should be disregarded for the purposes of assessing whether the mark adds substantial value to the goods: *London Taxi Corp Ltd (t/a London Taxi Co) v Frazer-Nash Research Ltd* [2018] ETMR 7 at para 75.

²⁹⁷ Case C-237/19 *Gömböc Kutató, Szolgáltató és Kereskedelmi Kft v Szellemi Tulajdon Nemzeti Hivatala* [2020] ETMR 41 at para 60.

²⁹⁸ See also EUTMR 2017, Art 7(1)(f) and TMD 2015, Art 4(1)(f).

²⁹⁹ *FCUK Trade Mark* [2007] RPC 1 at para 60.

³⁰⁰ *ibid*, para 59.

³⁰¹ Case C-240/18 P *Constantin Film Produktion v EUIPO* [2019] ETMR 50 (AG Opinion) at para 60.

³⁰² Case C-240/18 P *Constantin Film Produktion GmbH v EUIPO* [2020] Bus LR 1422 at para 38.

³⁰³ Case C-371/18 *Sky Plc v SkyKick UK Ltd* [2020] ETMR 24 at paras 66–67.

³⁰⁴ *FCUK Trade Mark* [2007] RPC 1 at para 6.

14. Trade marks 2: definition of a registrable trade mark, absolute grounds for refusal and invalidation, and revocation

³⁰⁵ See Manual of Trade Marks Practice (www.gov.uk/guidance/trade-marks-manual/the-examination-guide ~~<<https://www.gov.uk/guidance/trade-marks-manual/the-examination-guide>>~~), Part B, Offensive Marks.

³⁰⁶ See EUIPO, 'Guidelines for examination of European Union trade marks' (<https://guidelines.euipo.europa.eu/1935303> ~~<<https://guidelines.euipo.europa.eu/1935303>>~~), Part B, Section 4, Chapter 7 (Trade marks contrary to public policy or acceptable principles of morality).

³⁰⁷ Case T-1/17 *La Mafia Franchises SL v EUIPO/Italian Republic* [2018] ETMR 22 at paras 47 and 48 in particular.

³⁰⁸ Case T-683/18 *Santa Conte v EUIPO* [2020] ETMR 16 at paras 70–80 in particular.

³⁰⁹ Case C-240/18 P *Constantin Film Produktion GmbH v EUIPO* [2020] Bus LR 1422.

³¹⁰ *ibid*, para 39.

³¹¹ *ibid*, para 40.

³¹² *ibid*, para 41.

³¹³ *ibid*, para 42.

³¹⁴ *ibid*, para 43.

³¹⁵ *ibid*, para 42.

³¹⁶ *ibid*, para 67.

³¹⁷ *ibid*, para 68.

³¹⁸ *Ghazilian's Trade Mark Application* [2002] RPC 33 at para 20; *FCUK Trade Mark* [2007] RPC 1 at para 60.

³¹⁹ *ibid*, para 31.

³²⁰ *ibid*, para 30.

³²¹ *ibid*.

³²² *FCUK Trade Mark* [2007] RPC 1.

³²³ *Pooja Sweets Ltd v Pooja Sweets & Savouries Ltd* [2015] 2 WLUK 243.

³²⁴ Pooja, spelled phonetically as *puja* in English, is a prayer ceremony performed by Hindus to host, honour, and worship one or more deities, or to spiritually celebrate an event.

³²⁵ *FCUK Trade Mark* [2007] RPC 1 at para 54.

³²⁶ Case C-240/18 P *Constantin Film Produktion GmbH v EUIPO* [2020] Bus LR 1422 at para 56.

³²⁷ *Matal v Tam* (2017) 137 S Ct 1744; *Iancu v Brunetti* (2019) 139 S Ct 2294.

³²⁸ *FCUK Trade Mark* [2007] RPC 1 at para 60.

³²⁹ See also TMD 2015, Art 4(1)(g) and EUTMR 2017, Art 7(1)(g).

³³⁰ Case C-259/04 *Elizabeth Florence Emanuel v Continental Shelf 128 Ltd* [2006] ETMR 56.

³³¹ *ibid*, para 46.

³³² *ibid*, para 47.

³³³ *ibid*, para 48.

³³⁴ *ibid*, para 50.

³³⁵ *Re Les Grands Chais de France's UK Designation of International Registration (No.1398464)* [2020] ETMR 47.

³³⁶ *ibid*, paras 67–69.

³³⁷ Based on TMD 2015, Art 4(3)(a), as an optional ground of objection for member states.

³³⁸ *Re Woof and Brew Ltd's Trade Mark Application (No 3215159)* [2019] RPC 21; *Re Les Grands Chais de France's UK Designation of International Registration (No 1398464)* [2020] ETMR 47.

³³⁹ See also EUTMR 2017, Arts 7(1)(h)–(i) for EUTMs.

³⁴⁰ Paris Convention, Art 6*ter*.

³⁴¹ Joined Cases C-202/08 P and C-208/08 P *American Clothing Associates SA v OHIM* [2010] ETMR 3.

³⁴² See also EUTMR 2017, Arts 7(1)(j)–(m) for EUTMs.

³⁴³ There are now also relative objections relating to geographical indications, as to which see further Chapter 15.

³⁴⁴ Under TMD 2015, Art 4(2), bad faith is a mandatory ground for invalidation across member states and an optional ground for refusal of a pending application.

³⁴⁵ Case C-529/07 *Chocoladefabriken Lindt & Sprüngli AG v Franz Hauswirth GmbH* [2009] ETMR 56.

³⁴⁶ Case C-320/12 *Malaysia Dairy Industries Pte. Ltd v Ankenævnet for Patenter Varemærker* [2013] ETMR 36.

³⁴⁷ Case C-104/18 P *Koton Mağazacılık Tekstil Sanayi ve Ticaret A.Ş.* (unreported) at paras 51 and 52.

³⁴⁸ *ibid*, para 45.

³⁴⁹ *ibid*, para 46.

³⁵⁰ Case C-371/18 *Sky Plc v SkyKick UK Ltd* [2020] ETMR 24 at paras 77–78.

³⁵¹ *Sky Limited (formerly Sky Plc) v SkyKick UK Ltd* [2021] EWCA Civ 1121 at para 67, point (3).

³⁵² *ibid*, para 67, point (4).

³⁵³ *ibid*, para 67, point (5).

³⁵⁴ *ibid*, para 67, point (6).

³⁵⁵ *ibid*, para 67, point (8).

³⁵⁶ *ibid*, para 67, point (9).

³⁵⁷ *ibid*, para 67, point (10).

³⁵⁸ *Trade mark registrations nos. 3215628 AND 3215626 and applications nos. 502407 AND 502408 for declarations that the registrations are invalid* (O/146/20) (9 March 2020); for further context, see *Trump International Ltd v DTTM Operations LLC* [2019] ETMR 38.

³⁵⁹ Case T-663/19 *Hasbro, Inc. v EUIPO* [2021] ETMR 39.

³⁶⁰ *Full Colour Black Ltd v Pest Control Office Ltd* [2020] ETMR 58.

³⁶¹ *ibid*, paras 30–31.

³⁶² *ibid*, paras 37 and 46.

³⁶³ *ibid*, paras 44–45.

³⁶⁴ *Swatch AG v Apple Inc* [2021] ETMR 38.

³⁶⁵ *ibid*, para 42.

³⁶⁶ *ibid*, paras 46 and 47.

³⁶⁷ *ibid*, para 49.

³⁶⁸ *ibid*, paras 52–53.

³⁶⁹ TMA 1994, ss 46(1)(a) and (b), based on TMD 2015, Arts 16(1) and 19(1); see also EUTMR 2017, Arts 18(1) and 58(1)(a) for EUTMs. The ‘date of the completion of the registration procedure’ must be determined in each member state in accordance with the procedural rules on registration in force in that state: Case C-246/05 *Armin Häupl v Lidl Stiftung & Co KG* [2007] ETMR 61.

³⁷⁰ TMA 1994, s 46(3), based on TMD 2015, Art 19(2); see EUTMR 2017, Art 58(1)(a) for EUTMs. If that commencement or resumption of use occurs within three months before the making of the application for revocation, it shall be disregarded unless preparations for the commencement or resumption of use began before the trade mark proprietor became aware that the application for revocation might be made: TMA 1994, s 46(3); TMD 2015, Art 19(3); EUTMR 2017, Art 58(1)(a). The aim of this is to make it impossible for a trade mark owner to start or restart use of his mark simply for the purposes of defeating a revocation action which he may become aware of shortly before it is commenced.

³⁷¹ TMA 1994, s100.

³⁷² TMA 1994, ss 6A and 11A; EUTMR 2017, Arts 47(2), 47(3), and 127(3).

³⁷³ TMD 2015, recital 31.

³⁷⁴ Case C-40/01 *Ansul BV v Ajax Brandbeveiliging BV* [2003] ETMR 85.

³⁷⁵ *ibid*, para 36. See also C-234/06 *P Il Ponte Finanziaria SpA v OHIM* [2008] ETMR 13 at para 72.

³⁷⁶ Case C-40/01 *Ansul BV v Ajax Brandbeveiliging BV* [2003] ETMR 85 at para 37.

³⁷⁷ *ibid*.

³⁷⁸ *ibid*.

³⁷⁹ *ibid*, para 38.

³⁸⁰ *ibid*, para 39.

³⁸¹ Case C-259/02 *La Mer Technology Inc v Laboratoires Goëmar SA* [2004] ETMR 47.

³⁸² *ibid*, paras 22 and 25 in particular.

³⁸³ *ibid*, para 21.

³⁸⁴ *Laboratoires Goëmar SA v La Mer Technology Inc* [2005] ETMR 114.

³⁸⁵ Case C-495/07 *Silberquelle GmbH v Maselli-Strickmode GmbH* [2009] ETMR 28.

³⁸⁶ Case C-442/07 *Verein Radetzky-Orden v Bundesvereinigung Kameradschaft Feldmarschall Radetzky* [2009] ETMR 14.

³⁸⁷ Case C-689/15 *WF Gözze Frottierweberei GmbH v Verein Bremer Baumwollbörse* [2017] Bus LR 1795. The trade mark owner was an association representing undertakings operating in the cotton textiles sector and licensed the disputed mark to its affiliates as a mark of product quality.

³⁸⁸ Case C-40/01 *Ansul BV v Ajax Brandbeveiliging BV* [2003] ETMR 85 at para 40.

³⁸⁹ *ibid*, paras 41 and 42.

³⁹⁰ Joined Cases C-720/18 and C-721/18 *Ferrari SpA v DU* [2021] ETMR 9.

³⁹¹ *ibid*, para 56.

³⁹² *London Taxi Corp Ltd (t/a London Taxi Co) v Fraser-Nash Research Ltd* [2016] ETMR 18 at paras 233–234 in particular; upheld on appeal *London Taxi Corp Ltd (t/a London Taxi Co) v Frazer-Nash Research Ltd* [2018] ETMR 7 at para 81.

³⁹³ *Aiwa Co Ltd v Aiwa Corporation* [2020] ETMR 12.

³⁹⁴ TMA 1994, s 46(2); TMD 2015, Art 16(5)(a); EUTMR 2017, Art 18(1)(a).

³⁹⁵ Case C-553/11 *Rintisch v Eder* [2013] ETMR 5.

³⁹⁶ *ibid*. This is now reflected in the wording of TMA 1994, s 46(2).

³⁹⁷ Case C-12/12 *Colloseum Holding AG v Levi Strauss & Co* [2013] ETMR 34. Levi Strauss was the holder of a position mark which consisted of ‘a rectangular red label, made of textile, sewn into and protruding from the upper part of the left-hand seam of the rear pocket of trousers, shorts or skirts’. The issue was whether this mark had been put to genuine use since, in use, the tab always carried the house mark LEVI’S.

³⁹⁸ Case C-252/12 *Specsavers International Healthcare Ltd v Asda Stores Ltd* [2013] ETMR 46.

³⁹⁹ Case C-149/11 *Leno Marken BV v Hagelkruis Beheer BV* [2013] ETMR 16.

⁴⁰⁰ *ibid*, para 57.

⁴⁰¹ *ibid*, para 42.

⁴⁰² *ibid*, para 50.

⁴⁰³ *ibid*, para 50.

⁴⁰⁴ *ibid*, para 55.

⁴⁰⁵ *ibid*, para 58.

⁴⁰⁶ *Danny Boy Label’s TITANIC registrations*, O/315/20 (9 June 2020).

⁴⁰⁷ *Danny Boy Label LLP v Horvath’s Spezereyen Kontor und Lebensmittelproduktion GmbH*, Case R 109/2020–1.

⁴⁰⁸ *The Sofa Workshop Ltd v Sofaworks Ltd* [2015] ETMR 37.

⁴⁰⁹ TMA 1994, s 46(1)(a) and (b); TMD 2015, Art 16(1); EUTMR 2017, Art 18(1).

⁴¹⁰ Case C-252/15 *P Naazneen Investments Ltd v OHIM* [2016] ETMR 29 at paras 77–78.

⁴¹¹ Case C-246/05 *Armin Häupl v Lidl Stiftung & Co KG* [2007] ETMR 61.

⁴¹² *ibid*, para 51.

⁴¹³ *ibid*, paras 52–53.

⁴¹⁴ *ibid*, para 54.

⁴¹⁵ TMA 1994, s 46(1)(d), based on TMD 2015, Art 20(b); see EUTMR 2017, Art 58(1)(c) for EUTMs.

⁴¹⁶ [2001] ETMR 74 (HL).

⁴¹⁷ Case C-689/15 *WF Gözze Frottierweberei GmbH v Verein Bremer Baumwollbörse* [2017] Bus LR 1795.

⁴¹⁸ *ibid*, para 54.

⁴¹⁹ *ibid*, para 55.

⁴²⁰ *ibid*, para 56.

⁴²¹ *ibid*, para 57.

⁴²² TMA 1994, s 46(1)(c), based on TMD 2015, Art 20(a); see EUTMR 2017, Art 58(1)(b) for EUTMs.

⁴²³ Case C-371/02 *Björnekulla Fruktindustrier AB v Procordia Food AB* [2004] ETMR 69; [2004] RPC 45 at para 25. KORNSPITZ, known by bakeries as to be made with the trade mark holder's bread mix but perceived by the public as the common name for oblong-shaped bread rolls with a point at both ends, could be liable to revocation: Case C-409/12 *Backaldrin Österreich The Kornspitz Company GmbH v Pfahnl Backmittel GmbH* [2014] ETMR 30.

⁴²⁴ Case C-371/02 *Björnekulla Fruktindustrier AB v Procordia Food AB* [2004] ETMR 69; [2004] RPC 45 at para 25.

⁴²⁵ Case C-409/12 *Backaldrin Österreich The Kornspitz Company GmbH v Pfahnl Backmittel GmbH* [2014] ETMR 30 at para 32.

⁴²⁶ *ibid*, para 34.

⁴²⁷ *ibid*, para 34.

⁴²⁸ *Merck KGaA v Merck Sharp & Dohme Corp* [2018] ETMR 10 at para 242.

⁴²⁹ *ibid*, paras 245–248. See also *Maier v ASOS Plc* [2015] ETMR 26.

⁴³⁰ The matter being remitted back to the High Court for determination on the facts; see most recently *Merck KGaA v Merck Sharp & Dohme Corp* [2020] ETMR 40.

⁴³¹ *Fil Limited and Another v Fidelis Underwriting Limited and others* [2018] EWHC 1097 (Pat).

⁴³² *ibid*, paras 113–115 in particular.

⁴³³ Case C-714/18 *ACTC GmbH v EUIPO* [2020] ETMR 52 at paras 40–41.

⁴³⁴ *ibid*, para 44.

⁴³⁵ Joined Cases C-720/18 and C-721/18 *Ferrari SpA v DU* [2021] ETMR 9 at paras 45–49 in particular.

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